

The History and Romance of Crime

FROM THE EARLIEST TIMES
TO THE PRESENT DAY



THE GROLIER SOCIETY
LONDON

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PRISONS ***

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LONDON



A Prison in Tangier

Oriental Prisons

PRISONS AND CRIME IN INDIA
THE ANDAMAN ISLANDS
BURMAH—CHINA—JAPAN—EGYPT
TURKEY

by
MAJOR ARTHUR GRIFFITHS
Late Inspector of Prisons in Great Britain

Author of
“The Mysteries of Police and Crime
Fifty Years of Public Service,” etc.



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INTRODUCTION

It is as true of crime in the Orient as of other habits, customs and beliefs of the East, that what has descended from generation to generation and become not only a tradition but an established fact, is accepted as such by the people, who display only a passive indifference to deeds of cruelty and violence. Each country has its own peculiar classes of hereditary criminals, and the influence of tradition and long established custom has made the eradication of such crimes a difficult matter.

Religion in the East has had a most notable influence on crime. In India the Thugs or professional stranglers were most devout and their criminal acts were preceded by religious rites and ceremonies. In China the peculiar forms of animism pervading the religion of the people has greatly influenced criminal practices. Murder veiled in obscurity is frequently attributed to some one of the legion of evil spirits who are supposed to be omnipresent; and to satisfy and appease these demons innocent persons are made to suffer. So great, too, is the power of the spirit after death to cause good or ill, that many stories are related of victims of injustice who have hanged themselves on their persecutors' door-posts, thus converting their spirits into wrathful ghosts to avenge them. The firm belief in ghosts and their power of vengeance and reward is a great restraint in the practice of infanticide, as the souls of murdered infants may seek vengeance and bring about serious calamity.

Oriental prison history is one long record of savage punishments culminating in the death penalty, aggravated by abominable tortures. The people are of two classes, the oppressed and the oppressors, and the last named have invented many devices for legal persecution. In early China and Japan, relentless and ferocious methods were in force. One of the emperors of China invented a new kind of punishment, described by Du Halde in 1738, at the instigation of a favourite wife. It was a column of brass, twenty cubits high and eight in diameter, hollow in the middle like

Phalaris's Bull, with openings in three places for putting in fuel. To this they fastened the criminals, and making them embrace it with their arms and legs, lighted a great fire in the inside; and thus roasted them until they were reduced to ashes.

The first slaves in China were felons deprived of their liberty. Later the very poor with their families sold themselves to the rich. Although slavery has never been largely prevalent owing to the patriarchal nature of society, all modern writers agree that it exists in a loathsome form to-day. Parents sell their children and girls bring a higher price than boys.

Who does not know of the peculiar sufferings and wrongs inflicted for so many generations on the gentle peasant in the proud land of the Pharaohs, of whom it is said "that the dust which fills the air about the Pyramids and the ruined temples is that of their remote forefathers, who swarmed over the land, working under the fiery sun and the sharp scourge for successive races of task-masters—the Ethiopian, the Persian, the Macedonian, the Roman, the Arab, the Circassian and the Turk."

During the reign of Ismail Pasha we hear of 150,000 men, women and children driven forth from their villages with whips to perform work without wages on the Khedive's lands or in his factories. It is a heartrending picture.

In earlier times the administration of the country districts was in the hands of governors appointed by the Pasha and charged by him with the collection of taxes and the regulation of the *corvée*, or system of enforced labour, at one time the universal rule in Egypt. The present system established by Great Britain is in striking contrast to past cruelties.

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PRISONS OF INDIA

CHAPTER I

PRISON SYSTEM IN INDIA

Lord Macaulay's work—Commission appointed to look into state of prisons—Appointment of an inspector-general of gaols—Charge of district gaols given into the hands of civil surgeons—Treatment of juvenile offenders in India—Prison discipline—The employment of convict overseers—Caste—Ahmedabad gaol—Prison industries—Alipore Gaol in Calcutta—Ameer Khan, the Wahabee—Description of the Montgomery gaol—The prison factory—Convict officials—The gaol of Sirsah—A native gaol of Orissa.

The prison system in India developed gradually under the British rule. At first but little attention was paid to the subject of penal discipline, and the places of detention were put in the charge of judicial officers who had complete control of the criminals in their districts. The judges and magistrates had but little time to attend to the gaols; the administration was chiefly in the hands of native subordinates, and abuses of every kind prevailed, as might have been expected.

The first important step toward prison reform was initiated by Lord Macaulay when a member of the Indian Law Commission in 1835. He suggested that a committee should be appointed to look into the state of the prisons in India and to prepare an improved plan of prison discipline. This suggestion was readily acceded to by the governor-general, Sir C. Metcalfe, and a committee composed of fourteen able and distinguished men was selected for the purpose. An extract from their report will best show the existing state of the prisons at that time, and runs as follows:

“In reviewing the treatment of prisoners in Indian gaols, although on some points which we have not failed to throw into a strong light the humanity of it is doubtful, yet generally the care that is taken of the physical condition of these unfortunate men in the great essentials of cleanliness, attention to the

sick and the provision of food and clothing, appears to us to be highly honourable to the government of British India. When fair allowance has been made for the climate of the country and the habits of the people, we doubt whether India will not bear a comparison even with England, where for some years past more money and attention has been expended to secure the health and bodily comfort of prisoners than has ever been the case in any other country of Europe.... It appears to us that that which has elsewhere been deemed the first step of prison reform has been already taken in India. What after many years was the first good effect of the labours of Howard and Neild in England has already been achieved here. There is no systematic carelessness as to the circumstances of the prisoner, no niggardly disregard of his natural wants; he is not left to starve of cold or hunger or to live on the charity of individuals; he is not left in filth and stench to sink under disease without an attempt to cure him; he is not able to bribe his gaoler in order to obtain the necessaries which the law allows him. With us in England, the second stage of prison reform seems to be nearly the present state of prison discipline in India. The physical condition of the prisoner has been looked to, but nothing more, and the consequences here as in England have been that a prison, without being the less demoralising, is not a very pleasant place of residence.... The proportion of distinct civil gaols to all other gaols is very honourable to the government. The mixture of the two sexes in Indian prisons is unknown, and in general the separation of tried and untried prisoners is at least as complete in India as in other countries. We allude to these things, not to give more credit to the Indian government in these matters than it deserves, but to show that although we have found much fault and recommend many reforms, we do not overlook the fact that much has been already done.”

The second stage in Indian prison reform was the appointment of an inspector-general of gaols for every province. This was first tried as an experiment in the North-western Provinces after some hesitation on the part of the government, and it was proved conclusively by comparison with the statistics of former years “that the prisoners were generally more healthy, better lodged, fed and clothed, that the gaol discipline had been much improved and that the expenditure had been reduced” in those prisons which had been placed under the supervision of an inspector. Upon this evidence the government decided to make the office a permanent one, and it

was finally established in 1850 in the North-western Provinces and shortly afterward in the Punjab, Bengal, Madras and Bombay.

The third important measure toward prison reform in India was initiated in the North-western Provinces. Until 1860, the management of the district gaols had been in the hands of the magistrates of the surrounding country, but it was found that owing to the increased pressure of work in the administration they were unable “to find time to regulate the management, economy and discipline of the local prison with the care and exactness which the pecuniary interests of the government and the purposes of civil administration demand.” Therefore the civil surgeon, who had formerly had charge of the medical department only of the local gaol, was now given the entire management. This change was finally sanctioned by the government in 1864, after due trial which showed that there had been an improved discipline and an improved economy in all the gaols in which the experiment had been tried. In 1864 two other important reforms were introduced: first,—that no central gaol (intended for all prisoners sentenced to a term exceeding one year) should be built to accommodate more than one thousand persons; and second,—that the minimum space allowed to each prisoner should be 9 feet by 6, or 54 superficial feet, and 9 feet by 6 by 12, or 648 cubic feet.

Some of the many difficulties in the way of prison reform besides those of finance are summed up in Lord Auckland’s resolution upon the prison committee’s report.

“Every reform of prison discipline is almost of necessity attended at the outset with extraordinary expense. To exchange the common herding together of prisoners of all descriptions for careful classification; to substitute a strict and useful industry for idleness or for a light, ill-directed labour; to provide that the life which is irksome shall not also be unhealthy, and that the collection of the vicious shall not be a school of vice,—are all objects for the first approach of which large buildings must be erected, machinery formed and establishments contrived, and in the perfect attainment and maintenance of which great disappointment has after every effort and expense in many countries ensued. In no country is it likely that greater difficulty will be experienced than in this for the mere locality of the

prison; that which is healthy in one season may become a pesthouse by a blast of fever or cholera, in another. For its form—the close yard which is adapted for classification and is not unwholesome in England, would be a sink of malaria in India. For food, for labour and for consort there are habits and an inveteracy of prejudice bearing upon health, opposing the best management of prisons such as are not to be encountered elsewhere, and superadded to all this is the absence of fitting instruments for control and management, while it is principally upon a perfect tact and judgment and an unwearying zeal that the success of every scheme of discipline has been found to depend.”

The classification of the gaols in the North-western Provinces and Oude is made according to the number of persons they can hold, as follows: the central prisons of the first, second, third and fourth class; the district prisons, and the lock-ups. In the central prisons, all prisoners sentenced to rigorous imprisonment for any period exceeding six months are confined; in the district prisons all prisoners sentenced to terms not exceeding three months are sent for every kind of crime, also civil prisoners and prisoners committed for trial at the sessions court; in the lock-ups all prisoners under trial before any court are lodged.

There are no reformatories for juvenile offenders in India. The government has so far considered that there is no need for their establishment. This conclusion has been arrived at by a comparison between the state of civilisation in the European countries which have adopted this plan of dealing with juvenile criminals and that of India. In the former there is a large class of vagrant, deserted and neglected children, which is quite unknown in the latter country. The following figures will serve to show the truth of this assertion. In Ireland, in 1866, out of a population of 6,000,000, there were 1,060 juveniles, under sixteen years, committed to prison for various offences; whereas in the whole of India, with a population of more than 150,000,000, the commitment of juveniles was about 2,000 in the same year.

In the presidency of Bombay there is an institution of very much the same nature as a reformatory, called the David Sasson Industrial and Reformatory Institution, which owes its origin to private benevolence, but which now

receives some support from public resources. It is quite separate from the gaols and under different management and control.

In the North-western Provinces “all boys and lads under eighteen years of age, sentenced to periods of imprisonment for three months, are transferred as soon after sentence as possible to the nearest central prison, where they are placed under a regular system of education with training in industrial labour; they are confined in separate cells at night wherever there are a sufficient number of these for their accommodation, which is the case at Meerut, Agra and Gorruckpore, and at all prisons they attend school and labour for fixed periods during the day under directors specially employed for that purpose. Boys, whether confined in separate cells or association, are kept, day and night, entirely separate from the adult prisoners.” In the Punjab there is a reformatory in connection with the gaol of Goordaspore to which boys sentenced to more than six months’ confinement are sent. This reformatory was first established in the Sealkote gaol in 1862, but was subsequently removed to Goordaspore. The warder in charge, the gaol officials, the inspectors and the teacher approved by the educational department, are the only adults allowed to enter this yard. In the majority of district gaols there is a special yard set aside for juvenile prisoners, and in those gaols, where no such yard exists, when juvenile prisoners are received they are placed in cells, or other arrangements are made for separating them from the rest of the prisoners at night, and during the day they are made to work in a part of the yard by themselves. In the Lahore central gaol there is a separate yard for juveniles under a specially selected warder.

Nearly every presidency and province of India has its gaol code, drawn up under the sanction of the Prison Acts. That of Bengal was compiled by Frederic J. Mouat, M. D., and was introduced in the year 1864. “It borrowed freely,” he says, “from all the existing European and Indian rules which seemed to me to be suited for introduction in lower Bengal, and contained some special provisions based upon my personal experience, and study of prison systems at home and abroad.... It defined in considerable detail the duties, responsibilities and powers of all classes of prison officers; contained provisions for the classification and punishment of all classes of offenders; their management in sickness and in health; their food, clothing, work, instruction; and, in fact, every detail of discipline during their

residence in gaol, their transfer from one prison to another, their discharge, and in the execution of capital sentences.” Since these rules were framed a system of remission of sentence as the reward for good conduct in gaol has been introduced, based on the principle of what is known as the Irish system.

One of the chief peculiarities of Indian prison management is the employment of convicts in the maintenance of discipline. From the earliest days, prisoners were employed in the discharge of all the menial duties of the gaols, cooking, washing, cleansing, scavenging, husking rice, grinding corn and the preparation of food. The difficulty of obtaining trustworthy warders on the salaries allowed, and the impossibility of preventing the introduction of forbidden articles through their agency, led to the trial in the gaol at Alipore of well-behaved, long-term convicts as prison guards. They were found to be more reliable than outsiders, and to discharge their duties more efficiently. The practice was adopted in other prisons, and when conducted with care and discretion, worked so well that the system has been extended throughout India. Special provision for it has been made in all the gaol codes. As a reward for good conduct and strict obedience to prison rules, all convicts whose behaviour has been exemplary throughout, and who have completed the prescribed term of hard labour, are eligible for the offices of convict warder, guard and work-overseer. The number employed in these offices can never exceed ten per cent. of the criminals in custody. All such appointments are made with great care and deliberation, and are subject to the sanction of the head of the prison department, by whom they are closely watched. They are liable to forfeiture for serious misconduct or breach of duty.

As a measure of economy in diminishing the cost of guarding prisons, and as a means of reformation in teaching self-respect and self-control, the plan has been successful everywhere in India, contrary to the usual experience of penal legislators. The privilege is much prized, and few prisoners who have held such offices have relapsed into crime, while many have obtained positions of trust on the completion of their sentences.

In the gaols of Bengal the privileges of caste are respected in general, but no false plea of caste is permitted to interfere with punishment. With care,

tact and such knowledge of the people committed to his charge as every officer in command of a prison ought to possess, no great feeling of dissatisfaction is likely to arise or to be created. But from the jealousy with which all proceedings within the prisons are watched by the outside population, and the rapidity with which intelligence regarding them is spread, it is evident that extreme care must continue to be observed in the matter. While it is well known that imprisonment with its enforced associations is always attended with loss of caste, that, however, is readily restored by the performance of slight penances on release. It is instructive to find, on tracing them throughout the country, how the same castes, whatever differences of names they bear, are most prone to the commission of the same classes of crime.

Again, it is strange to discover that belief in witchcraft and the existence of witch-finders is a source of crime in the East at the present time. Among the Kols, an aboriginal race in the south-west of Bengal, each village is supposed to have a tutelar divinity, generally an evil spirit to whom is assigned all the sickness, epidemics, diseases and misfortunes which occur in the village. To this spirit certain lands are assigned, and the produce of this land is used in propitiatory sacrifices. The existence of this superstition is said to be a frequent cause of murder and extortion. The Kols believe in the powers of divination of "witch-finders," who are usually consulted when anything untoward occurs in a village. This witch-finder, who often lives at a distance, performs certain absurd ceremonials, and pretends through them to discover who in the village has caused the anger of the tutelar deity. The person denounced is generally called upon to pay handsomely for the evil caused, and usually does so, but if he refuses he is frequently murdered, and whether he pays or not, if the misfortune does not cease he is driven from the village, if no worse fate overtakes him. All this is done in the utmost good faith, faith as absolute as that with which witch-hunting was pursued by the puritans of Scotland and America.

Sir Richard Temple, one of the most famous of India's recent proconsuls, passes an approving verdict upon Indian prisons as they existed to the date of his volume, "India in 1880." He was of the opinion that they were managed conscientiously and as far as possible, with the means available, according to accepted principles. They erred perhaps in construction, and

showed many shortcomings as regards sanitation and disciplinary supervision, but an earnest desire to improve them has animated the Indian government and its officials. Native states, a little tardily, perhaps, have followed suit, and many possess prisons imitating some of the best points of the British system. They long clung, however, to the old barbarous methods of punishment, such as short periods of detention with flogging, various kinds of fining, compensation to the relatives of murdered men, and mutilation in cases of grave robbery. A capital sentence was very rarely inflicted.

Gradually public opinion in India awoke to the belief that something more than mere penal detention was needed for the treatment of prisoners. Outdoor labour, chiefly employed hitherto, was deemed injurious to health and demoralising to discipline, entailing undue expense in staff and guards; and so employment within the walls was substituted, with organised industries and manufactures by hand and with the help of machinery. The work done includes the weaving of carpets, which have a certain value and reputation, and much cotton and other fibres are manufactured; and the prisoners work at printing, lithography and other useful trades. The rules for wearing irons and fetters have been revised, and a consistent attempt has been made at classification by separating the old habitual criminals from the less hardened offenders. The system of earning remission by industry and good conduct, as practised in the British prisons, has been introduced with good results. Sanitation and ventilation have been much improved, so that mortality has greatly diminished. Solitary confinement is enforced as a means of discipline, but the cellular separation of prisoners by night makes only slow progress, and the association of all classes, good, bad and indifferent has a generally injurious effect upon prisoners.

According to Sir Richard Temple's figures, there were in his time more than two hundred prisons in all India, exclusive of 386 lock-ups, and the daily average of inmates was 118,500, of whom only 5,500 were females. The annual number of crimes committed and charged was 880,000, and as more than one person is often concerned, the number of persons tried amounted to 970,000, of whom 550,000 were convicted, the balance being under trial or discharged. The labours devolving upon the police were obviously severe, and the prisons were always full.

Among the leading Indian prisons of to-day, one of the largest, the Ahmedabad gaol, was originally a Mohammedan college and was converted to its present purpose in 1820. Miss Mary Carpenter, who visited it in 1868, describes the gaol as follows: "It is a fine-looking building and near the citadel, but not of course well adapted to its present purpose, though the large space enclosed by the buildings gives it great capabilities of improvement. The first thing which struck us painfully was that the men had irons on their legs. This barbaric custom, which has long been exploded in our own country, is here preserved and is indeed general in India in consequence of the usual insecurity of the premises. The prisoners were working in large open sheds with little appearance of confinement. A number were occupied in weaving strong cotton carpets which appeared well calculated for wear. Others were making towelling of various kinds, very strong and good, from the cotton grown in the neighbourhood, while others were manufacturing pretty little cocoa mats and baskets. There was in general a criminal look in the culprits; they were working with good-will and appeared interested in their occupation, as in an ordinary factory. Except the chains, there was nothing of a penal description in the scene around us; and although this cheerful open place, with work at useful trades, might not give the intended feeling of punishment, still it was to be hoped that training these men to useful labour, under good moral influences, must have a beneficial influence on their future lives. On remarking this to the superintendent, he informed me that the salutary effect of the day's work under proper supervision was completely neutralised, or even worse, by the corrupting influences of the night.

"There are four hundred prisoners in this gaol, for whom the number of sleeping cells is totally inadequate and three or four are consequently locked up together in the dark for twelve hours. There is no possibility during this period of preventing communication of the most corrupting nature, both moral and physical. No man convicted of a first offence can enter this place—which ought to be one of punishment and attempted reformation—without the greatest probability of contamination and gaining experience in evil from the adepts in crime who are confined with him; no young boy can enter without his fate being sealed for life.

“Juvenile delinquents, casual offenders, hardened thieves sentenced to a long term of imprisonment, are all herded together without any possibility of proper classification or separation. The condition of the thirty-two whom I had seen at the court on the day before was even worse than the others; they were all penned up together without work. There they had been for many months; and still they all were without any attempt being made to give them instruction, which might improve their moral and intellectual condition. This state of things was not owing to any neglect on the part of the superintendent, a man of enlightened benevolence, who devoted himself heart and soul to his work. The conditions of this gaol are such that though able and willing to remedy all these evils if authority and means were given to him, under the existing circumstances he is powerless. There is ample room on the premises for him to construct separate cells for all the prisoners with only the cost of material, but this is not granted to him; he cannot therefore carry out the printed regulations that the prisoners are not to be made worse while in custody. The regulations direct that the juveniles shall be separated from the adults; this is now simply impossible. Rules are made that the prisoners shall receive instruction, but no salary is allowed for a schoolmaster; there is no place appropriated for instruction and no time is granted for schooling; there are ten hours for labour, two hours are requisite for meals and rest and during the remainder of the twenty-four hours the prisoners are locked up. It is indeed permitted by the regulations that some prisoners may be employed as instructors but with the proviso that their hours of labour shall not be abridged for the purpose. Such instructors could not be expected to exercise any good moral influence on the other prisoners; yet to commence with these, if any educated men were among them, might lead to some better arrangement. The old college hall might possibly be employed as a schoolroom for a couple of hours after sunset; but light would then be required and oil did not form a part of the authorised expenditure. There were, then, obstacles to any kind of instruction being imparted to the prisoners which no amount of earnestness on the part of the officials or the superintendent could surmount.

“On inquiring whether there were any females in the gaol, we were conducted to a small separate court where in a dismal ward there were some miserable women employed in drudgery work. There were no female attendants and indeed no attempt appeared to be made to improve their

wretched condition. I felt grieved and shocked that in any part of the British dominions women who were rendered helpless by being deprived of liberty, and thus fell under our special responsibility, should be so utterly uncared for as to be left under the superintendence of male warders and without any means of improvement. In all these observations I found that I had the full accordance of the superintendent; who, so far from being annoyed at the discovery of so many evils in this place, only rejoiced that some one should add force to his own representations by an independent testimony. He stated that he understood it to be in contemplation to build a large central gaol for the long-sentenced prisoners; the removal of these from his own gaol would of course remedy the overcrowding, though it would not enable each prisoner to have a separate cell. In the meantime the evils were very great from a sanitary as well as from a moral point of view. On one occasion more than a hundred had died owing to a want of good sanitary arrangements. Immediate attention to the condition of this gaol appeared therefore necessary. Considering this as a common gaol without long-sentenced prisoners, the following points suggested themselves as necessary to carry out the intentions of government. First, a number of well-ventilated sleeping cells should be constructed without delay, so as to enable every prisoner to have a separate cell for sleeping. Second, a trained and efficient teacher should be engaged to carry out instruction; arrangements should be made to provide a cheerful and well-lighted schoolroom. Educated prisoners may be employed as assistant teachers; these should be specially trained and instructed by the headmaster in their labour hours so as to provide as efficient a staff as possible. Third, the mark system and classification should be carried out. Fourth, prisoners awaiting trial should be kept in separation, but not under penal condition; the female department should be completely remodelled under female warders; all the advantages provided for the men should be given to the women.”

Mr. Routledge, speaking of the Alipore Gaol in Calcutta which he visited in 1878, says:—

“It contained 2,500 persons when I saw it, and with a few exceptions, as in the case of those undergoing punishment, all were employed in remunerative labour. There were masons erecting buildings, weavers making gunny-bag cloth of jute, a factory of jute-spinners, lithographers,

painters, carpenters, blacksmiths and many other classes of workmen, all engaged in task work. If they exceeded the task a small sum was carried to their credit to be paid to them on leaving gaol. An amusing story was told of a shrewd Yorkshireman who when sent out to “manage a jute mill” was faced by the reality of some hundreds of criminals not one of whom knew anything of the work. First he despaired; then he hoped a little; finally he succeeded and had a capital jute mill. Dr. Faucus, the governor of the prison, told me that the men they sent out with trades hardly ever had returned; and there was an instance of a man whose time had expired begging permission to remain a little longer in gaol to more completely learn his trade. It was to my view a humane and judicious system.

“Eighteen months later I visited the Presidency Gaol in Calcutta, and the governor, Dr. Mackenzie, kindly showed me the wonders of the place. We saw in the yard, ‘a mild Bengalee,’ whom flogging, short diet and even the dreaded solitary confinement had failed to compel to work. ‘He is one of the few prisoners who ever beat me,’ the governor said. A hundred or so of the prisoners were breaking stones; some were on the tread-mill, a frightful punishment under such a sun; some were mat-making, on very heavy looms. We came to a separate cell, the inmate of which was a loose-jointed, misshapen, weak-looking, thin-faced native man, apparently about twenty-five years of age, though he might, for anything one could judge, have been any age from eighteen to forty. ‘That,’ said the governor, ‘was one of the most daring and relentless Dacoits we have ever had.’ In a cell a few yards distant, there was a grave and venerable looking old man who had attained the very highest grade in a different profession—that of a forger. He had been convicted in attempting to obtain money from an officer—I think the head of the police—by means of a letter purporting to be written by Mr. Reilly, the well-known detective. The forgery was perfect, and no one would have disputed the letter but for one small mistake; the two initial letters of Mr. Reilly’s Christian name were transposed. This interesting old gentleman when questioned as to the amount of work he had done, put his hands together and gravely confessed that it was far short of the task. The governor spoke sternly and threatened short diet. Evidently the old artist was out of his vocation when attempting slow, patient work. When the same question was put to the Dacoit he pleaded pitifully, ‘Only four bags, but I’ll do forty to-morrow.’ Forty was the number required to be sewed per day.

“There were many wealthy natives among the prisoners; and I was sorry to find a number of English sailors and soldiers committed for deserting regiments or ships. It was impossible to look upon them as criminals. They were kept apart from the other prisoners. Some of them were very fine fellows, who probably never were in prison before nor would be again. Another class was that of the vagrants, termed ‘loafers.’ There were some very respectable looking men among them, ‘turned away from the railways,’ they said, or ‘brought from Australia in charge of horses and then dismissed’—the most prolific source of ‘loaferism’ in India.

“Six young native boys were separated from the rest. They had their own yard and each a little garden and a division of work. One was cook, another housemaid, and so on. They were drawn up in line and questioned, the cook first.

“‘What are you here for?’

“‘Murder; I struck another boy on the head and killed him.’

“‘And you?’

“‘Murder; I threw a child into a well.’

“The answers were given as if they had related to common matters. We went no further in the list. An Indian prison is marvellous for its mixture of races. The Hindu cannot eat with the Mussulman. To step inside a cookhouse is to defile it even for prisoners. Yet even Brahmins, old offenders, had been known to beg for the office of *mehtars* (sweepers, lowest menials), so great was their dread of the hard labour.

“What were called the ‘non-habituals’ were employed as at Alipore and taught trades where necessary. I noticed particularly an intelligent Chinaman busy at the lathe. I said, ‘He never gave you any trouble?’ ‘No; he was entrapped into a robbery, caught and convicted, and he immediately made the best of his position. He is a quiet, respectful, intelligent man.’ He spoke English like an Englishman. There were several Chinamen in the prison and all of the same class. We came to a long line of men, seated on the ground, engaged in hand spinning; the fourth from one end was old

Ameer Khan, the Wahabee. He was a tall man, I should say nearly seventy years of age, stout, with flabby cheeks, a rather fine forehead and an extraordinarily furtive eye.”

The trial of Ameer Khan, the Wahabee, caused a great sensation in the Indian law courts in the year 1870. The Wahabees were a sect founded by a young Arab pilgrim of Damascus, named Abd-el Wahab, who endeavoured to reform the Mohammedan faith by denouncing the corruptions that had crept in and by calling upon Mussulmans to “return to their primitive church with its simplicity of manners and purity of morals.” The movement spread into India, where it gained great success with the Sunnis, themselves puritans, but it was fiercely hated by the Mohammedans, who had deteriorated greatly under the English rule, and there was great danger of an insurrection. In 1858 Sir Sydney Cotton had stormed the stronghold of the Wahabees at Sittana and razed the villages of their allies to the ground. In 1869 the government received information that the Wahabees had issued a propaganda from Sittana and Patna which was to be spread throughout India, and again found it necessary to take steps to suppress the Wahabees. Among others, Ameer Khan, a Mussulman banker and money lender of Calcutta, was suddenly arrested in July, 1869, on no stated charge. He applied for a writ of habeas corpus, but was refused. He appealed to the Supreme Court, and then began the famous trial which lasted six months. In December Ameer Khan was released from Alipore gaol, but he was immediately rearrested, as it had been discovered that he had been apprehended by a warrant about which there was some question. He was then tried before a civilian judge at Patna, where the offences were alleged to have been committed, and was sentenced to imprisonment for life. He was found guilty of acting as agent and supplying money for the Wahabee propaganda.

The religious tenets of the Wahabees are still professed by many of the Arabs and are admitted to be orthodox by the most learned of the ‘*ulamas*’ of Egypt. The Wahabees are merely reformers, who believe all the fundamental points of El-Islam and all the accessory doctrines of the Koran and the “Traditions of the Prophets;” in short, their tenets are those of the primitive Moslems. They disapprove of gorgeous sepulchres and domes erected over tombs; such they invariably destroy when in power. They also

condemn as idolaters those who pay peculiar veneration to deceased saints; and even declare all other Moslems to be heretics for the extravagant respect which they pay to the prophet. They forbid the wearing of silk, gold ornaments and all costly apparel, and also the practice of smoking tobacco. For the want of this last luxury they console themselves in some degree by an immoderate use of coffee. There are many learned men among them, and they have collected many valuable books, chiefly historical, from various parts of Arabia and from Egypt.

The Montgomery gaol in the Punjab, one of the largest in India, was recently visited by Captain Buck of the Indian army, and his description of the details of prison life there is exceedingly interesting.

Attached to the gateway are not only the prison offices, barracks for the warders and an armory, but a queer looking room where well-behaved prisoners may receive friends once in three months. The room is divided by bars into three parts. In the portion at one end the prisoner squats, his visitor stays in the part at the other end and a gaoler or assistant sits in the middle space, where he can make sure that no smuggling goes on or that no attempts at escape are made.

The prisoners become very clever and use all sorts of devices to smuggle in coins, tobacco, opium and other drugs and dice. They are allowed to wear their own shoes, but these are examined very carefully, for the soles are frequently found to be made of tobacco, four-anna pieces and other things than leather. "A common dodge," says Captain Buck, "among the prisoners for concealing coins and other small things is to make a receptacle in the throat by means of a leaden weight about the diameter of a florin and half an inch thick; this is attached to a string some six inches long, a knot in the end being slipped between two teeth to prevent it sliding down the throat. By holding the head in a particular position for some time every day, 'wagging' the weight about, and from time to time altering the length of the string, a pouch can be formed in the throat suitable for holding as many as fifteen rupees. The possessor of this strange 'safe' is able to put in and take out his treasure with facility, but it is exceedingly difficult to make a man disgorge the contents against his will, or even to find out whether he possesses the pouch at all without the use of the Röntgen rays."

The Montgomery gaol is as large as a small town, and contains two great enclosures surrounded by a high outside wall, three spaces at the back for work shops, a separate yard for the female ward and such other buildings as storehouses, pumping stations and granaries. All of the buildings are constructed of burnt brick, but the walls are made of sun-dried brick and are kept in repair and plastered by gaol labour. The menial work is performed by the prisoners, and caste prejudices have been consulted in apportioning this work to the different classes of prisoners. The lower castes do scavengering and general cleaning, while the dyer, washerman, barber, tailor, blacksmith and weaver are all, as far as possible, employed at their respective professions. Other prisoners who have worked at trades which the gaol does not afford are given work in the factories.

The factories are the most interesting part of the gaol at Montgomery. Carpets are made in many beautiful patterns. A carpet over fifty feet wide can be woven on the largest loom, and it is an interesting sight to see a row of twenty-five men engaged in pulling the threads from the many coloured balls of wool above their heads, slipping them into place and with a small curved knife cutting off the ends, pressing down the stitches with a wooden fork, and never making a mistake. The pattern is read out by convicts stationed behind a loom, sometimes from patterns, sometimes from books and often from memory. To the uninitiated these instructions are incomprehensible, for there is such a confusion of sounds that it is difficult to distinguish any one voice. The marvel of it is how each man knows what colours to use and where. Somehow or other, in spite of all the noise and confusion, dust and glare, these lovely carpets are produced. The ordinary woollen carpet costs from sixteen to twenty-four shillings a square yard, according to the number of stitches to the inch, but the prices range higher for specially selected wool, while the price of a silk carpet is almost a small fortune.

Another part of the factory contains the cloth looms. The weavers rig up their looms in the same manner as they would in their native villages, and consequently the yard appears to be in considerable disorder; "each weaver sits at his own little loom with his legs in a hole in the ground and flashes the spindle backwards and forwards, seldom wasting his time for fear he may not finish his day's job, and thus lose marks or fail to gain any. One

man, in training, has to complete nine yards of the duster-cloth, three-quarters of a yard wide, in a day; fifteen yards of blanketing four feet, eight inches wide, is another task; while a man working on a carpet, '*munj*-mat,' or cotton mat, has to work on a width of two feet and complete four inches, twelve feet and two feet respectively in one day." If a prisoner is able to do extra work he obtains marks and gains some remission from his sentence.

The dormitories contain curious looking long rooms with passages down the middle and on each side rows of couches made of hard baked mud. The prisoners are provided with blankets and mattresses made of rice straw, and they can be fairly comfortable. Even beds made out of such material have been diverted to other uses by the ingenious inmates. A convict is said to have made a pipe out of his bed. By hollowing out a place near the head of the bed and plastering it over, he made two holes, one to hold the tobacco and ashes, and the other to serve as a mouthpiece.

As an additional precautionary measure to prevent plague from entering the gaol, every prisoner who catches a rat and produces it alive is given a reward of ten marks. This is a distinct gain toward a shorter sentence, for twenty-four marks means one day's remission. It has been surmised, as the rats are very numerous in the gaol in spite of wire netting everywhere placed to keep them out, that either the warders arrange to bring them in or the prisoners maintain reserves for breeding purposes.

The cook-house is in the yard where the men are paraded. Two meals are served daily, one at 7.30 A. M. and the other after 5 P. M., but in addition a little parched boiled *gram* is given to each convict in the middle of the day, when there is a short recess from work. Besides the large *chupattis*, made of wheat and Indian corn, a few ounces of *dal* are served in the morning, and vegetables with condiments in the evening. All the vegetables and condiments are produced by the convicts in the large garden attached to the gaol.

It is said that no convict has ever gotten away altogether, but that those who manage to escape occasionally are always recaptured. As the gaol is situated in a large desert, tracking the runaways is comparatively easy. On one occasion, a man was apparently missing at evening roll-call. For considerable time his identity could not be ascertained, but after a thorough

search and re-checking, it was remembered that a murderer had been hanged that day, and the officials had failed to strike his name from the roll.

The hospital is exceedingly clean and well kept. The routine of the gaol generally runs smoothly, and the character of the treatment and discipline in this typical prison of India will bear comparison with that in many institutions of a like kind at home and abroad.

Some of the local gaols in India are worth a passing mention. A good specimen was that of Sirsah on the confines of the Bikaner desert. Colonel Hervey visited it and speaks of it as a model gaol. He says, "Its lofty walls are shielded by a covered way running round its top. It has an outer and an inner ditch at the foot of the walls, and upward-sloping towers at its four corners, resembling the castles of a chess-board. The prisoners in it were warmly clothed and looked sleek, and being told off to healthful although hard labour, they ate with eagerness their diet of curried meat, curried *shorwah*, or soup, and wheaten cakes. This was served out to them plentifully while I was there. They sat down on the ground in lines without reference to castes, and all promiscuously partook of the food set before them. I was astonished at this, for there is generally so much difficulty in the matter of food, owing to caste prejudices."

Another interesting native gaol is that of Orissa, visited by Sir William Hunter in 1872. He says: "It consisted of a courtyard with low thatched sheds running round three sides and the guard-house on the fourth. The shed roofs came so low that a child might have jumped on to them and thus got over the wall. When the guard turned out, moreover, we found it to consist of two very old men; and the Maharaja was rather displeased to find that one of them had his matchlock under repair at the blacksmith's, while the other had left his weapon in his own village, ten miles off, to protect his family during his period of service at court. Inside were sixty-nine prisoners, and I asked how it came that they did not, under the circumstances, all jump over the wall? The question seemed to strike the Maharaja as a particularly foolish one. 'Where could they go?' he said. 'On the rare occasion that a prisoner breaks gaol, it is only to pay a visit to his family; and the villagers, as in duty bound, return him within a few days.' The truth is that the family instinct is still so strong in the tributary states

that imprisonment, or even death itself, seems infinitely preferable to running away from kindred and home. There were no female prisoners, and the Maharaja stated that crime among women had not yet penetrated his country.

“I found the gang divided into two sections, each of which had a shed to itself on the opposite sides of the court, the shed of the third side being set apart for cooking. The one shed was monopolised by ten men whose light complexion declared them to belong to the trading class and who lolled at great ease and in good clothes in their prison house. In the other shed the remaining fifty-nine were crowded, packed as closely as sardines and with no other clothing except a narrow strip round their waist. On expressing my surprise at this unequal treatment and asking whether the ten gentlemen who took their ease were confined for lighter crimes, the Maharaja explained: ‘On the contrary, these ten men are the plagues of the state. They consist of fraudulent shop-keepers who receive stolen goods, and notorious bad characters who organise robberies. The other fifty-nine are poor Pans and other jungle people imprisoned for petty theft, or as the tools of the ten prisoners on the opposite side. But then the ten are respectable men and of good caste, while the fifty-nine are mere woodmen; and it is only proper to maintain God’s distinction of caste.’ All the prisoners were in irons except one, a lame man, whose fetters had been struck off on the report of the native doctor. They looked very fat and comfortable, as indeed they well might considering that the sixty-nine prisoners have an allowance of a hundred pounds of rice per diem, with goat’s flesh once a fortnight, fish twice a month, besides the little daily allowance of split peas and spices to season their food. It did not seem to have occurred to any of them to feel in the least ashamed on account of being in gaol. One of them had been imprisoned twice before, and on my asking him what his trade was he explained that the younger brothers of his family were husbandmen, but that for his part he nourished his stomach by thieving.”

No European country can show anything like the immunity from crime which the worst district in Orissa enjoys. In Balasor, the proportion of persons in gaol is one to every 3,375 of the population, or one female to every 121,278 of the population. Puri district, however, the seat of the so-called “abominations of Jagannath,” would blush to own such an

overwhelming criminal population. Including both the central and the subdivisional gaols, the proportion is one criminal always in prison to every six thousand of the population and one woman to every hundred thousand.

The gaol is a great institution in Indian and Burmese stations. Your syce breaks the shaft of your dogcart; send it round to the gaol to be repaired. New matting is wanted for the veranda; you can get it in the gaol. You want a piece of furniture; whether it be a wardrobe or a whist table, you will find what you require in the gaol workshop, and if there does not happen to be one ready, you can order it to be made. They take a longer time to do it than free artisans, but you can depend upon sound material, good workmanship and reasonable prices; so the gaol industries flourish and the cost of supporting the criminal classes falls with comparative lightness upon taxpayers.

CHAPTER II

THE CRIME OF THUGGEE

Difficulties experienced in administering justice—Perjury common—Native officers delight in torture—Various devices used to extort evidence—Characteristics of the Indian criminal—Crime hereditary—Thugs' method of strangling victims—Facilities afforded by the nature of the country—The river Thugs—Suppression of Thuggee gangs and their operations.

Crime in India does not differ essentially from that prevalent elsewhere, although some forms are indigenous to the country, engendered by special physical and social conditions. As a rule, the people of India are law abiding, orderly and sober in character, but there is an inherent deceitfulness in them that tends to interfere with the course of justice. This is constantly seen in the untrustworthy evidence so often given in court. Witnesses are either reticent or too fluent; they will conceal facts or over-colour them according as it serves their interests; they can be bought, or intimidated, or easily persuaded. It has been said of India that perjury is the rule and not the exception; it is a country in which no man desires to tell the simple truth or the whole truth, where exaggeration is perfectly natural and mendacity revels in the incredible minuteness with which false statements are made, so perfect indeed as to cast discredit on them at once when heard. Perjury has long been a flagrant evil thwarting the administration of justice, and is still frequent, although likely to decrease as social standards improve. The people chafe at police investigation which worries and irritates them and will say almost anything if it will rid them of the attentions of the officers of the law. "They would condone even grievous wrongs," says Sir Richard Temple, "disavow the loss of property which they had suffered, and withhold all assistance from their neighbours in similar plights, rather than undergo the trouble of attending at police offices and criminal courts." In the old days police methods for the detection and proof of crime were often

reprehensible. Native officers were ever eager to make a case complete and would go to any length in colouring and creating evidence. An eminent judge in India found great fault with the police who “would never leave a case alone, but must always prepare it and patch it up by teaching the witnesses to learn their evidence beforehand and to say more than they knew.” A village official would be so eager to succeed when others had failed that he would threaten and maltreat the witnesses till they invented merely imaginary evidence. It was the frequent custom to drug prisoners about to be charged so that they could make no defence, and when evidence was wanting, the witness was subjected to actual torture until he promised to depose as required.

This use of torture, secret and unavowed, for the purposes of the prosecution, prevailed until a recent date. Disgusted English officers vainly sought to check the pernicious practice, which was common throughout India among all sects and classes, though strictly forbidden by law. According to one authority, “The poor practise torture on each other, robbers on their victims; masters upon their servants; zemindars on their ryots; schoolmasters on their pupils; husbands on their wives and even parents on their children.” “The very plays of the populace,” says another, “excite the laughter of many a rural audience by the exhibition of revenue squeezed out of a defaulter, coin by coin, through the appliance of familiar provocatives.” Some of these as employed by the old police consisted of such devices as filling the nose and ears of a prisoner with cayenne pepper, checking the circulation of the blood with tight ligaments, suspending a person head downward in a well and sometimes immersing the whole body in deep water until insensibility but not actual drowning was caused.

Other processes are recounted by Dr. Cheevers. Torture by heat consisted in applying to the naked flesh a lighted torch, burning charcoal or red hot tongs, or by pouring boiling oil into the ears or nose. Torture by cold was inflicted by exposure of the victim naked in the night air and constantly sprinkling the body with freezing water. Other methods were: suspension by the ears, wrists, feet, hair or moustache, generally accompanied by severe beating with rods, wet stinging nettles, bunches of thorns, or cudgels of split bamboo; confinement in a cell containing quicklime; rubbing the face on the ground so that the nose was wounded, the lips torn and the upper jaw

fractured; fastening offensive and gnawing insects under cover upon the skin; sticking pins under the nails; beating the ankles and other joints with a soft mallet. The bull's hide torture showed devilish ingenuity. The victim was sewed up in a newly flayed skin and exposed to the torrid sun. The outer covering contracted with the heat, drawing the live flesh with it, and the poor agonised creature died gradually of hunger, thirst and putrefaction.

Milder tortures, as they were deemed, existed, in which the punishment was more gradual but not less acute. Roasting by exposure to sun or fire, running up and down or "walking about," a process in which relays of policemen keep a culprit on the move for hours and hours together, so that, after a night's unbroken promenade, the craving for rest and sleep becomes intolerable, especially with people accustomed to sleep for twelve or fourteen hours at a stretch. The prolonged use of the stocks was at one time very general in Bengal, sometimes with the limbs enclosed in small apertures too tight for them, or when the victim lay on his back with his feet raised high in the air for a period of twenty-four hours.

Indian criminal annals record many curious forms of crime more or less peculiar to the country, and it will be interesting to specify some of the best known. Many are as old as the hills and are directly traceable to the innate character and distinguishing traits of the various races that people the great peninsula of Hindustan. There is a family likeness in the offences against morality and the rules generally binding upon the community at large, but some are encouraged and facilitated by the condition and organisation of the daily life of the people. Profound observers have penetrated to the darker and deeper recesses of the criminal mind of the native, both Hindu and Mussulman. Under the often placid, timid, civil-spoken and seemingly harmless native there lies a strange but potent combination of sensuality, jealousy and vindictiveness, backed by wild, ineradicable superstition, absolute untruthfulness and ruthless disregard for the value of human life. This is especially true of the Bengali, whose character has been powerfully portrayed by Lord Macaulay. A feeble, effeminate creature of sedentary pursuits, with delicate limbs, and without courage, independence or veracity, he is full of tact, ready with large promises, smooth excuses, elaborate tissues of circumstantial falsehood. With all his softness, he is by

no means placable in his enmities or prone to pity, but is pertinacious in his purposes and dominated only by the immediate pressure of fear.

Custom has been largely the parent of crime in India, and nowhere has heredity exercised greater influence. A large proportion of offences in India are committed by persons whose ancestors have done the same for centuries. Strong belief in the strength of family tradition and the potency of inherited traits and tendencies have long filled the Indian gaols. To these causes we must trace the vitality of certain crimes; we find in them the explanation of persistent gang-robberies, “Dacoity,” the drugging and poisoning of travellers, the kidnapping of children, the forgery, the forest frauds, the infanticide and secret murders; the whole series of offences against which is directed the penal code of India, originated by Lord Macaulay and praised by the highest experts, including Sir James Stephen, as the best system of criminal law in the world.

When England’s work in India is reviewed in the time to come, full credit must be given to the humane administration which sternly suppressed the atrocious malpractices that so long afflicted the land, such as “Suttee,” or the burning of widows on the funeral pyre; the human sacrifices to the bloodthirsty idol of Jagannath; “Thuggee,” that vile organisation for secret murder which devastated the entire continent and killed so many unsuspecting victims. No more terrible and widespread crime has obtained in any age or country. It was fostered by the prevailing conditions in a vast extent of territory, divided among many princes and powers, each ruling independently and irresponsibly, with many kinds of governments, and with their hands one against the other, having no common interests, no desire for combination, no united police, no uniform action in the repression of determined wrong-doing. Everything conspired to favour the growth of these daring and unscrupulous land pirates.

There were no roads in those early days, no public conveyances, no means of protection for travellers. The longest journeys from one end of the continent to the other were undertaken of necessity on foot or on horseback; parties hitherto complete strangers banded together for common security, and mixed unreservedly with one another. The avenues of communication were at best mere tracks barely beaten down by the passage of wayfarers

across country and not always easily distinguished, so that it was possible to wander into by-paths and get lost among the forests, jungles, mountains and uncultivated tracts where but few sparsely inhabited villages were scattered. Direct encouragement was thus afforded to freebooters and highwaymen to make all travellers their prey, and many classes of robbers existed and flourished. Of these the most numerous, the most united, the most secret in their horrible operations, the most dangerous and destructive were the Thugs.

The origin of Thuggee, as it was commonly called, is lost in fable and obscurity. Mr. James Hutton, in his popular account of the Thugs, thinks that they are of very ancient date and says they are “reputed to have sprung from the Sagartii who contributed eight thousand horse to the army of Xerxes and are mentioned by Herodotus in his history. These people led a pastoral life, were originally of Persian descent and use the Persian language; their dress is something betwixt a Persian and a Pactyan; they have no offensive weapons, either of iron or brass, except their daggers; their principal dependence in action is on cords made of twisted leather which they use in this manner. When they engage an enemy they throw out this cord having a noose at the extremity; if they entangle in this either horse or man, they without difficulty put them to death.” There is some reason to believe that in later times the descendants of these Sagartii accompanied one of the Mohammedan invaders to India and settled in the neighbourhood of Delhi. In the latter part of the seventeenth century Thevenot speaks of a strange denomination of robbers who infest the road between Delhi and Agra and who use “a certain rope with a running noose which they could cast with so much sleight about a man’s neck when they are within reach of him, that they never fail; so that they strangle him in a trice.” These robbers were divided into seven principal classes or families from which the innumerable smaller bands sprang.

Sir William Sleeman, a distinguished Indian official, whose signal services in purging a large part of India of this terrible scourge must ever be gratefully remembered, has conjectured that the first Thugs were to be found among the vagrant tribes of Mohammedans who continued to plunder the country long after its invasion by the Moguls and Tartars. No historical mention is made of Thuggee until the reign of Akbar, when many of its

votaries were seized and put to death. From that period until 1810, although known to some of the native princes, who alternately protected and persecuted these criminals, it entirely escaped the observation of the British rulers of India. But attention was finally attracted to it by the strange disappearance of sepoy, or native soldiers in the British service, when moving about the country on furlough. In 1812 a British officer, Lieutenant Monsell, was murdered by Thugs. A punitive expedition was immediately sent against the village where the assassins were known to reside, and the culprits, after some show of resistance, were ultimately dispersed. No doubt the fugitives took with them their traditions and their homicidal principles into new lands where they were probably unknown hitherto. As early as 1816 the veil of secrecy which had concealed the organisation was lifted, and a very complete and accurate account of the ceremonies and practices of the Thugs in southern India was published by Dr. Sherwood in the *Literary Journal* of Madras. It is supposed that the horrible story told was deemed too monstrous for belief, and it is at least certain that no active measures were undertaken to suppress and root out the offenders.

At all times many hundreds of predatory castes existed in India, chiefly among the marauding hill and forest people, and some of them are still recorded by name in the census papers. These people lived openly by plunder, and were organised for crime, and for determined gang-robbery and murder. There was no established police in those days equal to coping with these gangs, and the government of the East India Company had recourse to the savage criminal code of the Mohammedan law. When Warren Hastings was governor-general, he decreed that every convicted gang-robber should be publicly executed in full view of his village, and that all of the villagers should be fined. The miscreants retaliated by incendiarism on a large scale. One conflagration in Calcutta in 1780 burned fifteen thousand houses, and some two thousand souls perished in the flames. A special civil department was created to deal with this wholesale crime, the character of which is described in a state paper dated 1772. "The gang-robbers of Bengal," it says, "are not like the robbers in England, individuals driven to such desperate courses by want or greed. They are robbers by profession and even by birth. They are formed into regular communities, and their families subsist on the supplies they bring home to them. These spoils come from great distances, and peaceful villages three

hundred miles up the Ganges are supported by housebreaking in Calcutta.” Special laws were passed to deal with the crime of Dacoity or robbery in gangs to the number of five or more.

By this time the word “Thuggee” was becoming known and was applied to the practice of “strangling dexterously performed by bands of professional murderers disguised as pilgrims or travelling mendicants.” These hereditary assassins prided themselves on their descent and their evil reputations, which inspired an amount of awe in their fellow countrymen hardly distinguishable from respect. “Yes, I am a strangler,” one of them shamelessly told an English officer. “I and my fathers before me have followed the business for twenty generations.”

These Phansigars, or “stranglers,” were thus designated from the Hindustani word *phansi*, “a noose.” In the more northern parts of India these murderers were called Thugs, from the Hindu word *thagna*, “to deceive.” Europeans became aware of the existence of this class of criminals with the conquest of Seringapatam in 1799, when about a hundred were apprehended in the vicinity of Bangalore. Little attention, however, was attracted to these depredators for a long time; they carried on their abominable practices under the protection of different native rulers and local authorities, with whom they shared their spoils. But we read that, with the extension of British rule and the subjection of the native rulers, active measures were set on foot to suppress these professional murderers, who found it necessary to engage ostensibly in agriculture or some other harmless occupation so as to conceal their real business. One characteristic of the Phansigars was that they never committed a robbery unaccompanied by murder, their practice being first to strangle, then to rifle their victims. It was also a principle with them to allow no one of a party, however numerous, to escape, so that there might be no witnesses of their proceedings; the only exceptions to this were in the case of boys of very tender age, whom they spared and adopted in order to bring them up as Phansigars, and girls whom they sometimes married. A gang of Phansigars consisted of any number from ten to fifty men, or even more, a large majority of whom were Mussulmans, but Hindus were often associated with them, and occasionally Brahmins.

In common with brigands of all nationalities, the Thugs generally frequented districts abounding in hills and fastnesses which afforded a secure retreat in times of danger. Particular tracts were preferred where they could murder their victims with the greatest security. They lurked by the way in the extensive jungles which offered cover and concealment, and where the soil was soft and easily turned up for digging graves. The Thugs cherished pleasant memories of these happy hunting grounds so often associated with their successes. To reach the scene of action they often performed long journeys and were absent from home for many months at a time. Their game was almost invariably travellers whom they encountered on the road, or for whom they frequently laid in wait outside towns and villages at the ordinary resting places. Their method was to send scouts into the town to find out whether persons of property were likely to be setting out on journeys and with what possessions. Children were often employed in this way. Each gang of Thugs was under a *jemadar*, or chief, who directed their movements; they very seldom assumed any disguise, but had the appearance of ordinary travellers or traders. They generally put an end to their victims in the same manner, that of strangling, and it was the custom to assign three of them to perform this deed. While moving along quietly, one of the Thugs would suddenly throw a cloth around the neck of the person doomed to death and retain hold of one end of it while the other end would be seized by the second accomplice; this was then drawn tight, the two Phansigars pressing their victim's head forward, and at the same time the third villain, in readiness behind the traveller, seized his legs, and he was thrown to the ground and despatched. Meanwhile, other members of the gang kept watch in advance and in the rear to prevent interference; if they were disturbed during their operation, a cloth was thrown over the victim, and the company pretended that one of their comrades had fallen sick by the roadside, and made great lamentations. The bodies of the victims were carefully buried so as to escape observation and leave no clue for detection.

In the early part of the nineteenth century the audacity and murderous activity of the Thugs increased to such a fearful extent that the British government was roused to serious consideration. It could not remain indifferent to an evil of such magnitude. Startling cases began to crop up and disturb the equanimity of the official mind. One of the first revelations

was secured in 1814 by an officer, Lieutenant Brown, when appointed to investigate the circumstances of a murder in the northern part of the province of Central India, at no great distance from Jubbulpore, a city closely connected with Thuggee from the subsequent trial and incarceration of a large number of the ringleaders in the Jubbulpore gaol. Mr. Brown, when engaged in his inquiry at a village named Sujuna, on the road to Hatta, heard a horrible story of a gang-robbery in the neighbourhood. A party of two hundred Thugs had encamped in a grove in the early morning of the cold season of 1814, when seven men, well-armed with swords and matchlocks, passed, conveying treasure from a bank in Jubbulpore to its correspondent in Banda. The treasure was ascertained to be of the value of 4,500 rupees, and a number of Thugs, well-mounted, gave chase. Coming up with their prey at a distance of seven miles, in a water course half a mile from Sujuna, they attacked the treasure-bearers with their swords, contrary to their common practice of strangling their victims, the latter plan being possible only when the objects of their desire were taken unawares. Moreover, the robbers left the bodies where they lay, unburied and exposed, which was also an unusual proceeding. A passing traveller, who had seen the murderers at work, was also put to death to prevent his giving the alarm. As much rain fell that day, none of the villagers approached the spot till the following morning, when the bodies were discovered and a large crowd came to gaze at them. Great difficulty was experienced in bringing home the crime to its perpetrators. This often happened in such cases from the strong reluctance of people to give evidence and appear in court for the purpose; even the banker who had lost his cash hesitated to come forward and prove his loss, and this was no isolated case. Once before, the wood at Sujuna had been the rendezvous of robbers, who had slaughtered a party of treasure-bearers travelling between Jubbulpore and Saugor. Sixteen were strangled, but the seventeenth escaped with his life and running into the town, gave the alarm. The native rajah, at that time supreme, hurried to the spot, but only came upon the bodies abandoned by the thieves, who had made off with the treasure.

These depredations were greatly facilitated by the prevailing practice of transmitting large amounts of cash and valuables from place to place by hand. Remittances were made in gold and silver to save the rate of exchange, although an admirable system of transfer by bank bills was

almost universal in India. Money carriers by profession were to be met with in all parts of India, who were trusted by merchants to convey to distant parts enormous sums in cash and large parcels of jewels; their fidelity, sagacity and poverty-stricken appearance, natural or assumed, were relied upon as a sufficient security, and it was attested by Sleeman that although he had to investigate hundreds of cases in which they had been murdered in the discharge of their duty, he had never heard of one who betrayed his trust. The sums secured by the Thugs, after murdering these faithful but unfortunate servants, were immense, and amounted in the few years between 1826 and 1830 to hundreds of thousands of rupees. They could not escape their fate, being constantly watched and spied upon, and were often brought to light by customs officers in the native states, from whom the lynx-eyed, keen-witted Thug spies gained much information to assist in their robberies.

The discovery of this extensive organisation for murder was greatly aided by the fearful disclosures made by some of the captured leaders. The most noted of these informers was a certain Feringhea, who is supposed to have been the original of the character of Ameer Ali, the principal person and narrator in Colonel Meadows-Taylor's "Confessions of a Thug." He had fallen into the hands of the famous Captain Sleeman, then the political agent of the provinces bordering on the Nerbudda, by whose untiring energy the whole system of Thuggee as then practised was laid bare. Through his efforts large gangs were apprehended which had assembled in Rajputana to pursue their operations in that country, and among the great numbers committed to safe custody in the various gaols, especially that of Jubbulpore, precise information was obtained leading to the breaking up of the diabolical conspiracy. It was then found that Thuggee was actively practised throughout India. The circle, which seemed at first centred about Jubbulpore, gradually widened until it included the whole continent, from the foot of the Himalayas to the waters that wash Cape Comorin. From the Gulf of Cutch to the tea plantations of Assam, every province was implicated, and the revelations of the informers were substantiated by the disinterment of the dead.

Sir William Sleeman has left a personal record of his own achievements. "While I was in the civil charge of the district of Nursingpoor, in the valley

of the Nurbudda, in the years 1822, 1823 and 1824,” he tells us, “no ordinary robbery or theft could be committed without my becoming acquainted with it; nor was there a robber or a thief of the ordinary kind in the district, with whose character I had not become acquainted in the discharge of my duty as magistrate; and if any man had then told me that a gang of assassins by profession resided in the village of Kundelee, not four hundred yards from my court, and that the extensive groves of the village of Mundesur, only one stage from me, on the road to Saugor and Bhopaul, were one of the greatest *beles*, or places of murder, in all India; and that large gangs from Hindustan and the Dukhun used to rendezvous in these groves, remain in them for days together every year, and carry on their dreadful trade along all the lines of road that pass by and branch off from them, with the knowledge and connivance of the two landholders by whose ancestors these groves had been planted, I should have thought him a fool or a madman; and yet nothing could have been more true. The bodies of a hundred travellers lie buried in and around the groves of Mundesur; and a gang of assassins lived in and about the village of Kundelee while I was magistrate of the district, and extended their depredations to the cities of Poona and Hyderabad.”

Similar to the preceding account, as showing the daring character of the Thuggee operations, was the fact that in the cantonment of Hingolee, the leader of the Thugs of that district, Hurree Singh, was a respectable merchant of the place, with whom Captain Sleeman, in common with many other English officers, had constant dealings. On one occasion this man applied to the officer in civil charge of the district, Captain Reynolds, for a pass to bring some cloths from Bombay, which he knew were on their way accompanied by their owner, a merchant of a town not far from Hingolee. He murdered this person, his attendants and cattle-drivers, brought the merchandise up to Hingolee under the pass he had obtained and sold it openly in the cantonment; nor would this ever have been discovered had he not confessed it after his apprehension, and gloried in it as a good joke. Many persons were murdered in the very bazaar of the cantonment, within one hundred yards from the main guard, by Hurree Singh and his gang, and were buried hardly five hundred yards from the line of sentries. Captain Sleeman was himself present at the opening of several of these unblest graves (each containing several bodies), which were pointed out by the

“approvers,” one by one, in the coolest possible manner, to those who were assembled, until the spectators were sickened and gave up further search in disgust. The place was the dry channel of a small water course, communicating with the river, no broader or deeper than a ditch; it was near the road to a neighbouring village, and one of the main outlets from the cantonment to the country.

Some of the operations in which Thugs were concerned, and the nature of their proceedings, are of especial interest. In the year 1827, Girdharee Thug joined a gang of seven Thugs under Bukshee Jemadar ... and set forth on an expedition. The party proceeded to Cawnpore where they were joined by Runnooa Moonshee with nine Thug followers, so that the gang amounted to eighteen Thugs, who all went on to Pokraya. At this place they fell in with two travellers going from Saugor to the Oude territory, who were decoyed by Runnooa Moonshee, and the next morning, having been escorted about a couple of miles towards Cawnpore, they were strangled by two Thugs, Oomeid and Davee Deen, who buried the bodies in the bed of a stream. After this the gang proceeded on the road leading to Mynpooree, as far as Bewur, where they found a Kayet on his way from Meerut to the eastward, who was decoyed into joining the company of the Thugs. After passing the night together, the traveller was taken to a garden a short distance from the village, where he was induced to sit down and was then strangled, his body being thrown into a well. They went on to Sultanpoor and Mynpooree, where the number of the gang was increased to twenty-one by three more Thugs who joined them. The gang advanced on the same road as far as Kurkoodda in the Meerut district, but meeting with no success in their search for victims, they turned back toward Malagurh, and on arriving there sent one of the gang as a scout into the town. He discovered two travellers, a Brahmin and a Kuhar, who were proceeding from Kurnal to the Oude territory, and whom he persuaded to join the Thugs. Early the following morning the Thugs escorted these travellers about two miles beyond the village, where they were strangled and their bodies buried. After this affair the gang passed through Boolund Shuhur and stopped to rest at a police station two miles from the town. A Chuprassee from Meerut passed by on his way to Cawnpore. The Thugs addressed him and persuaded him to join their band, and they all went to Koorja, where they rested for the night in a caravansary. Long before daylight the gang, accompanied by the traveller,

proceeded on the road to Muttra, and on the way one of the company found an opportunity to strangle the Chuprassee.

The band next went to Secundra and while halting there decoyed two Brahmins travelling from Kurnaul toward Lucknow. Runnooa Moonshee took them under his own protection, and the next morning they were escorted in an easterly direction and strangled. The bodies were thrown into a dry well and the earth heaped over them. After this murder, the gang went to Jullalabad, where they rested in the caravansary; and finding that two travellers, a Brahmin and a Rajpoot, had previously put up in the same place, a Thug was deputed to decoy them by inviting them to join the band; the travellers agreed, and were put to death in the usual manner and their bodies buried. In this way the expedition proceeded for some weeks, the gang was joined by other Thugs until it amounted to sixty in number; then it separated into two parties, each going in a different direction, but they joined forces again at Allahabad and commenced operations in the Cawnpore district. Twenty-seven of the Thugs quitted the gang and returned to their homes; the remainder went to Meetapore, where they met two travellers on their way to Agra, whom they decoyed into their company. Two more travellers were also persuaded to join the gang, and besides these four others were also inveigled, among them two rich persons who were staying in the same inn; the last named had engaged a carriage in which to continue their journey, but the Thugs, anxious to get into friendly relations, offered horses on more favourable terms. The proprietors of the carriage, enraged at this proposition, threatened to have the Thugs arrested, but the matter was arranged amicably and the travelling party, with their Thug attendants, proceeded on their way. Their fate was sealed, for on reaching a convenient spot in the Mynpooree district they were strangled and their bodies rifled. The alarm, however, was given soon afterward, and all the robbers were taken up by order of the British magistrate and lodged in gaol. It was found that in the course of this one expedition the Thugs had murdered fifty-two victims and gained spoil to the value of 5,000 rupees.

The Thugs did not confine their operations to attacking travellers on land. There were many gangs who worked on the rivers and kept their boats on the Nurbudda and Ganges, into which they decoyed passengers when bent upon their destruction. They resided chiefly in villages along the banks and

kept their boats at the principal ghats or points of passage, as at Monghyr, Patna, Cawnpore and as far up the river as Furuckabad. Their murders were always perpetrated in the day time. A certain number of them were employed as actual boatmen, wearing the dress and doing the work; others acted as decoys, having no connection seemingly, but arriving at the banks as well-dressed travellers, merchants or pilgrims bound for or returning from the sacred places such as Benares or Allahabad. In the meantime the *sothas* or “inveiglers” sent out by the gang to bring in passengers, being well dressed and respectable, would accost those they met upon the road and invite them to join in the voyage by river. The boats in waiting at the ghat were invariably kept clean and looked inviting, with other respectably dressed travellers awaiting the moment of departure. Often enough it was at first pretended to be inconvenient to take the newcomers on board, the captain alleging that he was short of room, but at last he would yield to the urgent request of the *sothas*, and the trusting passengers would be taken on board and accommodated below. After departure the disguised Thugs on deck would commence to sing and amuse themselves noisily until a quiet spot was reached, when the signal was given—the death-warrant in this case—by three taps upon the deck above. The victims below were forthwith strangled by the appointed stranglers, who were in close attendance upon their prey. After death had been inflicted the murderers proceeded to break the spinal bones of their victims by placing a knee in the back and pulling over the head and shoulders; this was to prevent all possibility of recovery. Then the bodies were stabbed through under the armpits and thrown overboard, while the boat made its way to the next ghat, where the “inveiglers” were landed to repeat their operations with others. No part of the booty was retained, lest it might form a clue to detection, except the cash found upon the dead or in their baggage. These river Thugs often ran the risk of being captured, but they were generally well known to the village watchmen on the river side, whom they were ready to bribe.

Their extraordinary audacity and the success with which they murdered their victims is recorded in the memorandum prepared in March, 1836, by an officer, Captain Lowis, who did much to bring them to justice. He speaks of repeated instances in which ten or a dozen persons were put to death by boats’ crews, hardly more numerous than their victims. In one case seven men were murdered at one and the same time by a crew of nine Thugs. The

victims were often men from the west country, notoriously stronger and braver than the natives of Bengal. Strange to say, the deadly business was often completed in small boats, in which there seemed too little room to move or plan the fell purpose unperceived. Frequently the Thug boatmen made friends with their victims, as in the case of a boat laden with tobacco and hemp, when the captain and crew persuaded their passengers to land on a sand bank to cook and eat their dinner together. After the meal, the Thug leader invited his friends to join in a song of praise to the Hindu divinity, and while it was being sung the Thugs adroitly got behind their victims and strangled them.

A shocking story was revealed in the trial of three Bengalis who were arraigned at Berhampore on suspicion of having committed Thuggee. It appeared that one of them, Madhub by name, had arrived at the Serai with a large sum of money in the hollow of a joint of bamboo; two others, Gunga Hurree Mitter and Kunhayee, quickly came upon the scene in pursuit of the first whom they accused of having stolen the money from their boat. Madhub retorted that they were Thugs and wanted to murder him. This squabble excited suspicion and ended in the arrest of all three. Within a few days two Bengali boats, full of suspicious characters and laden with much money and property, were seized between Monghyr and Patna and news came that four travelling merchants had recently disappeared. It was strongly suspected that these merchants had been murdered and great efforts were made to obtain a clue to the guilty parties. Gunga Hurree Mitter, above mentioned, seemed willing to turn approver, and although stoutly denying that he was concerned in this particular crime he at length confessed to complicity in many frightful murders as a river Thug and admitted as many as fifty murders between Moorshedabad and Barr, where the boats had been seized. About this time another very notorious Thug was arrested in the Burdwan district who volunteered valuable information in exchange for his life and confessed to being an accomplice in the murder of the merchants.

Accounts of such affairs, as found in contemporary records, might be multiplied indefinitely. Colonel Sleeman's report of the Thug depredations for a year or two when they were most virulent—1836-37—fills one large volume. On a map which he made of a portion of the kingdom of Oude, showing a territory one hundred miles wide from north to south, and one

hundred and seventy miles from east to west, are marked an endless number of spots between Lucknow, Cawnpore, Manickpur, Pertabgurh and Fyzabad, all of them indicating *beles* or scenes of murders perpetrated. These places were pointed out by captured Thugs and “approvers” who had been actively present and taken part in the murders. There were some 274 *beles* in all, or one for about every five miles; the fact was proved by the continual disinterment of skulls and skeletons of the often nameless victims. Each recorded great atrocities and many wholesale murders. The number of deaths for which each Thug miscreant was personally responsible seems incredible. One man, Buhran by name, killed 931 victims in forty years of active Thuggee, and another, Futteh Khan, killed 508 persons in twenty years, making an average of two monthly for each assassin.

When the British government was roused to the determination to suppress Thuggee, nearly every village was tainted with the system and no district was without its resident gangs of Thugs, or free from their depredations. The campaign once undertaken was prosecuted with extraordinary vigour, and the pursuit organised was so keen that very rapid progress was made in putting down this terrible scourge. Whole gangs were arrested, one after the other; the ringleaders were quickly tried and executed, or bought their lives at the price of informing against and contributing to the capture of their fellows. Difficulties often arose in securing conviction. Fear kept witnesses from testifying; bankers were reluctant to acknowledge their losses; relations were loth to identify corpses; and the revelations made by the approvers could not always be corroborated. But the work of extermination never slackened, and a few short years sufficed to put down the seemingly hydra-headed evil. It is possible that some more distant and inaccessible regions escaped, such as the Concan or Malabar coast, to which the gangs never penetrated; and gangs were not permanently located in such districts as Khandeish and Rohilcund; but they were visited by robbers from other neighbourhoods, for a gang generally avoided a district occupied by their own families and friends. And the tide of murder swept unsparingly year after year over the whole face of India from the Himalayan mountains in the north, to the east, west and south as far as the most remote limits of Madras.

CHAPTER III

CEREMONIES OF THUGGEE

Murder a religious rite—Consulting the omens—The sacred pickaxe or “kussee”—The “goor” or consecrated sugar—Certain castes under the protection of the goddess Bhowanee spared—Women seldom killed—Belief of Thugs that the neglect of omens and murder of women were the causes of arrest and downfall—The apprenticeship of a young member to the practices of Thuggee.

When and how Thuggee began may not be definitely known, but it is certain that its votaries always attributed a divine origin to the practice. They esteemed the wholesale taking of life to which they were vowed a pious act, performed under the immediate orders and protection of the Hindu goddess, indifferently called Degee or Durga, Kali or Bhowanee. Murder was in fact a religious rite, the victim being a sacrifice to the deity. The strangler was troubled with no remorse; on the contrary, he gloried in his deed as the pious act of a devout worshipper. He prepared his murders without misgiving, perpetrated them without emotions of pity, and looked back upon them with satisfaction, not regret.

The Thugs gave free vent to some of the worst passions of perverse humanity; they were treacherous, underhanded, pitiless to those they deemed their legitimate prey. But yet they were seldom guilty of wanton cruelty; the pain they inflicted was only that caused by depriving a human being of life. It was a rule with them never to murder women, and they generally spared infant children whom they adopted, bringing them up in their traditions. Even if a woman was doomed to suffer she was most scrupulously preserved from insult beforehand, either by act or word. In private life they were patterns of domestic virtue, affectionate to their own families, fond of their homes; well conducted, law abiding subjects of the state that gave them shelter.

For two centuries at least Thuggee flourished with rank luxuriance in India, a soil exactly suited to its growth, fostered by the bigoted adherence to its tenets and a firm faith in the rewards vouchsafed to close observance of its rites and ceremonies. The Thugs were noted formalists in the performance of their dread business. When they went out to kill, they were governed by the strictest rules of procedure, and steadfastly believed that the breach of any, even the smallest, would entail discomfiture and misfortune. They gave the most unlimited credence to superstitions, followed omens blindly and implicitly, and undertook nothing without consulting their pundits, or wise men versed in precedent and traditionary lore. No Thug, Sleeman tells us, who had been fully initiated in the mysteries, doubted the inspiration of the pickaxe (the sacred emblem in the faith of Thuggee), when consecrated in due form, or doubted that the omens sought and observed were all-sufficient to guide them to their prey or warn them from their danger. They were satisfied that only by the neglect of these and the careless worship rendered to the goddess could the suppression of Thuggee have become possible to the British government.

The most portentous omen was that invited from the deity on the eve of a new expedition for gang-robbery. When about to be undertaken, a chief pundit was asked to name a day for departure and the road to take. On the day suggested the *jemadar*, or leader of the party, would start out holding in his right hand the *lota*, a brass pot filled with water suspended by a string from his mouth; in his left hand he carried the sacred pickaxe and a clean white handkerchief in which were several coins. He proceeded a short distance along the road named by the pundit and then paused to pray to the “great goddess and universal mother” to vouchsafe some signal that the proposed expedition met with her approval. The best possible omen was the braying of an ass and if it was heard on the left, followed by a second bray on the right, it was believed that the expedition would be an entire and lasting success even if continued for years. The first, on the left, is called the *pilhaoo*; the second, on the right, the *thibaoo*. The terms are applied to the voices of any animals, but by far the most effective is deemed the braying of the ass, whose voice is equal to any hundred birds and superior to that of any other animal.

The initial ceremony, after the omen, proceeded by the leader's seating himself on the ground with the *lota* before him. He remained thus seated for seven hours while his followers brought him food and made the necessary preparations for the journey. If the *lota* should have fallen from his hand terrible disaster might be anticipated and the *jemadar* would inevitably die during the year. If any one was heard weeping as they left the village, great evil impended; the same threatened if they met a corpse being carried out, or if they met an oil vendor, a carpenter, a potter, a dancing master, a blind or lame man, a *fakir* with a brown waist band or a *jogi* with long ragged hair. A corpse from any village but their own was a good omen. The call of a jackal, of which there were three kinds, threatened great evil, and if at work the gang instantly quit the country leaving any victims marked down for slaughter untouched. The call of the lizard was a good omen, that of a wolf or a hare crossing the path, bad, entailing an immediate halt and change of route. If a dog was seen to shake his head operations had to be suspended for three days.

In all Thug ceremonies the sacred pickaxe or *kussee* played a great part. It was treated with the utmost respect and was so holy that to be sworn upon it meant an oath more binding than on Ganges water, and perjury on the pickaxe would entail the death of the foresworn within six days. The superstition was that the perjurer would die horribly, with his head turned round, his face toward his back, and writhing in tortures till the end came. The oath on the pickaxe was in use when the Thugs filled the gaols and it was made upon a piece of cloth fashioned in the shape of the *kussee*. A legend existed that the *kussee* was the gift of the goddess herself when she had been greatly incensed by the contravention of one of her laws. At first the Thugs did not trouble about the corpses of their victims but blindly left them for Kali's disposal. One day a slave looked back and saw her throwing them in the air, and in her rage the goddess condemned her votaries to bury their bodies themselves, digging the graves with the consecrated pickaxe. It was to be made by some blacksmith in the presence of the *jemadar*. The consecration follows a long ceremony, including many washings in water, sour milk and ardent spirits, and the pickaxe is first used to smash a cocoanut, the kernel of which is eaten by the assembled worshippers. The pickaxe was entrusted to the safe keeping of the *jemadar*.

When on the road it was carried by the most sober and careful man of the party. In camp he buried it in a secure place with its point toward the intended route, but they believed that when unearthed, if another direction was better, the point would be found supernaturally changed. It was at one time the rule to throw the pickaxe down a well at the nightly halt, and many witnesses declared that it used to spring up spontaneously from the water in the morning to come into the hand of its carrier at his call. Several of the Thug prisoners in Jubbulpore gaol assured Sir William Sleeman that this was absolute fact, and went so far as to declare they had seen it happen. The *kussee* was religiously worshipped every seventh day.

Another important agent in the Thug religion was the *goor* or consecrated sugar. It was an offering to Bhowanee, made as a sacrifice of *tupounnee*, to celebrate the commission of any murder. An exact amount of coarse sugar was purchased to the worth of 1 rupee, 4 annas. A clean place was selected and the sugar laid out on a sheet or blanket, on which were also put the sacred pickaxe and a piece of silver coin. The leader of the gang having taken his seat on the blanket, surrounded by the most notable stranglers, with the rest outside, made a small hole in the ground for the *goor* and then dedicated it saying, "Great goddess, who vouchsafed 1 lac and 62,000 rupees to Toora Naig and Koduk Bunwaree in their need, so we pray thee fulfil our desires." (Toorah Naig was a celebrated *jemadar* who, single-handed, with his servant, Koduk Bunwaree, killed a man possessed of plunder, and bringing it home, divided it honestly among their assembled comrades as though they had all been present at the murder.) The Thugs fervently repeated the prayer and the *goor* was distributed, first to those on the blanket, who ate in solemn silence, and when they had finished, it was given to the rest who were entitled by their rank to receive it. No one but a man who had strangled his victim was suffered to partake of the *goor*, which had a miraculous effect; and the Thugs were persuaded that if any human being tasted it he would take forthwith to the trade. The Thug chief Feringhea told Sir William Sleeman that the *goor* completely changed a man's nature, adding,—"It would change the nature of a horse. Let anyone taste it and he will be a Thug, though he know all the trades and have all the wealth in the world. For my own part I was well to do; my relations were rich and I held high office myself in which I was sure of promotion. Yet I was always miserable when absent from my gang. While I was still a mere

boy, my father made me taste that fatal sugar, and if I were to live a thousand years I should never be able to follow any other trade.”

There was a hierarchy in the caste of Thuggee. The first grade was the *kuboola*, or “tyro,” who after initiation was first employed as scout, then as grave-digger, *lughae*; next in rank was the *shumseea*, whose duty it was to hold the hands and feet of the victim when being strangled by the *bhurtote*, who is of the highest grade in the organisation. The initiation was made early; a Thug parent apprenticed his son at thirteen or fourteen years. The candidate having bathed and dressed in new clothes, which had never been bleached, was led by his *guru*, or spiritual director, into a room where the leaders of the band were assembled seated on a white cloth; the sacred pickaxe was placed in his right hand, and raising his left on high, he repeated a fearful oath dictated to him and sworn on the Koran, after which he ate a small piece of the consecrated *goor*. He pledged himself to be faithful, brave and secret, to pursue to destruction every human being whom chance or his own ingenuity threw into his power. Only he was forbidden to kill the members of certain castes, such as sweepers, oil-vendors, blacksmiths, carpenters, professional musicians, any maimed or leprous persons, the carriers of Ganges water or any man travelling accompanied by a cow. As a general rule women were spared, and many cases are quoted of the misfortunes that overtook those who disregarded this regulation. Feringhea stated that his gang after killing many women had no luck, and his family fell into great misfortune. Sometimes when they encountered a rich old woman, she was sacrificed, and even youth and beauty did not always escape; but the consequences were always the same. After the murder of the woman Kalee Bebee, who was travelling with a gold *chudur* for a sacred tomb, the perpetrators were severely punished by fate. One got worms in his body and died barking like a dog; others died miserably in gaol or after crossing the black water (transportation to Penang). The families concerned became extinct. Thugs who had slain women admitted that they deserved the worst evils that could befall them.

The crime of killing women was sometimes aggravated by the murder of their children. In the case of the murder of Bunda Alee, Moonshee of General Doveton commanding at Jhalna, his wife and daughters were strangled. One of the Thugs would have adopted the infant child and was

carrying it off, when a comrade pressed him to kill it also lest they should be detected on crossing the Nurbudda. Whereupon the miscreant threw the living child on the heap of dead bodies in the open grave, and the child was buried alive.

The apprenticeship to murder was gradual. The young members saw and heard nothing of the first affair after their initiation; they were ignorant of the exact business, but grew to like the life as they were mounted on ponies and received presents purchased out of their share of the booty. On the second expedition they began to suspect that murder was committed, and on the third they witnessed the actual deed. They accepted the horrible situation, and were seldom much shocked. But in one case told by Feringhea, a lad of fourteen, out for the first time and mounted on a pony, was committed to the charge of a young comrade, who was to keep him in the rear out of sight and hearing of the affair when the signal was given. Unfortunately, the boy broke away and galloped up in time to witness the scene; he heard the screams and saw them all strangled. He fell off his pony and became delirious, screaming and trembling violently if anyone touched him or spoke to him. They sat by him when the gang went on and vainly attempted to pacify him, but he never recovered his senses and died the same night. A somewhat similar case is told by Sleeman of an affair near Shikarpore, where the place selected for the murder was in an extensive jungle by the river side, and a party of travellers were strangled, all but two young boys who were to be saved for adoption. One of them, when the bodies were being thrown into a ditch covered with earth and bushes, began to scream violently, and the Thug who had intended to adopt him, finding it impossible to pacify him, seized him by the legs and dashed his brains out against a stone. The dead boy was left where he lay and his body was found by a fisherman, who gave the alarm which led to the pursuit and arrest of the Thugs.

Colonel Meadows-Taylor in his “Confessions of a Thug” graphically pictures the sufferings of his hero after the first affair he witnessed. “Do what I would,” the Thug confesses, “the murdered father and son appeared before me; the old man’s voice rung in my ears, and the son’s large eyes seemed to be fixed on mine. I felt as though a thousand *skitans* (devils) sat on my breast, and sleep would not come to my eyes. It appeared so cold-

blooded, so unprovoked a deed, that I could not reconcile myself in any way to having become even a silent spectator of it." Next day his father reasoned with him, making him eat the *goor*, and explaining that having put his hand to the work he must not turn back. As soon as the *kuboola* has got over the first feelings of disgust and his courage is equal to the blood-thirsty business, he becomes the disciple of some renowned and experienced member of the gang, and instruction is given in strangling. He is entrusted with the handkerchief, *roomal*, and taught how to make the knot with a piece of silver inserted. When he has fully learned the process, one of the travellers at the next affair is entrusted to him, and with a *shumseea* at hand to assist, he regularly graduates as a *bhurtote* and is eligible to become a leader of a gang of his own.

The stern resolve of the British government to suppress Thuggee, and the energetic assistance of the agents employed were no doubt the true cause of its being stamped out. The neglect of omens, the signs sent by Bhowanee to warn her votaries of threatened dangers, and the murder of women and persons of the protected castes, brought down upon the Thugs, in their own opinion, their deserved retribution. One leader of a gang was arrested with seventeen others because, as they said, he persisted in his purpose when a screaming hare had crossed his path. They pleaded that an omen was an order, and disobedience brought its own punishment. We may accept such explanations for what they are worth, and may assign to a more reasonable cause the activity in the years between 1826 and 1840, when no less than 3,689 Thugs were arrested and tried. Of these a large number were hanged, transported or imprisoned for life. A few were acquitted or died before sentence; a certain number became approvers or informers, and no doubt a fatal blow was struck at these horrid crimes which had been so long fostered and supported by nearly all classes in the community; landowners, native officers of the courts, police and village authorities.

CHAPTER IV

DACOITY

Commission appointed in 1837 to consider means for the suppression of
Dacoity—Story of a daring attack upon government—Disguises
assumed by Dacoits—The Brinjaras—The “Byragee” or religious
devotee—Professional poisoners and highway robbers—The datura—
Its action and employment—Hereditary descendants of Thugs—
Predatory tribes of criminal instinct—Some noted Dacoits—Female
leaders—Theft of government treasure in a British garrison—A
Dacoit’s revenge.

It has been asserted that although Thuggee has been ostensibly stamped out in India, road murders are still committed in considerable numbers by the agency of poison administered to travellers, and that this is the work of Bhowanee’s votaries carrying on the old business, still impelled by their horrible religion. This impression is believed to be erroneous. There is no evidence that the gang-robbers who undoubtedly use poison such as opium, arsenic, datura and other drugs to stupefy or kill their victims, belong to the fell organisation so long a scourge in Indian society; or that the worship of Bhowanee, observed with such murderous rites, still exists in India. Nevertheless, the administration of poison by professional robbers, who infested the main roads and lurked in the vicinity of large towns, was largely and for the most part mysteriously practised until a comparatively recent date, if it is not indeed still prevalent. It was one of the forms of Dacoity, a crime akin to Thuggee, but without its religious pretensions, and ever one of the most serious evils combated by the British government. This widespread plague thrived and prospered by reason of the fierceness and audacity of certain classes and the timidity and submissiveness characteristic of others. “In Bengal proper,” says Sir Richard Temple, “it was a crime with an extensive organisation, having professional ringleaders followed by gangs of enrolled men.” It was repressed and to a great extent

broken up by the strong administrative machinery of the British government, but the crime still crops up in a milder form and is “one of the earliest symptoms of impending scarcity, political excitement or any social trouble.”

We may pause to examine some of the earlier records of Dacoity. A commission to consider its suppression was instituted in India in the year 1837. Hitherto but little had been ascertained of the character or methods employed by this class of criminal. Although Dacoities were every day committed and reported by the magistrates, it was thought that these gangs resided for the most part between the Ganges and Jumna rivers and in the kingdom of Oude, but information regarding their habits and location was vague and uncertain. Everyone talked of Budhuk Dacoits and their daring robberies, but no one knew who or what they were, whence they came or how their system was organised. In the course of this inquiry, the magistrate of the Gorruckpore district, which borders on the kingdom of Oude, informed the government that the Dacoits were not inhabitants of any part of the British territories but organised banditti from Oude, and that to deal effectively with this crime was altogether beyond the power of the magistrates of the district and the local police. He instanced in proof of the strength and daring of the Dacoits the details of an attack made upon a party of government treasure-bearers in 1822. This story was related long afterward to an English official by one of the Dacoits concerned in the affair and is given in his own words as follows:

“About eighteen years ago Lutee Jemadar sent a messenger to me to say that he should like to join me in an expedition, and I went to him with Jugdeum and Toke to settle preliminaries. The first day was spent in feasting and nothing was settled about business. On the following day he told me that remittances of government treasure went every month from Peppole to Gorruckpore, and if we were prudent we might get some of it. It had, however, become known that an escort of troopers and foot-soldiers always accompanied these remittances and unless the attack was in the nature of a surprise some casualties were likely to occur. After exploring the ground, it was seen that the way passed through an extensive jungle, so thick that horsemen could not safely leave the high road.” A point in this jungle was selected for the attack and to facilitate it strong ropes were

fastened across the road ahead, while other ropes were in readiness to block it behind so soon as treasure and escort had passed through. A gang of forty was collected for the robbery, ten matchlock-men, ten swordsmen and twenty-five spearmen, who proceeded to lie in ambush awaiting news of the approach of their prey. On the third morning it was near at hand, the ropes ahead were fixed and a number of men posted, armed with matchlocks loaded with shot, as the Dacoits did not desire to take life. As soon as the trap was laid and the time of retreat intercepted, fire was opened from all sides. The escort was thrown into confusion, the foot soldiers sought refuge in the bush, the horsemen tried to escape by jumping over the ropes, while the thieves broke in upon the treasure and took possession of some 12,000 rupees.

Daring attacks of this kind by gangs drawn from this great family of professional and hereditary robbers were frequent in all parts of India. No district between the Berhampootra, the Nurbudda, the Sutlej and the Himalayas was free from them, and no merchant or manufacturer could feel himself secure for a single night from the depredations of Budhuk Dacoits. In 1822, in the district of Nursingpoor in the Nurbudda valley, in the dusk of evening, a party of about thirty persons, apparently armed with nothing but walking sticks in their hands, passed the picket of Sepahees, who stood with a native commissioned officer on the bank of a rivulet separating the cantonments from the town of Nursingpoor. On being challenged by the sentries, they said they were cowherds who had been out with their cattle which were following close behind. They walked up the street, and having arrived in front of the houses of the most wealthy merchants, they set their torches in a blaze by a sudden blow upon the pots containing combustibles; everybody who ventured to move or to make the slightest noise was stabbed; the houses were plundered, and in ten minutes more the assailants fled with their booty, leaving about twelve persons dead and wounded on the ground. A magistrate close at hand despatched large parties of foot and horse police in all directions, but no one was seized nor was it discovered whence the gang had come, or any particulars as to their identities. This occurred in the month of February, when marriage processions take place every day in all large towns; the nights are long, and much money is circulated in the purchase of cotton in all cotton districts like that of Nursingpoor. There was a large police guard within twenty paces of the

Dacoity on one side, and this picket of Sepahees within a hundred paces on the other. Both saw the blaze of the torches and heard the noise, but both mistook it for a marriage procession, and the first intimation given of the real character of the party was by a little boy, who had crept along a ditch unobserved by the Dacoits, and half dead with fright, whispered to the officer commanding them that they were robbers and had killed his father. Before the officer could get his men ready, all were gone and nothing more was heard of them until twenty years later, when the perpetrators of the attack were detected and brought to justice.

The Dacoits sometimes assumed disguises to hide the real nature of their business. In 1818 a notorious leader named Maheran with a gang of fifty Budhuks, set out from Khyraddee in the Oude Terai under the disguise of bird catchers. They had with them falcons, hawks of all kinds, well-trained, also mynas, parrots and other varieties of speaking and mocking birds. At Bareilly, in Oude, they were joined by another small gang, and all proceeded in pursuit of some treasure on its way from Benares westward, carried by ponies under charge of twenty-four *burkundazes*, “native watchmen,” and policemen. They determined to attack the treasure party at their halting place between Allahabad and Cawnpore. A boat had been purchased to keep along the bank of the river, ready to help the party across after the attack, and by this the women and children were all landed on the Oude side of the river opposite the Serai. Maheran with two or three selected men in disguise remained with the treasure until they saw it safely lodged for the night, when he returned to his gang to make arrangements for the attack. Ladders, torches and handles for the spear-heads and axes had been provided in the usual way, and two hours after dark they scaled the wall of the Serai. Meanwhile confederates within broke open the gate from the inside and stood over it to prevent interruption, while the rest attacked the escort and secured the treasure. They killed six persons of the guards, wounded seventeen and secured 70,000 rupees.

Maheran was captured in a later expedition and hanged, but his widow Moneea took his place as leader of the gang and shortly afterward fitted out another expedition to Junnukpoor in the Nepal territory several hundred miles to the east of their bivouac, to intercept some treasure on its way to the capital, Khatmandu. This expedition consisted of eighty chosen men and

seven women. After taking the auspices they set out in small parties toward the appointed place of rendezvous. On the way, one of the parties, under a leader named Johuree, fell in with fifteen bullocks laden with treasure under the charge of eighty Gorkhas. The Dacoits, being in disguise, managed to join the escort without exciting suspicion and ascertained that they were carrying a treasure to the value of 64,000 rupees from the collector's treasury in the plain to the capital. Johuree ordered two of his men to continue with the escort and went on himself with the rest to join the other leaders at the appointed place and to consult with them. He found that only a part of the gang had arrived and these thought it wiser to postpone an attack until the rest came up, saying, "If we succeed in taking the treasure, many of our friends must be seized on suspicion and beaten into confessions that may lead to the ruin of all, whereas if we forbear this time we shall be all collected before the next monthly remittance goes up, and we may secure it with little hazard to our friends or to ourselves."

Johuree urged that one bird in the hand was worth two in the bush and at length prevailed upon the others to accept his counsel. They mustered fifty men and prepared to follow the treasure. The two scouts continued with the treasure escort in the disguise of pilgrims, and when they had seen it safely lodged at a spot under the first range of hills and had carefully reconnoitred the position, one of them hastened to Johuree with his report. All now set out and reached the village of Bughalee in the evening. From this place Johuree went forward to reconnoitre and found the treasure lodged in a fortified place with a wall and ditch all around it. A party of four or five hundred traders who carried goods from the plains to the hills were encamped on the edge of the ditch. After carefully surveying the position, Johuree returned to his friends and ordered that a couple of stout ladders twenty feet long should be made out of wood cut in the forest. Advancing in silence, they placed these ladders and got over the ditch and wall close to where the treasure lay. It was about midnight, with a good moon and clear sky, but still they thought it necessary to light their torches, and under the blaze they commenced the attack. The escort was taken by surprise and made but a feeble resistance. The gang took the whole amount of 64,000 rupees and effected their retreat without losing a man. On reaching a retired spot two or three miles from the scene of action, they divided the spoil, but every man had too much to admit of rapid travelling, so 17,000 rupees were

buried at this place, and with the remaining 47,000 rupees the party moved on through the forest. As soon as news of the loss of the treasure reached the Nepal cantonments at Jalesar, whence it had been despatched, every suspicious person that could be found was seized. Two regiments then stationed at Jalesar were despatched through the forest to the westward to intercept the robbers, and fell in with some of Johuree's party, from whom they recovered a portion of the treasure, while Johuree got safely home with the rest.

The precision with which veterans remembered and described Dacoities at which they had assisted during their lives was often wonderful. One of the leaders of the Oude Terai gangs named Lucke, when arrested, described forty-nine Dacoities at which he had been present during his career of twenty-five years. The local authorities to whom his narratives were sent endorsed his account of forty-one as having been perpetrated precisely as he described them, though many of them had taken place near Calcutta, some four or five hundred miles from the bivouac in Oude forest from which the gang had set out.

Reference has been made to the disguises assumed by the Dacoits. The most suitable to the locality in which they were about to work were as a rule selected. Thus, north of the Jumna they became carriers of Ganges, or holy water, because men of that class were continually to be met with on those roads. South of the Jumna they pretended to be pilgrims journeying to some sacred shrine, or relatives sadly conveying the bones of the departed to the banks of the Ganges, or the friends of a bridegroom sent to fetch and bring home his bride. The rôle of funeral mourners was very popular because out of respect for their sorrowful business they were treated with much deference and subjected to no inconvenient inquiries as to whence they came or whither they were going. The bones they carried were commonly those of inferior animals, wild or domestic; they were kept in bags,—red for male bones, white for female,—and at their halting places these bags were suspended from the apex of a triangle formed by three stout poles, to be used later as the handles for the spear-heads concealed in their waistbands. Another favourite disguise was that of the Brinjaras, the traditional carriers of grain and salt, who travel long distances conveying the grain to the sea coast and returning with the salt. These Brinjaras were a peculiar and

distinct race, who were much employed by the Duke of Wellington (when Sir Arthur Wellesley) as food-carriers in his Indian campaigns. Their appearance was distinctive and their costume peculiar; of intelligent countenance and strongly knit, wiry frames, they dressed—the women especially—in fantastic parti-coloured clothes; the women's arms were completely encased from shoulder to wrist in bracelets of bone or ivory; they wore coins round their necks and curiously interwoven in their hair, which gave a strange, flighty, wild air to their always expressive and sometimes good-looking faces. The Brinjaras strictly adhered to certain customs; they did not intermarry, and lived in no fixed abode, although they halted often in the same encampment for some time; they observed the stars and scrupulously followed omens; they spoke the languages of most of the places they visited, but had a peculiar dialect of their own. They had no defined religion.

A good account of the Brinjaras is given by Reginald Heber, Bishop of Calcutta, in his "Indian Travels." "We passed a large encampment of 'Brinjaras,'" he writes, "or carriers of grain, a singular wandering race, who pass their whole time in transporting this article from one part of the country to another, seldom on their own account, but as agents for more wealthy dealers. They move about in large bodies with their wives, children, dogs and loaded bullocks. The men are all armed as a protection against petty thieves. From the sovereigns and armies of Hindustan they have no apprehensions. Even contending armies allow them to pass and repass safely, never taking their goods without purchase, nor even preventing them, if they choose, from victualling their enemy's camp. Both sides wisely agree to respect and encourage a branch of industry, the interruption of which might be attended with fatal consequences to both."

The Brinjaras' disguise not only served as a convenient cloak for the Dacoits, but they sometimes followed the nefarious business on their own account. The larger number no doubt were fairly honest and industrious people, but some succumbed to the temptation of their roving life and the facilities offered for criminal acts in their extensive wanderings, taking to Dacoity and to the kidnapping of children, a profitable business, especially of female children for whom there was a ready sale. General Charles Hervey, the famous Indian police officer, had but a poor opinion of the

Brinjaras, whom he called formidable robbers. His account of them is, however, interesting as supplementing Bishop Heber's. He came across them in large numbers at the Sambhur Salt Lake not far from Jeypore, which they visited from the most distant regions, with immense droves of pack bullocks, bringing grain and taking away salt. He says: "Their animals may be seen tethered in hundreds on the wide shores of the extensive lake, each *tanda* or company of their sort being camped under a distinct Naik, or headman, in the centre of the drove appertaining to it, with their bullock packs or panniers neatly collected in piles of hundreds in their midst. In the daytime, when halted, their cattle are taken out to pasture wherever pasture may be obtained, tended by the fewest men, often mere lads, and not infrequently by girls; at evening they are driven home, when a piece of oil-cake is given to each animal, called by name, and it is curious to watch the process, how well each animal knows its name and waits expectantly for its turn to be called. At night the bullocks are tethered by means of a rope passed round their front feet and entwined with another rope fixed to the ground with strong stakes. They are picketed in this manner with their heads turned inwards, in a circle round the resting place of their owners in their midst, and fires are kept burning throughout the night to scare away tigers or other beasts of prey. I have come upon the encampments of these roving people, in the wildest jungles, or threading their way with their long straggling lines of laden cattle through the most intricate ground, whether of rock, forest, sand-hills, or marsh, and have been quite fascinated by the strangeness of their manner and their quaint wild ways."

Another successful disguise made use of by the Dacoits in Central India was that of the garb and appearance of Alkuramies, a peculiar class of pilgrims who travelled in small parties accompanying a high priest, who was represented as the leader of the gang. "They had four or five tents, some of white and some of dyed cloth, and two or three pairs of *nakaras*, or 'kettle drums,' and trumpets, with a great number of buffaloes, cows, goats, sheep and ponies. Some were clothed, but the bodies of the greater part were covered with nothing but shoes and a small cloth waistband. Those who had long hair went bareheaded and those who had nothing but short hair wore a piece of cloth round the head." The pretended Alkuramies always took the precaution of hiring the services of half a dozen genuine Byragees or ascetics, whom they put forward in difficult emergencies.

They are strange people, these Byragees, or religious devotees, whether pretended or real. There are many classes of them with various names: Jogis, Sunyasis, Byragis, Aghunhotas, and mostly all incorrigible rogues. When travelling in bands they are stalwart naked fellows, strong-limbed and sturdy, unpleasant to meet abroad despite their sham sanctity. Their solicitation of alms is more like a threat as they offer their begging bowls, peremptorily demanding contributions. They do not whine or fawn like ordinary beggars, but lift their voices in execration when their appeals are not readily met and with their naked slate-coloured bodies raised to their full height, they cast dust into the air to emphasise their maledictions. Whether by alms or thefts, the mendicant leads an easy, lazy life, his needs are well cared for by the charitable who firmly believe they “acquire merit” by ministering to them.

General Charles Hervey has given a graphic account of a Byragee he came across at Thunjna on the edge of Rajputana, whose lair or *mhut* was on one of the hills above the town. It was “erected nearly at the very top of it among several overhanging rocks, and reached only by a long parapeted causeway, all substantially constructed of solid masonry, but not yet completed. The ascetic in possession was in the usual nude condition, four square inches of rag forming his entire personal apparel. His body was covered with ashes, his head folded round and round with his own braided hair like a tall tiara, and his face and forehead plastered with white symbolic daubs. Sleek he was, and in good condition withal—not at all a starving mendicant, whatever his penances; and he had a fat pony too, in a well-littered shed close by his own comfortable den, to get up to and scramble into which must cause the good little beast some trouble. I asked the man why thus disfigure himself? I was rebuked for the impertinence by no reply, as, silently beholding me, he squatted on his upraised hams on the stone-built terrace of the lofty spot.... He had, like most of his kind throughout India, wandered to many distant regions and sacred spots, famed from olden times as places to be visited, whatever the difficulties of the pilgrimage.... He had, indeed, been a mighty traveller and persistent pilgrim, this nude, besmeared gymnosophist, of small wants and great energy, and the naked hermit became quite attractive, rapt as he was, however unclothed and unbeauteous, as he narrated his ‘painful marchings’ and the wondrous sights he had beheld and bowed down to.

“Other equally devoted and fanatic individuals, leading, like this man, eremitical lives in caves and hovels in wild and unfrequented spots and inaccessible places on crags or rocky eminences by side of river or sea, or on temple-topped hill or difficult mountain peak, held sacred as the abode of their Devi and not to be profaned, may be met with, ... but few so observant or so communicative and friendly.... Many are their devices of evil-doing when abroad; and here I confine the remark to those who are not what they seem to be. Thugs, poisoners and kidnappers are to be found among Jogis. When visiting Dwarka many years ago, I was loudly cursed by a Byragee for not readily enough yielding to his demand for alms, and as I put off from the shore, to give point to his execrations, the angered fellow, stark and gray, seemed a very blue devil, as, standing to his full height and with both arms stretched upwards, he flung dust into the air while uttering his direst maledictions.”

Professional poisoning in carrying out highway robbery was at one time spread over every portion of the province of Bengal, and there is no doubt it was equally prevalent in Bombay and Madras. Murders were constantly committed along the road upon unwary travellers who rashly joined company with strangers deliberately purposing to kill and rob them; and numbers of thefts were also perpetrated by the administration of drugs to render their victims insensible and at their mercy.

The crime was greatly aided by the facility with which poison in some form or other could be obtained. Many shopkeepers traded in poisons, selling these goods openly and with the most reckless indifference. Even when the law laid restrictions on the sale of poisons, the evilly disposed could provide himself from the roots of trees in the jungle, garden or wayside, or they might be bought from the numerous travelling quacks, and the local *hakims* or “native doctors” were often not unwilling to supply the noxious drugs. Moreover, in almost every village some hag of evil repute, half-witch, half-midwife, given to criminal practices and commonly believed to be a professional poisoner, did a systematic business in supplying drugs. Upon one old woman, who was arrested near Sasseram in 1835, were found letters and credentials from numerous members of the poisoning community at large who dealt with her.

The drug most commonly used by the road poisoners is produced from the datura plant, *stramonium*, both the purple flowered and the white flowered, and is prepared from the seeds or the leaves. Its noxious effects were well known to the ancients. In "Purchas: His Pilgrimage," that most famous series of seventeenth century travels, we read, "They have (in India) an Herbe called Durroa which causeth distraction without understanding anything done in a man's presence; sometimes it maketh a man sleepe as if hee was dead for the space of four and twenty hours and in much quantity it killeth." It is referred to in Burton's "Anatomy of Melancholy." Garcias ab Horto makes mention of "an herbe called daturah, which if it be eaten, for twenty-four hours following takes away all sense of grief, makes them incline to laughter and mirth." As an instrument in facilitating theft and other criminal designs its properties were widely recognised. In Bengal it was usually given as an ingredient of sweetmeats, or mixed with bread or coffee, sherbet, milk, *tari*, "native spirits," or introduced into tobacco. It was relied upon to stupefy; not necessarily to kill, but to produce intoxication or delirium, or profound lethargy resembling coma, with dilated pupils but natural respiration. Even when life is not seriously endangered, the effects of the poison upon the person are such that they seldom recover their bodily vigour. One was still a cripple after a dose taken seven years before; another continued unable to articulate and was like a man stricken with paralysis. Memory is long impaired and often never recovered; idiocy sometimes supervenes. The detection of the crime is thus prevented. If death occurs, it may be attributed to disease, suicide or wild beasts; if the patient survives, he has no clear idea what has happened to him.

The action of datura is generally an indication that it has been administered. It is not only a powerful narcotic, but there are quite unmistakably characteristic symptoms. The patient, if not incapable of movement, will perform the most fantastic antics, will exhibit great excitement, ramble in his talk, fly into a violent rage when questioned. As it takes effect, the sufferer grows very thirsty, and dry in the throat. There are three stages or sets of symptoms observed: First, headache, dryness of the mucous membrane, difficulty in walking, languor, impairment of vision, with the pupils greatly dilated; second, maniacal delirium, flushed face, eyes glistening, violent perspiration from incessant motion; third, insensibility,

coma and possibly collapse with fatal results. In the last condition the sufferer becomes giddy, staggers, falls and dies.

Some of the cases of poisoning by datura may be quoted here to show the boldness with which it was practised. One crime was committed in a Jain temple near Bhagalpur in Bengal, where the victims were the priest and two of his attendants. The latter were found one morning in a state of mad intoxication, reeling about the ground, and the priest was missing, but his body was picked up three days afterward in a dry well. It was the work of a gang of professional poisoners who had visited the temple ostensibly to make an offering to the god but in reality to murder the priest. One of them bought sweetmeats which were doctored with powdered datura-seed, and handed them over to the priest for presentation. According to custom, he ate some of the sweetmeats, giving a part also to the two temple attendants. The poisoners waited till the drug had taken effect and then attacked the priest who was lying unconscious near the shrine; one of them throttled him; a second sat heavily upon his chest; a third held his hands, and a fourth trampled him underfoot. The helpless victim soon died in convulsions. The next act was to rifle the secret treasury kept in an inner chamber, and the plunder was stowed in sacks and carried away in a cart. In the end by the aid of “approvers” seven of the robbers were arrested. Three were sentenced to death, and the others to transportation for life to the Andaman Islands.

Numerous victims of the crime of road poisoning were found among the Powindahs or Afghan traders who travel down every year from above the passes on the northwest frontier and who brought their strings of camels laden with merchandise and products of the soil, or drove a good business in horse-dealing. They sold cloth and shawls, condiments, sun-dried fruits, sweetmeats, valuable furs, long-haired Persian cats, strong, surefooted little horses called *yaboos*. They visited all parts of India as far as Cape Comorin, and when their goods were sold, congregated at certain points for the homeward journey, and with their wallets well-lined, they were a likely prey for the poisoners. Although shrewd bargainers, they are an unwary lot not difficult to dupe and cajole. These “Cabulis,” as they were styled, were at one time the constant victims of datura poisoning in Bombay, where they often collected to enjoy the proceeds of their trading and purchase goods to carry home. Numbers of them were admitted to the hospital suffering from

poison, the fatal effects of which they had escaped, thanks to their robust constitutions.

Once at Patna, in Bengal, a horse-dealer from Cabul, who had disposed of his stud profitably, rashly made friends with a couple of rogues whom he met by the way and who had so ingratiated themselves with him as to be accepted as travelling companions. On reaching Benares one of them, who passed as the other's servant, went on ahead to a Serai to prepare food, which was ready on the arrival of the party and of which the Afghan partook with the others. All were seized with the usual symptoms, and while insensible the horse-dealer was robbed. Again, a party of five, travelling from Calcutta, were beguiled on the way by an obliging stranger whom they presently engaged to go out and buy food for them in the bazaar and prepare it for them. They left the Serai with him to continue their journey by rail, but were found unconscious on the way to the station, having been robbed of their money and most of their apparel.

General Hervey quotes a curious instance of the heredity of the criminal instinct which showed itself in the descendants of the old Thugs settled at Jubbulpore, in the days of the active pursuit of these murderers by Sir William Sleeman. A generation of young Thugs had grown up around the School of Industry, a kind of reformatory for the offspring of the captured criminals, and the careers of some of these have been followed. Many of the youths found employment with European gentlemen as private servants, and in one particular instance the inherited propensity was curiously illustrated. A railway engineer, Mr. Upham, employed in the construction of the Indian Peninsula Railway, was stationed at Sleemanabad near Jubbulpore. Returning home one evening, much fatigued after a long tour of inspection, he lay down to rest on his bed and from his tent, the curtain of which was raised for ventilation, he saw two of his table servants—both of them lads from the reformatory—engaged in cooking his dinner. He presently noticed that they squeezed into the pot on the fire certain green pods they had plucked from a neighbouring bush, and presuming they were herbs of some sort added for flavour, he said nothing, but he was curious and having little appetite he dined very lightly, chiefly on rice and milk. He picked some of the pods, however, and put them in his pocket, where they remained till next day, when he became ill and rode over to see the doctor.

He fainted when he reached the doctor's office. Restoratives being promptly applied, he so far recovered as to be able to produce the pods which the doctor at once pronounced to be of *datura*. Suspicion thus aroused, the two servants were arrested and brought to trial, when the head cook was convicted and sentenced to six years' imprisonment. This boy was of the old Thug stock, and obviously the desire to destroy human life was in his blood, brought out by greed; for the object was, of course, to rob Mr. Upham while he was unconscious.

They were apparently irreclaimable, these Thug children. One boy was detained in prison until grown up in the hope that he would prove well-conducted. All his relations had been Thugs; his father (who had been executed), his uncles, brothers and forebears for several generations, and numbers of them had suffered the extreme penalty. He was cognisant of their misdeeds and the retribution that overtook them, but his own inclinations lay the same way, and no sooner was he at large than he embraced the evil trade and was soon known as a *jemadar* with an increasing reputation as a daring leader of Dacoits. Eventually he was won over to the side of justice and did good service as an "approver."

A noted Thug poisoner of later days was a certain Rora, the Meerasee—a class of hereditary singers—who was long criminally active and in the end was sentenced to transportation for nineteen years on several counts. His favourite victims were the drivers of bullock hackeries, which with an accomplice he would hire, and after they were taken several stages, he would become friendly with the driver, offering food, drink or tobacco, which was, of course, drugged and produced the usual narcotic effects. When the driver fell off his box insensible, they left him to lie there and made off with the vehicle and its beasts, disposing of them at the first chance. This process was repeated with other carts and conveyances plying for hire, and in all cases *datura* was the drug employed. This Rora was arrested on one occasion, and having to pass his own house got permission to go in; after which he came out with a gift of poisoned sweetmeats for his escort, and easily escaped when his custodians yielded to the potency of the *datura*.

A form of highway robbery was the “Megphunnah Thuggee,”—the poisoning of parents to remove them and allow of the kidnapping of their deserted children. The motive of this crime was to become possessed of the jewels and ornaments worn by the children, or to sell the latter at distant places or to wanderers who would carry them to far-off countries for questionable purposes. Brinjaras bought male children to bring up in their trade, and nomadic gipsies with travelling shows wanted females to be reared to their performing business. Thus a gang of Megphunnah thieves assembled for a feast fell upon a family of Yats, father and mother, with two girls and a boy, and having strangled the parents in good old Thug fashion and sold the children, repeated the process continually as they wandered on. The gains were small, but the murders were many and numbers were sold into slavery of the worst sort.

Dacoity was practised on a large scale in many districts by whole gangs under well-known leaders with adherents or well-wishers and informants in every village. At each religious festival in the autumn, the band assembled at the summons of its acknowledged chief in some deserted fort or temple, and settled a plan for the coming season, when operations were discussed; the names of the selected victims, the nature of the expected booty, the chances of resistance or the interference of the authorities. New members were affiliated and sworn in at these meetings and the work went on gaily by the various parties till the approach of the monsoon, when the whole band reassembled, divided the spoil and went into winter quarters. One member of the gang was always a goldsmith, who melted down the ornaments acquired, while silks and clothes were disposed of to friendly shopkeepers.

A long list might be drawn up of the predatory peoples of India. “These criminal tribes,” says Sleeman, “number hundreds of thousands of persons and present a problem almost unknown in European experience. The gipsies, who are largely of Indian origin, are perhaps the only European example of an hereditary criminal tribe. But they are not sheltered and abetted by the landowners as their brethren in India are.” Most prominent among these peoples were the Meenas, or Meena Rhatores, who were found chiefly in Rajputana, but who practised their infamous trade in many parts of India. The name Rhatore is synonymous with Rajput and signifies “of

royal race," but the blue blood was drawn from a family living by plunder and Dacoity. They were settled in considerable numbers at Shajampur near Gurgaon, and lived outwardly respectable lives, but their propensities were well known. Although they went far afield to carry out their robberies, they occupied substantial stone houses, cultivated the soil and possessed large flocks and herds with many swift camels, mostly hidden away till the time arrived for an expedition to pilfer and despoil. These Meenas were rich and prosperous and wanted nothing but to be let alone; they habitually lived well, ate flesh, drank much, wore fine raiment, and their women disported many trinkets and gorgeous clothes; their rejoicings and festivals were celebrated with much feasting and revelry. They followed no ostensible occupation; they hired servants to till the ground, and their villages had often a deserted appearance because most of the men were absent on some raid. The remaining few, wary and watchful, looked out for possible detection and interference; the women, even when drawing water at the well, were ready to give the signal of alarm or send a word of warning to their friends engaged in some illegal pursuit. The Meenas hung closely together, and if any one was by mischance arrested, he might count upon assistance and upon funds raised by subscription to provide bribes to secure his release, if in the native states, or for the payment of fees for his defence.

Another criminal class very formidable in their time were the Moghyas, whose home was in Meywar in and about the direction of Neemuch. They were notorious for the wide range of their depredations, and being of a treacherous character, they inspired great dread in the regions they infested. They did not confine themselves to their own country, but spread far and wide, and their robberies were so repeated that at one time the high road between Indore and Gwalior was patrolled by parties of irregular cavalry in support of the inefficient local police. These Moghyas came from a common stock of tribal thieves, such as the Budhuks and Khunjurs, and were notable for their favourite custom of taking service as village watchmen or *chowkeydars*, a strange practice very general throughout India and based upon the old idea of setting a thief to catch a thief.

The Budhuks were professional Dacoits who always murdered their victims; the Khunjurs were wanderers who robbed in many widely separated districts both in Madras and Bombay, and in times far back in

Jalna, Bolarum near Secunderabad, at Bellary (Madras) and Sholapore. The Mooltani robbers were assiduous in attacks on convoys of cargoes of piece goods, opium and sugar. There were also Bedowreahs, freebooters and desperados of the North-western Provinces, Kaim Khanees, camel postilions, who were also Dacoits, and Khaikarees and Lambanees, much given to crime in the Dharwan district and so determined in their misdeeds that no severity short of perpetual banishment had any effect on them. After a large capture, the native magistrate sentenced every offender to have his right hand chopped off. Yet they at once resumed their depredations when set free and were long recognised as members of the “lop-handed” gang.

The Ooreahs, or men of Orissa, were poisoners by descent, adepts at dissimulation and low cunning, much given to the despoiling of unsuspecting females of the oldest profession in the world, the hereditary dancing girls who were brought up to the business by their mothers. A troupe of these girls were often maintained privately by rajahs and wealthy natives, and for ceremonial purposes at Hindu temples. Despite the taint of ill-repute attaching to their trade, they were often modest in manner and of refined tastes, very much like the old Grecian “Hetæraë”; but when living at large in their public capacity, they were often the victims of greedy miscreants who coveted their possessions, their plentiful ornaments and jewelry, for many were personally rich. The Ooreahs worked in gangs and three of them visited the house of some of these women in Dum-Dum and brought with them a present of food, curry cooked by themselves and drugged. This had the usual effect and ended in a great robbery. Again, four Ooreahs took lodgings with a woman in the Sham Bazaar, near Calcutta, and established friendly relations, exchanging sweetmeats. Those given by the Ooreahs soon produced insensibility, and the poisoners cleared out the place.

In 1869 information reached a gang of Dacoits on the look-out for booty that a large consignment of treasure had been received at Agra by railway from Calcutta. It was to be transferred at Agra to camel-back, to be forwarded to its destination at Jeypore. The leader of the Dacoits and many others were lurking around drawn by the scent of rich prey on the skirts of the great Durbar then in progress. They prudently resolved to delay attack until the spoil was upon native territory, and it was watched from stage to

stage until the convoy had entered a pass or hilly gorge one march from Jeypore. The party halted for the night to bivouac in the bazaar of a place called Molumpoona, where they were challenged by pretended revenue officers, who were Meena Dacoits disguised, and accused of trying to evade the transit dues. The real character of the officials was soon made manifest when the escort, who were soldiers or policemen, ran off, and the plunder was secured. It consisted of a large amount in rupees and silver in bricks, coral beads and other valuables.

The audacity of these Dacoits reached to greater heights. The royal mails were not safe from their interference. By maintaining spies in the various post-offices, news was always forthcoming of the approaching despatch of a valuable prize by the government mail carts or Dak runners from Agra to the adjacent native states. Almost at the same time as the last named robbery took place, a detachment from the main gang stopped the mail cart and seized its contents, carrying off a quantity of bullion in British sovereigns. A second similar robbery was also effected on the Ajmere frontier, in which the post-office employee was wounded. These treasure Dacoities were no doubt facilitated by the niggardliness of the transmitters, who sought to save the expense of hiring a special escort notwithstanding the enormous amount at stake, as much as thirty lacs of rupees, or £300,000, having been passed at times from Bombay to Indore.

On one occasion in 1864, a police confederate gave notice of a consignment of treasure, 30,000 rupees, from Bombay, passing through Berar, which was intercepted and attacked in a ravine near Mulkapore. The mail cart arrived about dusk, when the robbers fell upon it and the drivers, and the small escort of four matchlock men fled. The bullion was loaded quickly on camels, carried away and buried in the jungle before the news of the theft reached Mulkapore. A month later, when the booty was about to be divided among the different gangs engaged, they quarrelled fiercely over the shares and one of the party stole away and brought the police upon the scene. The treasure was thus recovered and many important arrests were made.

This money had been forwarded up country to be employed in the purchase of cotton at a time when the great American War of Secession had paralysed the cotton industry, and great enterprise was being shown in obtaining the

scarce commodity. This “cotton hunger” extended to India, and the productive cotton fields there were being despoiled to meet the demand. Heavy remittances in cash were in consequence constantly transmitted up country, and the temptation was great to highway robbers. It was the same with regard to opium, largely produced in the province of Malwa. Not only was the drug itself plundered in transit to Bombay, but the purchase money of the goods was intercepted on its way to pay the cultivators.

Many noted Dacoits rose into prominence when the crime was most prevalent. One was Jowahirra Durzee, a thief of the boldest type who wandered through Central India planning and executing robberies. There were thirteen such crimes to his credit in the province of Berar and eight more around Poona. He was a fine-looking man who was caught by the Nizam of Hyderabad and sentenced to be beheaded, but who escaped from gaol with the connivance of the native guard. He renewed his activity and made a great haul in Berar, robbing a couple of country carts conveying cash to the value of 66,000 rupees sent from Bombay for the purchase of cotton. The thieves had only time to bury their plunder and disperse, but returned a month later to dig it up and divide it. After making Poona the centre of operations, he was again arrested and committed to the British lock-up at Jalna, from which he was rescued by a daring comrade, Kishen Sing, who forced an entrance into the prison by climbing the wall and overpowering the sentry.

Afterward Jowahirra, when retaken, described what had occurred. Two steel clasp knives with file blades had been conveyed from Bombay and smuggled into the prison. With these the prisoners cut through their leg-irons in six days, after which their friends came and carried them off to where three swift camels were waiting for them outside the town. The Indian criminals are ingenious in dealing with their fetters to compass escape. They are independent of files. Thirty of the worst prisoners confined in the central gaol of Agra contrived to cut through their irons by means of threads manufactured from their clothing and thickly coated with pounded glass or emery powder. The threads were first anointed with gum to which the powder adhered, thus forming a sawing instrument equal to a file. Jowahirra’s subsequent depredations were on a large scale. He was often associated with the notorious Dacoit Jeewun Sing, (of whom more

directly), and they controlled large numbers of tribal thieves, Meenas and Rhatores and Rohillas, who were at one time computed to amount to nearly four hundred. Jowahirra was in due course tried as a professional Dacoit and sentenced to fourteen years' transportation to the Andaman Islands.

Jeewun Sing was a native of Bikaner and a camel carrier who conveyed specie and other consignments for the bankers of Berar, and as such he enjoyed a reputation for honesty and fair dealing in the delivery of goods entrusted to him. Yet he was in collusion with Meena Dacoits who came down from the country in quest of plunder, and whom he harboured and hid in two temples near Oomraotee until news came of treasure on the move. Jeewun Sing, who had taken service with the Mypore police for his personal safety, secretly directed these gangs and was concerned in several of the heaviest robberies, receiving always his share of the proceeds,—a fourth or fifth. He did not join personally in the work, but sent agents to represent him. He was a general carrier, whose camels travelled to Bombay, Indore, Jeypore, Jubbulpore, and who was true to his employers as a cloak to his proceedings against others. This police inspector, so long the confederate of robbers, lived under a cloud and his arrest was often strongly urged, but he was spared through the protection of his police superiors, and not a little on account of his usefulness in securing the conviction of others. But this double traitor, disloyal to his sect and the betrayer of his confederates, was in the end dismissed from the service.

Kishen Sing, the noted Rhatore leader of Dacoits who rescued Jowahirra Durzee, was one of the chief agents of this same Jeewun Sing. Kishen Sing was informed against by his confederate, Choutmull, for declining to submit to his demands and was supposed to have died in custody at Aboo. The story of this fictitious death so admirably illustrates Eastern duplicity that it deserves mention. Kishen Sing was a desperate character whose crimes were many and atrocious. He murdered one of his associates in a mail cart robbery; he attacked two sepoy's going on furlough, and in the fight which ensued slew one while he himself was wounded; and he was in the habit of disguising himself as an officer in the Nizam's cavalry in order to carry out his robberies. One of his most daring deeds was rifling a treasure convoy on the high-road between Sholapore and Hyderabad. The money was 30,000 rupees in specie and some chests of bullion, and was

carried in the wagons of a transit agency under escort of some Arab mercenaries. A fierce conflict was fought, but the Dacoits got the best of it and carried off the treasure. Later Kishen Sing was arrested and laid by the heels at Mount Aboo to await trial.

He was resolved to escape his fate of certain transportation. First he tried to commit suicide with a piece of glass, then he simulated madness and at last took to malingering. He was seized with a terrible hacking cough and grew visibly worse, so that his release as incurable was all but recommended. Then he apparently died. Leave was sought from the local authorities to bury him and not burn him as was the usual procedure with a Hindu corpse. His body was handed over for interment to four or five low caste men engaged by an old and faithful follower of his who had taken the garb of a mendicant and occupied a small hut just outside the gaol gates. The undertakers were in the secret, and they placed the living corpse in a shallow grave face downward, covering it with thorns and brushwood, on the top of which a thin layer of earth was laid. The defunct made no move, and after dark the faithful Gosaen, who had been on the watch, came and dug up the “dead” Kishen Sing. It was thus clearly proved that burial did not mean death and that, provided a person is placed faced downwards with no superincumbent weight of earth, life may be safely prolonged for hours. The escape of Kishen Sing was not realised until he was discovered alive and well in his native village. How he imposed upon the medical officer whose duty it was to furnish a certificate of death does not appear upon the record.

A curious feature in Indian Dacoity was that gangs were led in more than one instance by female *jemadars* or captains. One of the most notable was a certain Tumbolin whose husband had met his deserts in the Madras territory and had been executed. After his death, his wife was installed in his place by the universal acclaim of his followers, and she fully justified her appointment. She became a most capable chief, ably managed all the affairs of the gang, sought out the needful information as to the promise of spoil, the best methods of attack, and settled every preliminary. She went with her men to the point of action, but did not join personally in the fray, leaving the actual command to a trusty lieutenant, by name Himtya, chosen by herself, and who became her right hand man.

One of the boldest operations ever attempted by Dacoits was the attack made by Tumbolin's gang upon a military treasure in the heart of the military cantonments of Sholapore. In quest of booty, she had brought her party down in person from Central India and had encamped at Nuldroog, about fifteen miles from Sholapore, a wild spot within the territory of the Nizam of Hyderabad. Accompanied by her faithful Himtya and others, disguised as wandering minstrels, she explored the neighbourhood and penetrated the military quarter of Sholapore. They sang their songs before the officers' bungalows and at last boldly entered the general's garden in which a sentry was posted. Over the hedge they saw a sentry, and more to the purpose, saw that he was in charge of the treasure chest of the military force. Meanwhile Himtya had gone off independently and had marked down as a hopeful prey the house of a wealthy tobacconist and banker in the town of Sholapore.

The two enterprises were discussed that night on return to camp, and although the banker's promised to be the easiest job, an attack upon a military force was the most audacious and, if successful, would secure the largest prestige. It was decided to attempt the latter enterprise, pausing for a day or two in order to reconnoitre their ground, the best means of approach, and the surest line of retreat if pursued. The British garrison was large and consisted of a native infantry and a troop of European horse artillery. It was an important station where many high officials resided, judge, collector and magistrate, and a local gaol was established within the fort. It was a hard nut to crack, but Tumbolin did not despair. First removing their encampment to some distance, the rendezvous was fixed on some broken ground near the deposited treasure, which was last seen by Himtya when being locked up in the right hand compartment of the tumbril.

At nightfall the sepoy sentry guard retired into their guard room, leaving a double sentry to guard the treasure. Himtya's first step was to secure the guard by locking them into their quarters; then he and his men crept up under cover of a tall cactus hedge until they reached the tumbril, when two of the Dacoits rushed simultaneously upon the two sentries and speared them, while a third robber broke off the padlock of the tumbril and laid open the right compartment of the treasure chest. It was empty, for the money had been transferred that very day to the other side. By this time, the

alarm had been raised. The sentry in the general's garden adjoining opened fire, and some of the officers ran up with shot-guns, by which one of the robbers was wounded. The attack had failed and the tables were turned. The bugles rang out with a general call to arms and the baffled Dacoits hastily decamped.

Pursuit followed, but the robbers were fleet of foot and arrived safely at their encampment, where all was in readiness for flight, ponies were mounted, Tumbolin astride on her favourite piebald, and they galloped away through the night and the next day until the party reached and crossed the Kistna, after which they were beyond pursuit. Great commotion had been caused in Sholapore. The troops stood to their arms all night and patrols of cavalry scoured the whole country round. The English general in command reported that Sholapore had been attacked by a numerous and well-organised banditti, but, as a matter of fact, Tumbolin's whole gang numbered no more than sixteen persons.

Tumbolin long continued her depredations and her success was great. Ten years after the attack on Sholapore, her gang visited the city of Poona at a moment when the chief of police was being married and the entire force was in attendance upon the marriage procession. Himtya seized the occasion to break into the house of a rich Marwaree merchant and rifle his strong room. The attack was made with flaring torches and a great outcry and succeeded, but two of the robbers were captured as they fled through the town, one of them Himtya himself. Tumbolin escaped and was, indeed, never taken, although a large price was put upon her head. She retired at length at a good old age to die peacefully among her own people in the fastnesses of the Oude Terai.

Grassia was a famous leader of Khunjur Dacoits who had become an approver after capture. When he died his widow, a woman of fine presence and masculine gait, consecrated her children by a solemn oath to their father's profession. She seemed to anticipate that the boys would be worth little at the work, but relied upon her one girl to turn into a capable leader such as Tumbolin. Grassia's daughter grew up into a fine woman, with no particular good looks, but of imposing aspect. She never married, bearing in mind her mother's injunctions to devote herself to the care of her brothers,

and to keep Tumbolin before her as a model for imitation, and she no doubt led her gang with much energy and success. In older times there were female Thugs, women who accompanied their husbands on expeditions, and one is mentioned by Sleeman who was the *jemadar* of a gang of her own.

A horrible story of a Dacoit's revenge is told by Mr. Arthur Crawford. After an outbreak of the Bheels in October, 1858, which was commenced by one of their number, Bhagoji Naique, shooting the superintendent of the police near Sinnur, the majority of the Bheels took to Dacoity under the leadership of Bhagoji. At this time an old Bheel named Yesoo, a friend of Bhagoji's, was living in the same neighbourhood in a village which was a favourite camping ground for Europeans on account of the facilities it offered for sport. Yesoo was on very friendly terms with the sportsmen and endeavoured to dissuade Bhagoji from his traitorous designs, but without success. After the murder of the police official, Yesoo refused to join the rebels, and was excused on account of his age and lameness and left to live in peace in his village, Bhagoji little thinking that all the while he was secretly supplying the English with valuable information concerning the plans and whereabouts of the Dacoits. When the disturbance had been quelled and an amnesty proclaimed, one of Bhagoji's most faithful adherents returned to his home and settled down quietly in his native village not far from Yesoo, who by this time was well known to have been a government informer and was very proud of the fact. This apparently did not affect Hanmant, who tried to be on good terms with the old man, and frequently visited him, inviting him to bring his family over to his (Hantmant's) village. But Yesoo was wary and kept the young man at arm's length. Hanmant, finding all attempts to lure the old man away from the security of his own village in vain, conceived a diabolical plot to bring about his revenge. "Taking some fifteen or twenty of his own people and a few more Bheels who had sworn to be revenged on Yesoo, he repaired one night to Yesoo's village, silently surrounded the Bheel quarter, and then sent one of his men to fire the village stackyard at the other side of the village. Just as he anticipated, the alarm was no sooner given than every male Bheel in the 'Warra' (their quarters outside the village proper), including Yesoo and his two sons, went off at best speed to the fire, the women and children collecting outside their huts to view the blaze. In an instant the revengeful gang surrounded the 'Warra,' and with his own hand Hanmant cut down and

horribly mutilated Yesoo's two wives and daughters, the other women were gagged and bound, and then Hanmant and a select few, armed with matchlocks, lay in ambush by the path Yesoo and his sons must return by. Yesoo he shot with the muzzle of his gun nearly touching his body, and the sons and one Bheel who showed fight were disposed of by his comrades; the other Bheels dispersed, while Hanmant and his gang quietly returned home. Suspicion, of course, immediately fell upon Hanmant. One of his confederates peached. Hanmant escaped into the jungle, but was caught half-famished about a week afterward. Ultimately he and two accomplices were executed at the scene of the murder, Hanmant exulting up to the last moment in the dreadful deed, which he had been brooding over for nearly five years."

CHAPTER V

CHARACTERISTIC CRIMES

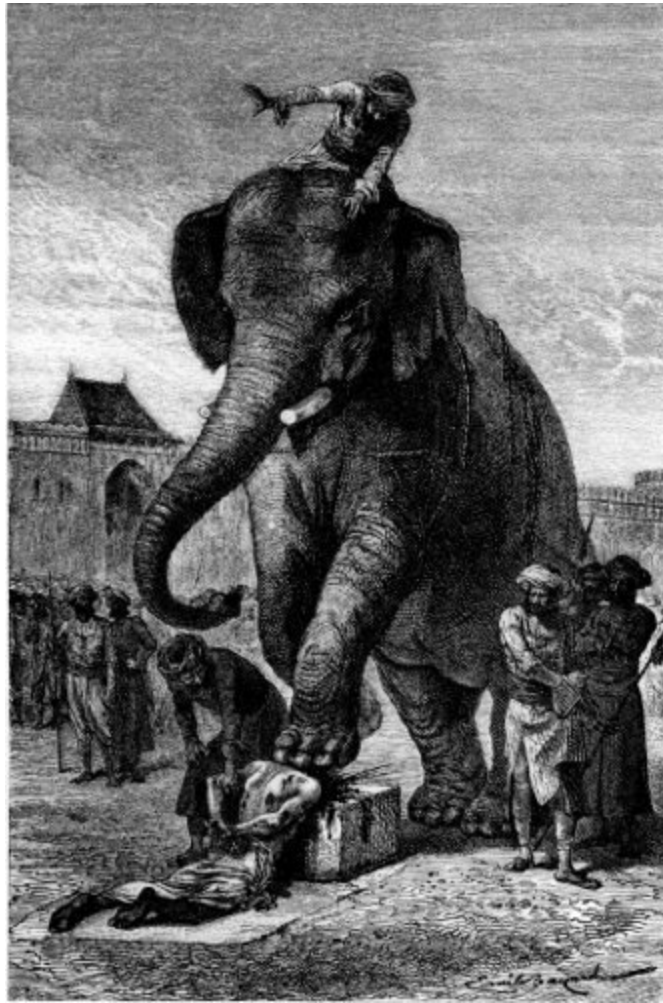
Extended use of poison—Horrible stories—The Gaekwar of Baroda charged with attempted poison of British resident, Colonel Phayre—Diamond dust—Modern instances in Bombay—Murders numerous—Police practices tending to concealment of evidence—Decapitation—Strangulation—Stinging to death—Crushing to death by an elephant—Leading traits in Indian criminals—Frauds and forging—Story of the Black Hole of Calcutta.

The crime of secret poisoning as a lethal agent has ever largely prevailed among a timid and deceitful people inclined to prefer treachery to open violence. Under the Mussulman dynasty, assassination by poison flourished exceedingly. It was effective in removing a pestilent competitor or a too ambitious minister, a jealous or untrustworthy wife or a hateful husband. The action of poison was often mysterious and its symptoms obscure in countries where the light of medical knowledge burned dimly, and when fatal might easily be attributed to the noxious effect of the narcotics so largely indulged in. The facility with which poison could be administered is constantly indicated in the ancient writings; the Shastras or sacred books of the Hindus, illustrating and explaining the Vedas, enlarge upon the precautions that should be taken to protect the life of the rajah or ruler from the subtle attacks of those around him. The danger of death by poisoning lurks commonly in the domestic relations; a great crowd of servants fill the purlieus of the palace, actively engaged in the preparation of food and often at liberty to pass freely to and fro. One Shastra lays down the necessary qualities of a cook as skill, cleanliness, good character and even temper so that neither greed nor revengeful feeling should incite him or her to mix something poisonous in the pot. Another goes further and enlarges thus upon the methods of detecting the personal characteristics of any one likely to give poison,—“He does not answer questions, or only gives evasive

answers; he speaks nonsense; rubs the great toe along the ground and shivers; his face is discoloured; he rubs the roots of the hair with his fingers; and he tries by every means to leave the house.”

Execution in India

A common mode of execution in India, for which the elephant is easily trained. In the early times of uprising or rebellion, elephants were also used against the enemy, and would make short work of piling up great pyramids of human heads.



Some horrible stories are preserved of the ruthless administration of poison by the Mohammedan sovereigns in India. Thus Tavernier, the French traveller in the seventeenth century, says of the great state prison of Gwalior that the emperor Aurungzeb was so sensitive lest he should be stigmatised as a cruel prince he never suffered any great subject to survive long in prison; at the end of the ninth or tenth day the captive was removed by poison. No doubt Hyder Ali poisoned a number of his English prisoners, and the inhuman murder of General Mathews by Tippoo Sing is told by James Bristowe, who suffered a long captivity under the same merciless monarch. The general was poisoned under the most abominable circumstances. He was starving himself to death rather than partake of the food issued to him, which he had discovered contained poison. He

studiously abstained from food for several days until at length, tortured by overmastering hunger, he devoured a plate of poisoned victuals and expired a few hours later in violent convulsions. Another officer, Captain Romley, who saw himself constrained to swallow poison, preferred to commit suicide by some other means. Yet again, Lieutenant Fraser had poison forcibly poured down his throat.

The traditions of the native states as to poisoning were preserved in at least one till a late date in the last century. In Baroda, a Rajput ruler, the Gaekwar Mulhar Rao, was the centre of a nest of criminal intrigue rivalling anything in the past, as great a miscreant as any one in his depraved court and more guilty than any of his subjects in the use of his despotic power. Crime was the very breath of his princely house; its members hated one another with bitter animosity; assassination, largely by secret poisoning, was the chief avenue to the throne, but all kinds of flagitious means were employed to secure succession; charges backed by elaborate perjury were as often used to upset a rival aspirant, as powdered arsenic or diamond dust to remove him permanently to another sphere.

In the generation to which Mulhar Rao belonged, violent deaths had constantly paved the way to the throne. One of five sons reigned in 1847. Two of his brothers died suddenly, and the prince himself a few years later. He was succeeded by the fourth brother, Khander Rao, whom the fifth, Mulhar Rao, at once attempted to poison, but he was detected and taken into custody. Then Khander Rao sought to protect himself by appealing to sorcery and black arts, and finding no certain security, consulted a Brahmin who strongly recommended human sacrifices. Whereupon Khander Rao selected thirty-five prisoners in his gaol of Baroda, whom he ordered for execution at the rate of five daily. Twenty-five had suffered before the butchery ceased. Mulhar Rao still lived, and recourse was had to simpler methods; his cook was suborned and provided with powdered arsenic, the most commonly tried drug, but the poison failed in effect because, although the noxious food was consumed, remedies were applied in time.

False testimony was next adduced, and Mulhar Rao was accused by perjured witnesses of plotting to have his brother Khander Rao shot by a European soldier, and on this flimsy pretence he was closely confined in the

prison of Cadra. He had sympathisers and they soon felt the weight of Khander Rao's hand. Four of them were seized, accused of holding secret communication with the prisoner, and sentenced to various forms of capital punishment. One was hanged, another beheaded, a third blown from the mouth of a gun and the fourth was thrown under the feet of an elephant to be trodden to death. Suddenly Khander Rao himself died, not without suspicion of foul play, and Mulhar Rao walked straight from the gaol to the throne, where he was soon to emulate the misdeeds of his predecessors.

The new Gaekwar had no claims upon the regard of his subjects. Almost wholly uneducated and with no mental gifts, he failed to inspire respect or devotion. He was not without astuteness, but was obstinate as a mule and fierce as a tiger. His person was unattractive; he was undersized, of mean appearance, with a coarse, swarthy complexion; he squinted, and from his large sensual lips black teeth protruded savagely. Unlike his brother Khander Rao, he had no taste for field sports, and he had converted the race course at Baroda into a carriage drive for the ladies of his zenana.

Mulhar Rao's private life was desperately evil. In his early years he was often thought to be mad on account of his passionate and ungovernable temper. Even as a child he committed crimes, impelled by fierce hatred and lust for revenge. His youth was made up of poisonings and attempts to poison. When he came to power he destroyed his enemies, real or fancied, wholesale. His gaolers collected victims in a row, and one by one poison was poured forcibly down their throats. One of those he most cordially detested was offered poisonous pills, and when he refused to swallow them he was despatched in a more expeditious fashion by being squeezed to death in a special machine. This man's chief crime was that he had been a creature of Khander Rao's.

The new Gaekwar's victims were so numerous that it was a current phrase in the city, "Has he killed many to-day?" He spared no man in his anger, no woman in his lust. Justice was bought and sold, the claimant who had the longest purse always won his case; public business was neglected; the most unworthy were advanced; bribery and corruption were the rule in every branch of administration. The crown and finish to Mulhar Rao's offences was his alleged plot to poison the British resident, Colonel Phayre.

There had long been distrust between the Gaekwar and the representative of the British government, whose profound disapproval of the prince's proceedings was soon made manifest. A more serious difference arose when the Gaekwar insisted that his infant son, born of his latest marriage, should be recognised as the next heir to the throne. There were grave doubts of the child's legitimacy. His mother, Luxmeebee, had been forcibly abducted from another husband who was still alive at the time of its birth. Colonel Phayre refused to acknowledge the child and Mulhar Rao vowed vengeance. One of his first dastardly attempts was to poison all the inmates of the residency by causing a pound of arsenic to be mixed with the ice sent in for daily consumption. This device failed, and the next attack was aimed directly at the resident through his own body servants.

Colonel Phayre was in the habit of drinking a glass of sherbet every morning when he came home from an early walk. It was awaiting him on the hall table and was prepared with sugared water and fresh pumelo juice. One day he swallowed only a mouthful of this drink, disliking its taste, and threw the rest out of the window, when he detected a small amount of sediment in the bottom of the glass. When analysed subsequently, this was found to contain arsenic and diamond dust. Suspicion was at once aroused, and the possession of the powder charged with these ingredients was traced to a *havildar* of the military guard of the residency, who kept it concealed in his waist belt. It was not believed that any subordinate and impecunious person could have afforded to buy diamond dust, and attention was at once diverted from the *havildar* to the prince, whose bitter feeling toward the resident was well known.

Evidence so damnatory against Mulhar Rao was collected that the government of India attached his person and decided to prosecute him. A special court of inquiry was appointed, composed of three English and three native commissioners, the first three leading lights on the Indian bench, the second three Maharajas of the highest rank. The Gaekwar was permitted to engage counsel, and was defended by one of the most eminent of British barristers at that time, Sergeant Ballantine. The arraignment of a reigning prince for the crime of murder by the supreme power to whom he owed allegiance caused a great sensation in India, and the issue of the protracted trial was watched with great interest at home. In the end the three English

commissioners were of opinion that the Gaekwar was guilty through his paid agents of an attempt to poison Colonel Phayre, and on the other hand, their three native colleagues considered that the charge was not proved. The result was much criticised and indeed condemned, but the adverse finding was accepted by the then viceroy, Lord Northbrook, who forthwith deposed Mulhar Rao and deprived him and his issue of all rights to the throne. The decision was based upon "his notorious misconduct, his gross misgovernment of the state and his evident incapacity to carry into effect the necessary reforms," the chief of all being the reform of his own evil nature and personal character.

Sergeant Ballantine dissented from the view taken by the English commissioners and disapproved of Lord Northbrook's action. Following the old legal axiom that the best course of an advocate whose case is bad is to abuse the other side, the learned counsel threw the blame chiefly upon Colonel Phayre. "He (Colonel Phayre) was fussy, meddlesome and thoroughly injudicious," the sergeant wrote in his memoirs. "There were two adverse parties in the state, and instead of holding himself aloof from both, he threw himself into that opposed to the Gaekwar and was greedy to listen to every accusation and complaint that with equal eagerness was gossiped into his ears." But these last were by no means imaginary. Mulhar Rao's vile conduct was never in doubt, and it was clear that he had tampered with the resident's servants.

As regards the diamond dust which played a somewhat exaggerated part in the affair, there is nothing to substantiate the common belief that it is a deadly poison, any more than ground glass, which has an equally bad name. It is an old and exploded superstition. The notorious "succession powder" of the old Italian poisoners was supposed to be diamond dust. Voltaire tells us that Henrietta, Duchess of Orleans, died of acute irritant poisoning, the poison being diamond powder mixed with pounded sugar and strewn over strawberries.

It may be noted here that the abominable practice of widow-burning seems to have originated as a check upon the wife's desire to get rid of her husband. The practice dates back to the time of Strabo, who gives the above origin for it. It was so common, says Mr. William Methold, that a law was

passed insisting that the wives should accompany their deceased husbands to the funeral pyre. According to one authority, poisoning by wives was so frequent that, in any one year, four men died to every woman. Originating as a deterrent, the burning of widows became in due course an act of pious devotion, a deed of self-immolation acceptable to their bloodthirsty gods. But the original reason is often quoted in the ancient writings, and the remarks of a traveller, Robert Coverte, may be quoted in point. "The cause why this law was first made was for that the women there were so fickle and inconstant that upon any slight occasion of dislike or spleen they would poison their husbands; whereas now the establishing and executing of this law is the cause that moveth the wife to love and cherish her husband and wisheth not to survive him." It is very much to the credit of the old East India Company that it sternly suppressed the practice of *suttee* with the other iniquitous forms of wrong-doing, such as Thuggee, sacrificial suicide, infanticide and so forth. A crime so largely practised through the ages by rulers and prominent personages was likely to be generally imitated by commoner people.

The general use of drugs to compass murder which still commonly obtains is not a little due to the facilities with which poisons may be procured, not only from the unchecked sale, but because they may be picked up, so to speak, on every hedge. Quoting Dr. Cheevers, the varieties of poison used are very limited and may be briefly described. The most common are the preparations of arsenic, aconite, nux vomica, opium, oleander, datura and ganja, or Indian hemp. Many more drugs are, however, procurable in Indian bazaars, and Dr. Cheevers has compiled a list, more or less incomplete, of upwards of ninety, including those already mentioned. Of late years the large increase in dispensaries and the wide importation of chemicals has led to poisoning by sulphate of zinc, Prussic acid, strychnine, cyanide of potassium, belladonna and chlorodyne.

Some remarkable cases of poisoning were brought to light in Bombay a few years ago, chiefly through the strenuous efforts of highly intelligent native detectives. A diabolical plot to destroy a whole family, of which four died and several were nearly killed, was the so-called De Ga conspiracy in 1872. An unknown messenger delivered two confectionery cakes as a gift with the compliments of a near relation. Fatal results ensued with all who partook of

the sweets. Suspicion at last fell upon a brother of the De Ga family who hated his relations and who accomplished the deed, assisted by an accomplice and especially by his father who pretended to invoke the aid of sorcery.

Twenty years later a family of five persons was destroyed by one of the sons, Bachoo, a spendthrift and gambler, who wished to expedite his inheritance. Strychnine was the drug used, and it was administered by the cook in the food he prepared. Bachoo's father was the first to succumb, and he was quickly followed by the rest of the family. When the strychnine was found in the exhumed bodies, the police cleverly traced its purchase by Bachoo from the druggists, and he and his confederate were tried, convicted and hanged.

The quick-witted Hindu criminal soon adopted the European method of securing ill-gotten gains by the insurance and murder of unsuspecting victims. Palmer of Rugeley and La Pommerais of Paris had many imitators in the East. A poor creature of weak intellect, Anacleto Duarte by name, was done to death in this way by a friend and patron who pandered to his vices and often lent him small sums to be spent in drink. At last the latter, who was a bailiff in one of the Bombay courts, contrived that Duarte should be insured in the Sun Life Office of Canada for the sum of 10,000 rupees. Fonseca, the bailiff, paid the premiums and was named in the policy as the beneficiary to receive the amount insured if it became payable. After Duarte's death the agent of the insurance company, suspecting foul play, refused to hand over the amount and the police were called in. It now appeared that Fonseca and Duarte had visited a liquor shop together; that when two glasses of rum were served to them, Duarte complained that his had a bitter taste, caused no doubt by the addition of a pill which he had seen Fonseca put into his glass. When Duarte's body was exhumed, the existence of strychnine in the viscera was verified, and it was shown that Fonseca had bought it ostensibly as a poison for rats. Fonseca was found guilty and duly hanged.

The criminal operations of the Dacoits who relied upon datura have been already detailed. There were also gangs in Bombay who made it their business to arrange marriages for well-to-do men with suitable spinsters of

great attractions supposed to belong to respectable families. After the marriage the happy bridegroom found to his cost that he had been deceived, and he woke up one fine morning without his wife, who had fled with her accomplices, carrying off all his jewels. In these cases datura again had been the drug used. A company of poisoners long flourished in the province Scinde. These villains were in the habit of disguising themselves as *fakirs* who visited people of known wealth and offered them food in God's name. It was generally accepted and piously consumed with fatal results, after which their houses were plundered. The impunity with which this crime was everywhere perpetrated was one of the greatest evils from which India has suffered.

It is generally believed that many more brutal murders are committed than are actually brought to light. The police custom of dragging witnesses from their houses for long periods encouraged those dwelling in the neighbourhood of the crime to combine in concealing the circumstances and, if possible, the actual fact. It was the habit of the police at one time to pounce down upon a suspected village, assemble the residents, and harangue, browbeat and threaten them with pains and penalties to extort unwilling confessions. Worse still, these witnesses were dragged great distances, a hundred or a hundred and fifty miles, to appear before the courts to give evidence. A great improvement has, however, taken place in recent years. Good roads and railways have greatly facilitated communication, the magistracy is active and efficient and criminal sessions are held monthly even in the most remote districts.

Murder by violence was quite as common in India as by poisoning and committed often by peculiar and unconventional means. Various kinds of weapons were employed. Among them were the bludgeon and the club or *lathi*, the stout and weighty bamboo staff which, when the thick end is bound with iron, becomes a tremendous weapon of offence. The head is most frequently assailed, and deadly blows result in broken scalps or crushed-in skulls with frightful injuries affecting also the heart, liver and spleen. The club is made of hard wood and in shape is not unlike an exaggerated rolling pin. In one case a stone pestle was used to pound in the victim's head.

The favourite cutting weapon was the *tulwar*, or curved sword, which could slash a person almost to pieces with clean-cut saucer-shaped wounds. The *tulwar* has a sharp point, but was seldom used to stab. The halberd had a crescent blade set in a heavy wooden handle. A chopper could do terrible mischief, the axe likewise, and the bill or hatchet with a hooked point. Death could be given with a spear head, arrow or dagger, the kris or the *aro*, a three-pronged striking instrument like a trident. Fatal wounds have been inflicted by a strip of split bamboo long and sharp pointed.

Strangulation has been practised in other ways than by throttling with the handkerchief. It was the custom when killing children for their ornaments to squeeze or compress the throat with the hands, assisting the process with the pressure of the knee or foot, and more violence was often employed than was necessary to cause death. Sometimes one bamboo stick was placed over the throat and another under, so that the compression between became fatal.

Suicide by hanging is common in India, and sometimes murderers, having accomplished their purpose by cruel blows, have been known to suspend their victims by the neck to give the impression of self-destruction. Murder by hanging is not unknown in India. There are several cases on record where persons, after being cruelly misused, were hanged while still alive.

Homicide by exposing the victim to be bitten by poisonous snakes was practised in the olden times and was known to the penal code as a method of inflicting capital punishment. "Witches were crammed into a small chamber full of cobras, where they first half died of fright and then quite died of snake bites." A Gentu prisoner in 1709, after inconceivable torture in the scorching sun by day, was cast by night into a dungeon with venomous snakes to keep him company. It is mentioned in history that Hannibal during a naval action with the Romans launched earthen pots filled with snakes into the enemy's ships.

The high intelligence of the elephant enabled the native to train it to become the executioner of criminals in India. The great beast would obey the orders of his *mahout*, whether to kill instantly by the pressure of his foot or to protract the culprit's agony by breaking his bones one by one and leaving him to die by inches. A parricide, bound, was fastened by his heels with a

small iron chain to the hind leg of an elephant and dragged two miles across country till all the flesh was worn from his bones. At Baroda, in 1814, a slave who had murdered his master was similarly made fast to the right hind leg of an elephant, and at every step of the beast it jerked the victim forward so that in a few moments every limb was dislocated. He was as much broken as on the wheel after being dragged five hundred yards. The man, covered with mud, still showed signs of life, and was suffering excruciating tortures. In the end the elephant, as he had been trained to do, placed his foot on the criminal's head and at once killed him.

The criminal records are full of the forgery of banknotes, the coining of false money, of daring robberies committed when houses are broken into, bank premises invaded and iron safes are forced. Sharpers and swindlers, rivalling the most astute in Europe or America, have flourished and defied the pursuit of the police. Some very notable manufacturers of spurious currency notes have spread dismay in financial circles. One of the most active and successful was a certain Vancutta Chellummyab, whose arrest in Madras in 1872 caused a great sensation throughout India. A vast amount of false Madras currency notes were in circulation in the three presidencies, to the total face value, it was said, of four lacs of rupees. The fraud was discovered at Benares, when a pretended agent of a Madras rajah paid for extensive purchases of jewelry with spurious notes. The chief forger, Vancutta Chellummyab, when finally arrested in Madras, had notes in his possession concealed in an old portmanteau to the value of upwards of two hundred thousand rupees. A few years later Bombay was the centre of operations, and a large quantity of the most perfectly imitated notes were fabricated and in circulation. Information was given by one of the principals in the fraud to divert attention from himself, and a descent made by the police secured a quantity of tools and materials for engraving counterfeit notes and coining bad Australian sovereigns. There were dies, moulds and stamps and a number of coins, foreign and native, manufactured out of the baser metals.

One of the most expert forgers of any age or country was a man named Govind Narayen Davira of Bombay. He came of a family of forgers, the son and grandson of forgers, and did a large business in his nefarious art. A single scrap of handwriting sufficed to enable him to fabricate a whole

document. He knew all about the action of chemicals on paper and could erase all traces of original writing to give a clean sheet for a fresh fraudulent statement. He was known to have converted a government promissory note of 5,000 rupees into one of double the amount. His frauds extended over a period of five or six years and were finally exposed by the failure of an attempt to blackmail.

Davira was a popular person because he was liberal to his poorer confederates. But he fell at last into the hands of the police and was lodged in Poona gaol. Here, being resolved to avoid trial, he compassed self-destruction in a very reckless fashion. A kerosene oil lamp was kept constantly burning in his cell, rather rashly. He contrived to saturate his clothing with the oil and then set fire to himself with the result that he was practically burned alive.

One of the cleverest frauds was the forgery of postage stamps in Bombay. A forged stamp came into the possession of a London collector, by whom the fact was reported to the postmaster-general in Bombay. The forgery was the work of one of Davira's gang and was traced to a Brahmin, Shrida, who had succeeded in producing an excellent imitation with the clumsiest implements. He first printed the stamp on a lithographer's stone and then coloured it so exactly that it deceived even experts. Many hundreds of these stamps were seized when Shrida was arrested.

The ingenuity of the cheats and swindlers in planning their frauds was only equalled by the simplicity of their victims. Over and over again the revelation of hidden treasure was made to dupes, who paid for the knowledge of the whereabouts of the secret hoards, said to be the property of dead rajahs, or the proceeds of great robberies which had to be temporarily abandoned. Credulous fools were imposed upon by fictitious *fakirs* claiming the alchemist's power to transmute the commoner metals into gold and silver, or religious impostors played upon their superstitious disciples to acquire a similar power. There were at one time thirty-five different gangs of swindlers who preyed upon goldsmiths, pawnbrokers and money changers. One of these confederacies was called the "golden gang," the members of which uttered false money or made large purchases of jewelry for imaginary governors and rajahs, for which they evaded

payment, or raised money upon sealed packets, the valuable contents having been spirited away by sleight of hand.

Until the middle of the last century very extensive frauds were practised by the misappropriation of timber in the large forests of India. The natives seemed to have believed in their prescriptive rights to what was really the exclusive property of the state. Thousands of people were engaged in cutting down trees for firewood, when it was within paying distance of removal by road or rail to some neighbouring city. These depredations have now been checked by the establishment of an effective, well-organised forest department, the officers of which control and supervise large tracts of timber, cutting down when desirable and planting afresh to ensure future supply. The reader will remember Rudyard Kipling's graphic account of the Indian forest officer and his remarkable native assistant, Mowgli, of the story, *In the Rukh*, in the volume entitled, "Many Inventions."

Housebreaking is among the minor crimes of India which is especially troublesome. Earthen walls and foundations facilitate the operations of the thieves who are commonly known as "wall-piercers." These depredators are in the habit of making a hole through the walls, driving a gallery, in fact, into the interior of a house through which they can wriggle into the strong room, generally situated about the centre. As it is always understood that the owner of the house may be on the alert and in waiting to receive the thief, as a matter of precaution he will either emerge feet foremost or push before him an earthen vessel having something of the shape of a man's head to receive the first blow of the *tulwar*, or other defensive weapon. The Indian housebreaker is a slippery customer, difficult to seize, for he is usually naked, and has carefully oiled his person so as to easily slip through the fingers of any one who lays hold of him.

I cannot bring this account of crime in India to a close without mention of an atrocity which is unequalled in the annals of human oppression.

What imprisonment may mean in the East, when inflicted in defiance of the most elementary conditions of health in a tropical climate, has been recorded in letters of blood in the awful story of the Black Hole of Calcutta. The miscreant responsible for the crime was the Nabob of Bengal, Surajah Dowlah, who had gained a fleeting triumph over the early English settlers,

and having captured Fort William at the mouth of Hugli, and made all the occupants prisoners, he turned them over to his savage followers. For security they were incarcerated in one small room or chamber some eighteen feet square. The season was the height of summer; the room was closed to the eastward and southward by dead walls and to the northward by a wall and door, so that no fresh air could enter save by two small windows, strongly barred with iron. Into this limited space 146 human beings were crammed, already in a state of exhaustion by a long day spent in fatiguing conflict, and several of them seriously wounded. Piteous entreaties were made to the guards on duty to diminish the numbers imprisoned by removal elsewhere; large sums were offered as the price of this boon, but with no effect. No step could be taken without the permission of the Nabob, who was asleep, and none dared wake him. After vain attempts to break open the doors and fruitless appeals to the mercy of the sleeping Nabob, "the prisoners went mad with despair." The rest of the story can best be told in the words of one of the masters of the English language, Lord Macaulay. "They trampled each other down, fought for the places at the windows, fought for the pittance of water with which the cruel mercy of the murderers mocked their agonies, raved, prayed, blasphemed, implored the guards to fire among them. The gaolers in the meantime held lights to the bars, and shouted with laughter at the frantic struggles of their victims. At length the tumult died away in low gaspings and moanings. The day broke. The Nabob had slept off his debauch, and permitted the door to be opened. But it was some time before the soldiers could make a lane for the survivors, by piling up on each side the heaps of corpses on which the burning climate had already begun to do its loathsome work. When at length a passage was made, twenty-three ghastly figures, such as their own mothers would not have known, staggered one by one out of the charnel house. A pit was instantly dug. The dead bodies, a hundred and twenty-three in number, were flung into it promiscuously and covered up.

"But these things which, after the lapse of more than eighty years, cannot be told or read without horror, awakened neither remorse nor pity in the bosom of the savage Nabob. He inflicted no punishment on the murderers. He showed no tenderness to the survivors. Some of them, indeed, from whom nothing was to be got, were suffered to depart; but those from whom it was thought that anything could be extorted were treated with execrable cruelty.

Holwell, unable to walk, was carried before the tyrant, who reproached him, threatened him, and sent him up the country in irons, together with some other gentlemen who were suspected of knowing more than they chose to tell about the treasures of the Company. These persons, still bowed down by the sufferings of that great agony, were lodged in miserable sheds, and fed only with grain and water, till at length the intercessions of the female relations of the Nabob procured their release. One Englishwoman had survived that night. She was placed in the harem of the prince at Moorshedabad.”

It is told in history how the merciless Nabob was eventually called to strict account. The English at Madras vowed vengeance, and an expedition was forthwith fitted out for the Hugli, small in numbers, but full of undaunted spirit, and led by one of the most famous of British soldiers, Lord Clive. The victory of Plassy, which consolidated the British power in India, overthrew Surajah Dowlah, who expiated the crime of the Black Hole when captured and put to death by his successor Meer Jaffier.

CHAPTER VI

THE ANDAMAN ISLANDS

Revived as a penal settlement after the Indian Mutiny in 1857—Now holds some twelve thousand convicts—Port Blair system established—Graduated treatment—Well-selected marriages—Lapses from good order—Cases and causes—Assassination of Lord Mayo—The aboriginal Andamanese—The Tarawas—Escapes constantly effected by Burmese prisoners—General results achieved—Development by cultivation—Clearance of forests—Tea plantation—Numerous exports—Deportation from the Straits Settlements to Bombay—Ratnagiri gaol.

The Indian government long practised transportation beyond the seas as a punishment for the most determined criminals. The terrors of crossing the “black water” were very potent to the native mind, although the effect of the penalty as a deterrent was never marked and the practice gradually fell into desuetude. But it was revived in 1857 as a solution of the difficulty in dealing with the great body of rebels and mutineers in custody charged with participation in the great Indian Mutiny, a special commission was despatched to visit the Andaman Islands and report upon their fitness for the establishment of a great penal settlement. To the student of penal science, the results achieved in the Indian Ocean, or more exactly, the Sea of Bengal, must be extremely interesting. The system of transportation has succeeded better there than anywhere else, whether in the Australian colonies, where it resulted in the creation of a great nation at the cost of much human misery, or in the French experiment in New Caledonia. Russia has also tried transportation on a gigantic scale with the most deplorable results in Siberia and on the island of Saghalien.

The settlement on the Andamans, or more precisely upon the northern and principal island, has by this time accomplished a very distinct work in penal

colonisation. Many causes, natural and artificial, have contributed to this gratifying result: a fertile soil, a good, albeit tropical climate; an intelligent administration, which has been backed up by the willing efforts of convict labourers, alive generally to their own benefit in making the best of the system in practice. The force available for the cultivation and development of the main island has always been large.

It is an industrious, self-supporting and for the most part peaceable population, where good order and a quiet demeanour are enforced by stringent discipline, although the inherent evil nature of so many criminals cannot be invariably held in check, and ghastly occurrences have from time to time been recorded in almost every nook and corner of Port Blair, the headquarters of the penal settlement. The Andaman convict has committed some heinous offences; he is a murderer in some form or other, deliberate, vindictive, or moved by sudden ungovernable passion; he has been a highway robber or persistent Dacoit; he has forged notes or securities on a great scale. He has betrayed a serious trust, has been a wrecker and desperado, and has more than once deserved the extreme penalty of the law. Beneath the surface the community is a seething mass of depravity, of wickedness, generally latent, but breaking out often in the most violent and bloodthirsty excesses.

To have held the dangerous elements continually in check, to have largely modified and counteracted their evil tendencies, and to have returned the worst characters to their homes cured and reformed is a subject for congratulation by those who achieved it, and some account of the system employed at the Andamans is worth giving here. It is right, however, to admit that this system is not entirely efficacious. All are not amenable to better influences and a certain small percentage remains incorrigible. Some four per cent. of the total population have shown themselves so desperately bad that it has been deemed unsafe to suffer them to leave the precincts of the gaol.

Every convict on first arrival is relegated to the close confinement of the cellular prison by way of breaking him in, and he is detained there under the most irksome conditions for an unbroken period of six months. He remains in his cell all day and all night, save for a brief space spent at exercise with

others, but in strict silence. His next step is to an associated gaol where gang labour of a severe character is enforced, and is imposed for a year and a half. Then come three years of unremitting toil, the exact counterpart of penal servitude as understood in Great Britain—hard labour under supervision, unpaid, unrewarded, but he is well fed, well housed and cared for, and always closely guarded. Five years have thus elapsed in a painfully monotonous and irksome existence, after which his employment is pleasanter and his personal capacity is studied; the more intelligent are selected for positions of trust and authority.

Comparative freedom comes at the end of ten years, the convict gains his ticket-of-leave and is called in local language a “self-supporter.” He has done, more or less, with prison restraints; he lives in some small village in a house of his own and earns his living his own way; he farms; he keeps cattle; he moves about freely unguarded and unwatched; he sends home to the mainland for his wife and children; or, if single, he may marry a female convict in the same position as himself. His condition is to a certain extent enviable. If industrious, he may make and put by money, but still he is tied and bound by regulation; he has no civil rights, and is in the hands of a paternal authority which prescribes his place of residence and will suffer him to move to and fro within his village, if well conducted, but he cannot leave the settlement and he must not be idle under pain of the loss of privileges and relegation to enforced labour. Existence nevertheless is tolerable, and in this way he completes ten or fifteen years more until at length the time for absolute release arrives. In the earlier period of this last stage he has received assistance in the shape of free gifts of food and tools and a roof to cover him, but his self-reliance is stimulated by the obligation in later years to fend for himself and accept all the public burdens of the community. He must pay rent and taxes and all charges exacted from the free population. All the disabilities are equally imposed upon female convicts with permission to marry or enter domestic service after five years of conditional liberation.

We see in this system a consistent effort to encourage self-help and self-restraint. Moral improvement is its great aim; good conduct is encouraged; retrogression, or lapse into wrong-doing, is punished by the withdrawal of privileges and a return to irksome restraint. On the other hand, substantial

reward is offered to those who have made the best use of their ticket-of-leave, and the old convict, purged of his original offence, emerges, and, backed by the small capital he has saved, has become an orderly and reputable member of society, thoroughly reformed, broken to harness and reasonably certain to continue in the straight road. He is neither pauper nor gaol-bird; he is no unwelcome burden on his relatives, no menace to public security, but a source of strength rather than weakness to the body politic. Penal exile has never before achieved such excellent results. Steady industry, as we have seen, is the general rule, and morality is greatly encouraged. Convict marriages, such a fruitful source of evil elsewhere, as in New Caledonia and Saghalien, where they have fallen largely into disuse, are preceded by so many precautions that the bond when entered into is seldom broken. The fitness of the contracting parties is personally inquired into by the chief authority of the place who must give his sanction or no marriage can take place. Permission is refused in certain cases as when a husband in India declines to divorce his convict wife, or when the applicants are of bad character or the male is an hereditary Dacoit, or when there is a difference in caste. Great care is also taken of the children when any are born. The young are well cared for; primary education is compulsory and technical instruction is free to all. Thrift is steadily inculcated in the rising generation and stimulated by the example of the elders. No institution is more flourishing at Port Blair than the savings bank, and the self-supporting convicts are often considerable depositors from the economies made in their allowance and the profits on their labour. Sanitation receives the very best attention in the islands, and both death and sick rate are, for the East, exceptionally low. The public health is seldom, if ever, affected by malignant epidemic disease; cholera is a rare visitant, and small-pox is constantly kept in check. There is an abundant and most efficient medical staff, and the convicts at large, as well as those actually in durance, can count upon the official doctor's unremitting care.

Although the general tone of the settlement is excellent, and good order is preserved, there are occasionally lapses among the convicts whose manners and dispositions are by no means mild and submissive, nor can their evil impulses be easily repressed, or still less entirely stamped out. The convict temper is irritable and breaks out often into resistance to authority and bitter quarrels of one with another which sometimes end in murderous affrays.

There is a seamy side to Port Blair which is often shown in resistance to authority exercised, as it mostly is, by fellow convicts advanced to positions of trust; for some six per cent. of well-conducted convicts are regularly employed as warders, guards and overseers. This is in accordance with the general practice in India, although entirely condemned by modern penal science. Nevertheless, mutiny and insubordination are uncommon on any large scale, although vindictive feelings are aroused and cherished at real or fancied injustice and oppression, and in the annals of murders committed one or two convict officials killed by comrades figure annually.

The causes of murder in the Andamans hardly differ from those inciting to it elsewhere. Murderous passion is swiftly aroused among men with savage, irritable tempers, quick to quarrel, quicker still to strike; consuming thirst for revenge will be slaked only in blood; and greed and covetousness are easily awakened in people whose self-control is weak. A small reason often suffices for the infliction of death. A convict asked a village woman to be allowed to husk his rice in her mortar and killed her brutally with an axe when she refused. An old Dacoit, who had been refused permission to marry, killed a more fortunate rival to whom the woman of his choice was given. Two convicts, about to be granted tickets as self-supporters, were eager to obtain sufficient funds to give them a good start; they discovered that a convict, who was a notorious miser, had a secret hoard, and his fate was sealed. His body was picked up in a running stream with his head broken in. A somewhat similar case was that of a labouring convict who was in possession of a sum of money lent by a friend; he first was inveigled into a lonely spot and there knocked down by a blow on the eye, after which he was strangled. A convict employed as a petty officer in hospital incurred the deadly enmity of a patient for reporting him to the doctor, and the patient gave vent to his hatred by killing his enemy with a thrust of a pointed bamboo. The same weapon was used by another convict who beat out the brains of a petty officer for slapping him on parade in the presence of a hundred men. One convict had caught another hanging about the barrack room bent upon thieving, and having expressed his intention of denouncing him was murdered while asleep on his bed. A convict warder supervising a party of sail-makers had reason to find fault with one of his charges for idling, and at the first opportunity, before anyone had time to

suspect or prevent him, the labourer picked up a knife and stabbed the overseer.

Any weapon would serve to give effect to the homicidal frenzy; sometimes it was a rice pounder, sometimes a wooden crutch, sometimes an axe for cutting firewood, sometimes a heavy mallet used in wool-teasing. The convicts were known to commit the capital offence in order to draw down the death penalty when they were tired of life from long brooding over fancied unjust treatment. Sentence of death by hanging was the invariable requital of murder when clearly proved, and it was passed by a sessions' judge, subject to subsequent confirmation by a court of reference. Lesser punishments were sometimes imposed, such as prolonged transportation or relegation to the chain gang, while corporal punishment was ordered for lesser offences.

An atrocious murder which echoed through the whole world was that of the viceroy of India, Lord Mayo, who was killed by an Andaman convict in 1872. The viceroy had visited Mount Harriet, a finely wooded slope rising above Port Blair and looking out over Viper Island with a glorious view eastward, in order to judge of its suitability as a sanatorium. He had just finished the descent. "The ship's bells had just rung seven; the launch with steam up was whizzing at the jetty stairs; a group of her seamen were chatting on the pier-end. It was now quite dark, and the black line of the jungle seemed to touch the water's edge. The viceroy's party passed some large loose stones to the left of the head of the pier, and advanced along the jetty; two torchbearers in front." The viceroy, preceding the rest, stepped quickly forward to descend the stairs to the launch. The next moment the people in the rear heard a noise, as of "the rush of some animal" from behind the loose stones; one or two saw a hand raised and a knife blade suddenly glisten in the torchlight. The viceroy's private secretary heard a thud, and instantly turning round, found a man "fastened like a tiger" on the back of Lord Mayo.

"In a second twelve men were on the assassin; an English officer was pulling them off, and with his sword-hilt keeping back the native guards, who would have killed the assailant on the spot. The torches had gone out; but the viceroy, who had staggered over the pier-side, was dimly seen rising

up in the knee-deep water, and clearing the hair off his brow with his hand as if recovering himself. His private secretary was instantly at his side in the surf, helping him up the bank. 'Burne,' he said quietly, 'they've hit me.' Then, in a louder voice, which was heard on the pier, 'It's all right, I don't think I'm much hurt,' or words to that effect. In another minute he was sitting under the smoky glare of the re-lit torches, on a rude native cart at the side of the jetty, his legs hanging loosely down. Then they lifted him bodily on to the cart, and saw a great dark patch on the back of his light coat. The blood came streaming out, and men tried to staunch it with their handkerchiefs. For a moment or two he sat up on the cart, then he fell heavily backwards. 'Lift up my head,' he said faintly, and said no more."

The assassin, Sher Ali, was a very brave man belonging to one of the Afridi tribes, who had done excellent service to more than one commissioner at Peshawar and distinguished himself as a soldier. He was completely trusted by Colonel Reynolds Taylor, one of the best of our Indian officers, when at Peshawar, and was often in attendance on his family; in fact, he was the confidential servant of the house. This man, however, belonged to a society in which tribal feuds were a hereditary custom. Some such feud existed in his family and he was called upon to take his part in exacting a bloody vengeance for a quarrel. Had he committed the murder on his own side of the frontier, no notice could have been taken of it; and it would have been esteemed a legitimate deed sanctioned by the religious feelings and customs of the tribe; but his offence was committed within British territory and must be tried by British laws. He was convicted and sentenced to transportation to the Andamans instead of death, which he would greatly have preferred. Continually brooding under a sense of wrong, he took the first opportunity that offered for murderous retaliation and found the death he desired, on the gallows.

Attempts to escape from the islands were at times frequent, encouraged by the easy access to the sea and the facility with which boats could be seized. But recaptures were also constantly made, and there were other chances against the fugitives, especially that of being run down by the aboriginal Andamanese. The natives of these islands are savages of a Nigrito race allied to the Papuans, but who, from having had no connection with the outer world for several centuries, have kept their blood absolutely pure.

They are of small stature, the males a little under five feet in height, but finely made and well proportioned. In colour they are a jet black, and are among the darkest hued specimens of mankind. They are inveterate smokers, men, women and children, and are bright and intelligent, somewhat childish, petulant and quick tempered, but merry and light-hearted. They constitute a good unofficial guard, and as they constantly prowl round the convict settlements are a great deterrent to escape. Being well used to jungle life, they are very successful trackers, who frequently bring back fugitives dead or alive. If by chance the evading convicts fall into the hands of the Jarawa tribe, their fate is sealed. These Jarawas are and always have been utterly irreclaimable; neither kindness nor force has had any appreciable effect in overcoming their unconquerable dislike to strangers, even of their own blood belonging to other tribes. Armed with bows and arrows, they show fight whenever encountered, and when pressed and punishment is attempted, they retire into the impenetrable jungle. With the exception of these irreconcilables, the Andamanese have been trained, like other wild animals, by patience and kindness to treat us with entire confidence and trust.

The strong yearning to escape torments more especially the natives of Burmah, a large number of whom are deported to the Andamans. They are a semi-amphibious race, largely brought up to a life on the water, expert boatmen and tireless swimmers. Precise rules are in force at the Andamans that only a limited number of Burmese may be included in any one boat's crew. More than half the escapes by water were accomplished by Burmese, who boldly ventured out into the open sea, risking all its perils to win across to their dearly loved native land. It is a curious fact that the Burmese Dacoit, who would face the death penalty with fortitude, has always dreaded imprisonment or deportation with overmastering terror. One explanation of this consuming dread is the not uncommon fear of the unknown. Again, the treatment of prisoners in Burmah under the native régime was merciless; the most excruciating tortures were the rule, and protracted life was worse than a thousand deaths. Exile to the Andaman Islands was anticipated with nameless apprehension. The case of a famous Dacoit may be quoted in proof of this. He had been long in custody; he awaited his trial with patience and resignation, and he would have heard a sentence of death unmoved, but he was quite overcome when a short term

of transportation to the Andamans was passed upon him, although it was accompanied by a promise of early conditional liberation. When the time came for his departure, he refused to move off with his escort, kicking and even biting everyone within reach, and eventually he had to be tied with ropes and carried along.

In this connection, Major E. C. Browne, in “The Coming of the Great Queen,” tells the following:

“It was the same with other Dacoits who had been taken red-handed. Two or three were shot, others flogged and released and several were detained for deportation. These were the gloomiest of all and begged to be killed or released. One fellow actually succeeded in evading his sentence. He had got hold of a soldier’s boot-lace and with this he strangled himself during the night. I should scarcely have been able to credit this story if the witness of the dead man in the morning, with the boot-lace drawn so tight that it had actually penetrated the skin, had not been an officer of my own regiment whose veracity was unimpeachable.”

The best general account of the results obtained in the Andamans is found in the address to the Society of Arts by Colonel Temple, sometime chief commissioner to the Andaman and Nicobar Islands. The Andaman penal system “is the result of the constant attention of the government which created it, and is the outcome of the measures of practical men, devised to meet the difficulties with which they have found themselves face to face, and reduced to order and rule by some of the keenest intellects that have worked in India for many years past.” Repeatedly tinkered and patched and recast and remodelled though it has been, the Andaman system is still inchoate, still on its trial, as it were. It could not well be otherwise, for in dealing with the criminal we are attempting to solve a mighty problem as old as criminality itself.

From the best estimates at hand we may take it that the permanent convict strength of the settlement may be placed at about twelve thousand, of whom about eight hundred are women, and the rule is that only life convicts are sent from India and life and long-term convicts from Burmah. The people received, therefore, are the murderers who have for some reason escaped the death penalty, and the perpetrators of the more heinous offences against

person and property, the men of brutal violence, the highwaymen, the robbers, the habitual thieves and the receivers of stolen goods, the worst of the swindlers, forgers, cheats, coiners and, in fact, the most unrestrained temperaments of a continent. These considerations show the scale of the work and the nature of the task. Any one observing the work of the English in the East may possibly be struck with the idea that the reason for the acknowledged capacity of the race for colonial enterprise and the maintenance of empire is the ability and the willingness of the average Englishman to put his hand to any kind of work that may come his way, without any special training, from framing suitable laws and regulations and creating suitable organisations to making roads and ditches, building houses and clearing land and ploughing it. Here in Port Blair, the officers entrusted with the creation and organisation had no training for the work and were without any special guidance and teaching, yet they managed, with the worst possible material to work upon, to create in little more than forty years, upon primeval forest and swamp, situated in an enervating and, until mastered, a deadly climate, a community supporting itself in regard to many of its complicated wants.

They began with the dense forests, the fetid swamps and the pestilential coral banks of tropical islands, and have made out of them many square miles of grass and arable lands, supporting over fifty villages besides convict stations. Miles upon miles of swamp have been reclaimed, the coral banks have been controlled and a place with regard to which the words climate and pestilence were almost synonymous has been turned into one favourably spoken of as to its healthiness. The settlement now grows its own vegetables, tea, coffee, cocoa, tapioca and arrowroot, some of its ordinary food grains and most of its fodder. It supplies itself with the greater part of its animal food and all its fuel and salt. In other lines of work, it makes its own boats and provides from its own resources the bulk of the materials for its buildings which are constructed and erected locally. Among the materials produced are all the timber, stone, bricks, lime and mortar, and most of the iron and metal work are made up there from raw material. In the matter of convict clothing, all that is necessary to be purchased elsewhere is the roughest of cotton hanks and wool in the first raw condition, every other operation being performed on the spot. It provides much of its own leather.

In achieving the results, the officers have had first to learn for themselves as best they could how to turn out the work to hand and then to teach what they had learned to the most unpromising pupils that can be imagined for the work required of them in Port Blair. And they have been hampered all along by the necessities of convict discipline, by the constant release of their men and their punishment for misconduct. It is under such conditions that the corps of artificers and other convicts have had to be utilised. Nevertheless, the roads and drains, the buildings and boats, the embankments and reservoirs, are as good and durable as are the same class of structures elsewhere. The manufacturers are sufficient for their purpose, and there are among the taught those who are now skilled in the use of many kinds of machinery. Cultivation is generally fair and some of it very good; the general sanitation is literally second to none.

First of all the industries of the Andamans is that of timber, and to accelerate and increase it a steam tramway has been instituted and there are now some fourteen miles of line connecting the forests with the shores of Port Blair. As a further adjunct steam saw-mills were erected in 1896 and a forest department that employs from five to six hundred men daily under its own officers, not only supplies the settlement with all of its requirements in timber from the local forests, but also exports timber and forest produce to various places in India and Europe. Of these latter exports, rattans and gurjun oil are the chief; other natural products of the islands are trepang, tortoise-shell and edible birds' nests, but they are collected only in small quantities. The principal cultivations in which convicts and ex-convicts are engaged are paddy, sugar cane, Indian corn and turmeric; cocoanuts have during the past thirty-five years been extensively planted, and besides the agricultural products previously mentioned, vegetables and fruits of various kinds are grown. The larger industries in which the penal community is engaged have already been alluded to, but there are many minor employments, the products from which also go toward making the settlement self-supporting. Among these are to be found the manufacture of all kinds of furniture, cane chairs, baskets, many varieties of bamboo work and ornamental woodcarving, woven articles from serviettes to saddle-girths, and blankets, pottery, rope and mats, silver, tin, brass and iron work, shoes, rickshaws and carts, besides the production of such materials as lime, bricks and tiles. Port Blair is in communication three and often four times a

month with Calcutta, Madras and Rangoon by the vessels of the Asiatic Steam Navigation Company. The distances between the settlement and the ports named are 796, 780 and 387 miles respectively.

The earliest penal settlement on the Andamans was in the southern island, where it was founded on the present site of Port Blair in 1792. It was known as the "old harbour." After three years the establishment was moved to the present Port Cornwallis on the northern island, but this proved to be most unhealthy and it was closed, the convicts, numbering some two hundred and seventy, being removed to Penang, at the extremity of the Malay Peninsula. In the early "fifties" the Straits Settlements sometimes sent their long-term convicts to Bombay, from where they were usually drafted to such moist and congenial climates as Tannah and Ratnagiri. By good behaviour they earned tickets-of-leave to the hill stations, Mahabuleshwar and Matheran, where they became the market-gardeners of the place, many preferring to remain after their time had expired, respected and respectable citizens, often possessed of considerable wealth. At one time the Ratnagiri gaol contained about three hundred and sixty convicts; "at least two-thirds were Chinamen and Malays from the Straits, great ruffians, each with a record of piracy or murder, or both combined. Many of them were heavily fettered and carefully guarded by armed police when at their ordinary work in the 'laterite' quarries, for they were mostly powerful men;" the tools they used were formidable weapons and as there were known to be deadly feuds always present among them, serious disturbances and outbreaks were constantly dreaded. Nevertheless, misconduct was exceedingly rare; breaches of gaol discipline were much fewer among these desperadoes than among the milder Hindus in the work-sheds within the gaol. The fact having in due course created much surprise, inquiries were instituted as to why pirates and murderers, usually so insubordinate in other places, were so well-conducted and quiet at Ratnagiri.

The riddle was presently solved. "For some years one Sheik Kassam had been gaoler. Belonging to the fisherman class and possessed of very little education, he had, nevertheless, worked his way upward through the police by dint of honesty, hard work and a certain shrewdness which had more than once brought him to the front. At last, toward the end of his service, the gaolership falling vacant, he was, with everyone's cordial approval,

nominated to the post.” With comparative rest and improved pay, the old gentleman waxed fatter and jollier and was esteemed one of the most genial companions the country could produce. The cares of state, and the responsibility of three hundred murderous convicts, weighed lightly on Sheik Kassam. He developed a remarkable talent or predilection for gardening, almost from the first. “He laid out the quarry beds, brought water down to irrigate them, produced all the gaol required in the way of green stuff, and made tapioca and arrowroot by the ton. The better plot of land belonging to the gaol lay between Sheik Kassam’s own official residence, a tiny bungalow-fashioned dwelling, and a walled courtyard near to the highroad. The sheik had no difficulty in obtaining permission to erect a high wall of rubble from the quarries along the whole road frontage, so that, as he urged, the convicts at work in the garden would not be gazed at by passers-by, and that forbidden articles, such as tobacco, sweetmeats, liquor, and the like, should not be passed or even thrown over to them.”

Presently this favourite slice of garden was safely boxed in from the public view by an enclosure some eight feet high, extending from the gaol itself round to the gaoler’s house, the only entrance to it being a little wicket-gate by the side of the sheik’s back-yard.

At last the head-superintendent of the Bombay prison heard that Sheik Kassam’s disciplinary system consisted in his bringing the most dangerous of the Chinamen and Malays quietly into his back-yard from the adjoining garden, and there regaling them with plenty of sweetmeats, sugar, drink in moderate quantity, and adding even the joys of female society of a peculiar sort. If any one became unruly or saucy, he was liable to get a dozen lashes, but if they behaved decently they all had their little festivals with regularity. After this discovery, poor old Sheik Kassam’s character as a model gaoler was gone; he was dismissed, but with a full pension which he did not live long to enjoy.

CHAPTER VII

PRISONS OF BURMAH

British acquisition of Burmah—Quarrels with the king in 1824—His reprisals—British subjects seized and sent to prison—Mr. Henry Gouger's narrative—The "Death Prison"—Gigantic stocks—Filthiness of prison—Tortures inflicted—Barbarous trials—Horrible life—Rats and vermin—Smallpox—Tobacco a valuable disinfectant—Another "Black Hole"—Chained to a leper—Released by the advance of British troops—Penal code of Burmah—Ordeals and punishments—Treading to death by elephants—Dacoity the last form of resistance to British rule—Prison life—The Burmese gaol-bird—An outbreak.

The acquisition and annexation of Burmah by Great Britain, first the lower province with three-fourths of the seaboard, and then the entire kingdom, were accomplished between 1824 and 1886, in a little more than half a century, that is to say. Until this took place the country was generally in a state of anarchy, the king was a bloodthirsty despot, and the state council was at his bidding no better than a band of Dacoits who plundered the people and murdered them wholesale. The ruling powers were always anxious to pick a quarrel with their powerful British neighbours, and were so unceasingly aggressive that they brought on a war in 1824, which ended in the capture of Rangoon and the occupation of Pegu and Martaban with the cession of the coast province of Aracan.

The outbreak of hostilities led to cruel retaliation by the king of Burmah upon all Europeans who resided in the country, whether as missionaries or merchants engaged in trade. One of them, an Englishman, Mr. Henry Gouger, was arrested as a spy and arraigned before a court of justice with very little hope of escaping with his life. He was fortunately spared after suffering untold indignities and many positive tortures. Eventually he published his experiences, which remain to this day as a graphic record of

the Burmese prisons as they then existed. He was first committed to the safe keeping of the king's body guard, and confined with his feet in the stocks; then he was transferred to the "death prison," having been barbarously robbed and deprived of his clothing. He was not entirely stripped, but was led away with his arms tied behind his back, bare-headed and bare-footed to the *Let-ma-yoon*, the "antechamber of the tomb."

Let me proceed now in the narrator's own words:—

"There are four common prisons in Ava, but one of these only was appropriated to criminals likely to suffer death. It derived its remarkably well-selected name, *Let-ma-yoon*, literally interpreted, 'Hand, shrink not,' from the revolting scenes of cruelty practised within its walls. This was the prison to which I was driven. My heart sank within me as I entered the gate of the prison yard which, as it closed behind me, seemed to shut me out forever from all the interests and sympathies of the world beyond it. I was now delivered over to the wretches, seven or eight in number, who guarded this gaol. They were all condemned malefactors, whose lives had been spared on the condition of their becoming executioners; the more hideous the crime for which he had to suffer, the more hardened the criminal, the fitter instrument he was presumed to be for the profession he was henceforth doomed to follow. To render escape without detection impossible, the shape of a ring was indelibly tattooed on each cheek, which gave rise to the name they were commonly known by, *pahquet*, or 'ring-cheeked,' a term detested by themselves as one of reproach and one we never dared to apply in addressing them. The nature of his qualification for the employment was written in a similar manner across the breast. The chief of the gang was a lean, wiry, hard-featured old man whom we taught ourselves to address under the appellation *aphe*, 'father,' as did all his subordinates. Another bearing an appropriate motto had murdered his brother and had hidden his body piecemeal under his house. A third was branded *thoo-kho*, 'thief.' This troop of wretches were held in such detestation that the law prohibited their entering any person's house except in execution of their office. It happened, soon after I entered, that the exigencies of this brotherhood were great from an increase of business, and no brave malefactor (inhumanity was always styled bravery here) being ready to strengthen the force, a young man convicted of a petty offence was

selected to fill the vacancy. I beheld this poor youth doomed to the most debasing ignominy for the rest of his life by these fatal rings, his piteous cries at the degradation he was undergoing being drowned by the jeers and ridicule of the confederates. They soon made him as much a child of the devil as themselves.

“The ‘father’ of this interesting family received me at the gate with a smile of welcome like the grin of a tiger, and with the most disgusting imprecations hurried me to a huge block of granite embedded in the centre of the yard. I was made to sit down and place my ankles on the block of stone while three pairs of fetters were struck on with a maul, a false blow of which would have maimed me forever. But they were too expert for this, and it was not a time to care for minor dangers. Thus shackled, I was told, as if in derision, to walk to the entrance of the prison-house not many yards distant; but as the shortness of the chains barely permitted me to advance the heel of one foot to the toe of the other, it was only by shuffling a few inches at a time that the task was accomplished. Practice, however, soon made me more expert.

“It is not easy to give a correct idea of the prison which was destined to be my dwelling place for the first year of my captivity. Although it was between four and five o’clock on a bright sunny afternoon, the rays of light only penetrated through the chinks and cracks of the walls sufficiently to disclose the utter wretchedness of all within. Some time elapsed before I could clearly distinguish the objects by which I was surrounded. As my eyes gradually adapted themselves to the dim light, I ascertained it to be a room about forty feet long by thirty feet wide, the floor and sides made of strong teak-wood planks, the former being raised two feet from the earth on posts, which, according to the usual style of Burmese architecture, ran through the body of the building, and supported the tiled roof as well as the rafters for the floor and the planking of the walls. The height of the walls from the floor was five or six feet, but the roof being a sloping one, the centre might be double that height. It had no window or aperture to admit light or air except a closely woven bamboo wicket used as a door, and this was always kept closed. Fortunately, the builders had not expended much labour on the walls, the planks of which here and there were not very closely united, affording through the chinks the only ventilation the

apartment possessed, if we except a hole near the roof where, either by accident or design, nearly a foot in length of decayed plank had been torn off. This formed a safety-valve for the escape of foul air to a certain extent; and, but for this fortuitous circumstance, it is difficult to see how life could have been long sustained.

“The only articles of furniture the place contained were these:—First and most prominent, was a gigantic row of stocks similar in its construction to that formerly used in England, dilapidated specimens of which may still be seen in some of the market places of our country towns. It was capable of accommodating more than a dozen occupants. Several smaller varieties of the same species lay around, each holding by the leg a pair of hapless victims consigned to its custody. These stocks were heavy logs of timber bored with holes to admit the feet and fitted with wooden pins to hold them fast. In the centre of the apartment was placed a tripod holding a large earthen cup filled with earth oil to be used as a lamp during the night watches; and lastly, a simple but suspicious looking piece of machinery, whose painful uses it was my fate to test before many hours had elapsed. It was merely a long bamboo suspended from the roof by a rope at each end and worked by blocks or pulleys to raise or depress it at pleasure.

“The prison had never been washed, nor even swept, since it was built. So I was told, and I have no doubt it was true, for, besides the ocular proof from its present condition, it is certain no attempt was made to cleanse it during my subsequent tenancy of eleven months. This gave a kind of fixedness or permanency to the fetid odours, until the very floors and walls were saturated with them. Putrid remains of castaway animal and vegetable stuff which needed no broom to make it ‘move on’—the stale fumes from thousands of tobacco pipes—the scattered ejections of the pulp and liquid from their everlasting betel, and other nameless abominations still more disgusting, which strewed the floor—and if to this be added the exudation from the bodies of a crowd of never-washed convicts, encouraged by the thermometer at 100 degrees, in a den almost without ventilation—is it possible to say what it smelled like? As might have been expected from such a state of things, the place was teeming with creeping vermin to an extent that very soon reconciled me to the plunder of the greater portion of my dress.

“When night came on, the ‘father’ of the establishment, entering, stalked towards our corner. The meaning of the bamboo now became apparent. It was passed between the legs of each individual and when it had threaded our number, seven in all, a man at each end hoisted it up by the blocks to a height which allowed our shoulders to rest on the ground while our feet depended from the iron rings of the fetters. The adjustment of the height was left to the judgment of our kind-hearted parent, who stood by to see that it was not high enough to endanger life nor low enough to exempt from pain. Having settled this point to his satisfaction, the venerable chief proceeded with a staff to count the number of the captives, bestowing a smart rap on the head to those he disliked, whom he made over to the savage with a significant hint of what he might expect if the agreed tally were not forthcoming when the wicket opened the next morning. He then took his leave, kindly wishing us a good night’s rest, for the old wretch could be facetious; the young savage trimmed his lamp, lighted his pipe, did the same act of courtesy to all who wished to smoke, and the anxious community, one by one, sought a short oblivion to their griefs in sleep.

“In vain, however, did our little party court that blessing; passing by the torment of thought, the sufferings of the body alone were enough to prevent it. I had youth on my side, and my slender frame enabled me to bear the suspension better than my fellow sufferers. The tobacco smoke was a mercy, for it robbed the infliction of half its torment. A year afterward, when we had to undergo a punishment somewhat similar, though in a purer atmosphere, we found the sting of the mosquitos, on the soles of our undefended feet, ‘without the power to scare away’ these venomous little insects, was intolerable; whereas in this well-smoked apartment a mosquito could not live. We were not aware at the time what a happy exemption this was. What a night was that on which we now entered! Death, in its most appalling form, perhaps attended with the agony of unknown tortures, was thought by all to be our certain lot. Kewet-nee, who occupied the next place on the bamboo, excited a horrible interest by the relation of a variety of exquisite tortures which he had known to be perpetrated under that roof.

“The rays of the morning sun now began to struggle through the chinks of the prison walls and told us that day dawned, bringing life and happiness to the world outside, but only the consciousness of misery to all within. The

prisoners being counted and found to tally correctly with the reckoning of overnight, symptoms of the routine of the day began to attract attention. Our considerate parent made his appearance and with his customary grin lowered down the bamboo to within a foot of the floor, to the great relief of our benumbed limbs in which the blood slowly began again to circulate. At eight o'clock the inmates were driven out in gangs of ten or twelve at a time, to take the air for five minutes, when they were huddled in again, to make way for others; but no entreaty could secure a repetition of the same favour that day, though a bribe, which few could promise, might effect it. Fresh air, the cheapest of all the gifts of Providence, was a close monopoly in the hands of the 'sons of the prison,' who sold it at the highest price, and with a niggard hand.

"After breakfast the business of trying the prisoners began, and each was brought in turn before the *myo-serai*, or assistant to the governor. The first was a young man accused of being concerned in the robbery of the house of a person of rank. Whether the accusation was well founded or not I had no means of judging except by the result; but certainly the man had not the appearance of a robber. As a matter of course, he denied the crime; but denial was assumed to be obstinacy, and the usual mode of overcoming obstinacy was by some manner of torture. By order of the *myo-serai*, therefore, he was made to sit upon a low stool, his legs were bound together by a cord above the knees and two poles inserted between them by the executioners, one of whom took the command of each pole, the ground forming the fulcrum. With these the legs were forced upwards and downwards and asunder, and underwent a peculiar kind of grinding, inflicting more or less pain as the judge gave direction. Every moment I expected to hear the thighbone snap. The poor fellow sustained this torture with loud cries but still with firmness until the agony became so intense that he fainted. 'The tender mercies of the wicked are cruel.' To restore animation they resorted to cold water and shampooing. Thus revived, he was again thrust back into his den with menaces of fresh torture on the morrow, as no confession had yet been wrung from him. I may as well finish the revolting story at once.

"True to his word, the *myo-serai* returned the next day to renew his diabolical practices. This time the culprit was tied by the wrists behind his

back, the rope which bound them being drawn by a pulley just high enough to allow his toes to touch the ground, and in this manner he was left until he should become more reasonable. At length, under the pressure of agonising pain, just in time to save the dislocation of the shoulder, the criminal made his confession and criminated two respectable persons as accomplices. From what followed I presume this was all that was wanted. The man of justice had now two men in his toils who were able to pay. The unfortunate man, who, when relieved from the pain of the torture, acknowledged he had accused innocent people, was returned to gaol fearfully mangled and maimed; but instead of meeting a felon's fate, when time had been given to fleece the two victims, he was released.

“Within the walls nothing worthy of notice occurred until the hour of three in the afternoon. As this hour approached, we noticed that the talking and jesting of the community gradually died away. All seemed to be under the influence of some powerful restraint, until that fatal hour was announced by the deep tones of a powerful gong suspended in the palace yard, and a deathlike silence prevailed. If a word was spoken it was in a whisper. It seemed as though even breathing were suspended under the control of a panic terror, too deep for expression, which pervaded every bosom. We did not long remain in ignorance of the cause. If any of the prisoners were to suffer death that day, the hour of three was that at which they were taken out for execution. The manner of it was the acme of cold-blooded cruelty. The hour was scarcely told by the gong when the wicket opened, and the hideous figure of a spotted man appeared, who, without uttering a word, walked straight to his victim now for the first time probably made acquainted with his doom. As many of these unfortunate people knew no more than ourselves the fate that awaited them, this mystery was terrible and agonising; each one fearing, up to the last moment, that the stride of the Spot might be directed his way. When the culprit disappeared with his conductor and the prison door closed behind them, those who remained began again to breathe more freely; for another day, at least, their lives were safe.

“It is not my intention to make this narrative a chronicle of all the diabolical cruelties in this den of abominations, but the first specimen which greeted our eyes on the morrow may serve as a fair sample of the practices which it

was our fate to behold almost daily. The routine was generally this:—The magistrate takes his seat in the front of the shed in which we occupy the background, as though the spot had been selected for our convenience, as spectators to behold an amusing exhibition. A criminal is now summoned from the interior. He hobbles out and squats down in terror before the judge; the crime of which he is accused is stated to him. He denies it; he is urged by various motives to confess his guilt; perhaps he knows that confession is only another word for execution; therefore he still denies. The magistrate assumes an air of indignation at his obstinacy and now begins the work of his tormentor, the man with the ringed cheek who has hitherto stood by waiting the word of command. He has many means at his disposal, but the one selected for the present instance was a short iron maul. It would simply excite disgust were I to enter into detail. Suffice it to say that after writhing and rolling on the ground and screaming with agony for nearly half an hour, the unfortunate wretch was assisted to his den, a mass of wounds and bruises pitiable to behold, leaving his judge not a whit the wiser.

“By degrees we settled down into the habits of the prison and were becoming familiar with such scenes as I have recounted. We began also to speculate on the length of time nature could hold out, if we were left to test it. How long could we live in such a plight without the use of water or other means of cleanliness? Would habit reconcile us to it as it apparently had done many of our fellow prisoners? Some of them had lived there for years. We gradually became acquainted with them and with their crimes, real or imputed. There were many cases in the calendar that were almost incredible and showed that accident, caprice, superstition and even carelessness occasioned their confinement. One grimy, half-starved old man had been kept there three years and neither knew why he was there nor who sent him. The crime of another must have been that of a madman, or more probably it was a false accusation, preferred to gratify private revenge. He was said to have made an image of the king and to have walked over it. The mere imputation of practising necromancy against the sacred person of the king was a fatal charge. The poor fellow was taken from among us at the hour of midnight and despatched by breaking his spine. Why this singular method of slaughter was resorted to, as well as the manner of carrying it into execution, was as mysterious as the crime itself; they were not at all

particular as to the mode of depriving their victims of life, but seemed to be guided altogether by caprice.

“The plan of the prison yard shows that there were a number of small cells used by the ringed brotherhood, and the pleading of our amiable protectress secured for us the liberty to occupy them. It is true they were very small, the one I inhabited being about five feet wide with just enough length to lie down in; it was so low that I could not stand upright except in the middle where the roof was highest; but it was Elysium when compared with the suffocating choke of the inner prison. Nor could it be called altogether solitary confinement, for one of our gaolers had a pretty daughter about sixteen years old, who took a wonderful fancy to me and was a frequent visitor in my cell. She supplied me, too, with an unspeakable luxury, water for ablution. Oh, who can appreciate the gift but those who have been long deprived of it? A scrap of rag, moistened with some of the water given us to drink, only served to smear the grime like a plaster over our bodies. Now, once again I could call myself comparatively clean. My cell had other advantages. My eyes escaped many scenes of revolting cruelty; my ears, many foul anathemas and gross abuse; my lungs and olfactories, all sorts of abominations. The chief loss was the society of my friends. The rats, too, were numerous and troublesome at first; but these, though a disgusting nuisance, I managed to turn to account by the fancy of the *pahquets* for their flesh. The Burmese hold rats in about the same estimation as we do hares, and sell them commonly in their markets for about their own weight in lead. My cell, therefore, might be regarded as a well-stocked preserve for game. The burrows ran in all directions, and hardly a day passed without my bagging a few heads of this novel kind of game and handing them over to my pretty visitor’s father, who willingly lent me his spear for the purpose of destroying them. The bait of a few grains of boiled rice at the entrance of the burrows brought them out in shoals and gave me the opportunity of spearing them. ‘What do you expect will be your fate?’ said this pious Buddhist as he once took the struggling vermin from the spear, ‘when the time comes for me to serve you as you are serving that creature?’ They all looked forward to the pleasure of decapitating us, and when in a mild humour would promise me as a favour, to use their greatest skill so that I should scarcely feel it. What a consoling thought!

“Shut up close in my little cell, I thought that at all events my feelings would no longer be harrowed with the sight of deeds of blood. To a certain extent it was so; but even here there was no abiding peace and quietness. One night as I was vainly endeavouring to coax myself asleep, the screams of an unfortunate wretch in the inner prison fell upon my ear, and the door of my cell being at the time unfastened and the prison wall not more than three feet off, curiosity prompted me to peep through a crack to see what fresh mischief was on foot. Never shall I forget the foul assassination I witnessed. The inmates were breathlessly silent, evidently expecting some evil. The cries proceeded from a young man who lay stretched on the floor with his feet in the stocks. The lamp was burning dimly, giving just enough light to show the form of a grim *pahquet* striding toward his victim. Without a word, he stamped several times on the mouth of the youth with his heavy wooden shoes with a force which must have broken his teeth and jaws into fragments. From my hiding place, where I stood trembling with terror, I heard the bones crack and crash. Still the cries were not altogether silenced, when the monster seized the club of the savage, and with repeated blows on the body and head pounded the poor sufferer to death. The corpse was then taken from the stocks and buried in the prison yard.

“Now news came of the defeat of the Burmese troops in the field, and the governor wreaked his vengeance on us. We were all hustled again from our cells into the inner prison, to await any fresh orders that might be issued from the palace. A merciful Providence again averted the danger. For a few days, probably a week, we were kept in the old den of corruption, when time, as before, softened down asperities, the rage of the governor and of our keepers began to evaporate, and a little renewed coaxing, backed by such insignificant bribes as our people could yet afford to pay, regained for us the favour of the cells in which we were once more installed, and my war of extermination against the rats recommenced.

“While we were passing this week in the inner prison, a frightful event took place, which threatened the immediate destruction of the whole community; indeed, it is wonderful that the instinct of self-preservation did not deter our parent of the prison from executing his order. A woman was brought in covered with the pustules of the small-pox. Our doctor looked aghast and so did we all, as well we might. It was a case quite beyond his treatment,

though it is strange the versatile doctor did not undertake the cure. Even the Burmese prisoners themselves expressed their astonishment, but remonstrance was useless. The gaolers, however, showed a little common sense by placing the unfortunate creature in a clear spot by herself to avoid contact with the other inmates of the prison, with delicate threats of punishment if she moved from it. We never heard what induced this barbarity, but she was most likely suffering for the misconduct of some relative in the war, and the authority who sent her there could not have been aware of the disease, for she had not been among us more than twenty-four hours when she was again taken away.

“But by what means was infection averted? Inoculation or vaccination was unknown. Here were about fifty persons living in the same confined room without ventilation, and yet not one of them took the disease. The fact seems almost miraculous, and I should have doubted the nature of the malady had it not been acknowledged and dreaded by everyone, the natives as well as ourselves. I can only account for our immunity by the free use of tobacco.

“After an engagement with the British troops, many were taken prisoners and were brought to the prison. Unfortunately, it so happened that one of the freaks, already noticed as common to the gaolers, had at this time consigned all our party to the inner prison, and we beheld with horror about a hundred of these men step one after another through the wicket into our already well-filled prison, one of the ringed fraternity remaining inside to see that they were packed as close as possible. The floor was literally paved with human beings, one touching and almost overlapping the other on every side. It soon became evident what must follow. Difficulty in breathing, profuse perspiration and other disagreeables, overcame the natural terror of their tormentors, and the suffering multitude began to cry aloud for air and water. The horrors of the notorious ‘black hole of Calcutta’ must have been reenacted had the building been of brick, but the manner of its construction, before explained, fortunately prevented it. At length the clamour of the captives, working probably on the fears of the gaolers themselves, induced them to open the wicket door for the night, some of their number keeping ward outside as sentinels. By this means a general disaster was avoided.

“This temporary influx of prisoners was the cause of greater anxiety to me than to my companions from a peculiar circumstance. The stock of fetters in the establishment ran short, and to provide for this unexpected demand our three pairs of fetters were taken off for the night, one ring only being left on the ankle, and by this we were chained one to another, two by two, like hounds in couples, only by the leg instead of the neck. Perhaps the reader may think this was, at all events, a slight respite, for which we ought to have been thankful. So it was, to all except myself, for the luxury of being able once more to stretch the legs apart was, no doubt, a most grateful refreshment. But—my flesh creeps when I think of it—I was chained to a leper. My companion was an unfortunate Greek, whose ankles had by this time broken out into unmistakable open leprous sores, with which a few inches of chain alone prevented contact, while at the same time it kept me in terrible proximity. The chain was kept at its full length all night, as may be supposed, and sundry nervous jerkings from time to time on my part to assure myself that it was so, indicated the nature of my alarm to the poor man, who was not unconscious of his malady, though he would not openly admit it. He grew irritated at my studied avoidance of him, and raised the question himself only to deny it. This voluntary allusion to it by himself, notwithstanding his denial, only tended to confirm the fact. With what joy did I submit myself the next day to the hands of my worthy parent, while he again invested me with my wonted complement of irons. With what anxiety, too, did I watch for weeks, searching diligently my ankles for the first symptoms of the contagion, fearing I might unwittingly have rubbed against the infected man and become inoculated with his loathsome disease. Happily I escaped without accident.”

This horrible imprisonment was protracted into the sultry months of March and April, and the wretched sufferers were left throughout heavily laden with five pairs of fetters in a gloomy filthy dungeon, without air or light, or even water to wash their fevered bodies, constantly associated with the worst felons and sharing their dreadful expectation to be taken out and executed. Finally, as the relieving army approached, they were removed from Ava further into the country, and the scene changed for the better as regards personal treatment. The prisoners had at least fresh air, freedom from vermin, lighter chains, water to wash in, exercise in the yard when their wounded feet were sufficiently healed to allow them to walk, and as

much comfort as possible in a Burmese prison. But fresh terrors were caused by the importation of a huge lioness into the prison enclosure. It was confined in a strong cage, but was kept in a state of constant fury and grew more and more ferocious, being kept continually without food. The luckless prisoners began to believe that they were to be thrown as a prey to the wild beast, but it grew visibly weaker and weaker and presently died of starvation. The reason for shutting up the lioness with the human victims of the terrified king was never explained. Meanwhile the British troops pressed on and threatened shortly to capture the capital by storm. The last and most terrible ordeal of all was now impending. It was openly announced that the white prisoners were to be sacrificed to save the king by being buried alive before the broken and dispirited Burmese army. But another decisive battle intervened, the prisoners were hastily released from gaol and carried to Ava, whence they were borne by water to meet the British flotilla on its way up stream, and the painful captivity was at an end.

The penal code of old Burmah in the pre-English days was primitive and of ancient origin, being based largely upon the laws first promulgated by Menu. Trial by ordeal was a very general rule, and many forms were similar to those obtaining in other parts of the world. One was to plunge a finger wrapped in a thin palm leaf into molten tin; again, accused and accuser were immersed under water and the case was won by the party who could remain the longest time below. Or two candles made of equal portions of wax, carefully weighed, were lighted by the two litigants, and the one which burned longest was adjudged to have won.

“In the Indies,” says one old authority, “when one man accuses another of a crime punishable by death, it is customary to ask the accused if he is willing to go through trial by fire, and if he answers in the affirmative, they heat a piece of iron till it is red hot; then he is told to put his hand on the hot iron, and his hand is afterward wrapped up in a bay leaf, and if at the end of three days he has suffered no hurt he is declared innocent and delivered from the punishment which threatened him. Sometimes they boil water in a cauldron till it is so hot no one may approach it; then an iron ring is thrown into it and the person accused is ordered to thrust in his hand and bring up the ring, and if he does so without injury he is declared innocent. Sometimes an iron chain or ball is used instead of the ring. Sometimes a vessel of oil is

heated, and a cocoanut is thrown in to test the temperature, and if it cracks, then the suspected person may prove his innocence by taking copper coins out of the boiling oil." Another ordeal was to take the accused to the tomb of a Mohammedan saint and walk past, having first loaded him with heavy fetters. If the fetters fall off, he is declared to be clear. "I have heard it said," is the comment of one authority who had little confidence in the good faith of the tribunal, "that by some artful contrivance the fetters are so applied as to fall off at a particular juncture."

The rich expiated any offence by the payment of a fine, while the impecunious suffered imprisonment, stripes with a rattan, mutilation, endless slavery, and in the extreme case, death. The sentence to slavery extended to all a man's belongings and to his descendants forever. Capital punishment was performed by decapitation, and a fiendish executioner often prolonged the agony of the condemned convict. To throw a victim to be devoured by wild beasts or trodden to death by elephants was a practice only surrendered in recent times. In the northern provinces crucifixion was common, but the instrument was not in the shape of an ordinary cross. It was more like a double ladder consisting of three upright bamboos crossed by three horizontal bars, and upon these two more were laid in the shape of a St. Andrew's cross. Three scaffolds were commonly erected on river banks or on sand banks in the stream, and were constantly seen on the Irrawady. Sometimes the culprit was killed before he was affixed to the cross; sometimes he was tied up and rendered helpless by a few spear thrusts, or disembowelled by a sword cut across the stomach. In any case, the body was left suspended until the flesh was pecked off by vultures and the bones fell off by decay. When the mouths of the Irrawady were Burmese territory, the criminal was lashed to a tree stump at low water and left to be drowned by the incoming tide. The fishes, more voracious than the vultures, were often more expeditious than the sea and ate their prey alive. The tree, one of the undeveloped growth in the mangrove swamps, was familiarly known as the "stump of hell."

Imprisonment, as we have seen from the previous pages, was often worse than death. But there might be some relaxation of duration. With money a prisoner might appease his gaolers. He could by payment secure release daily to go home, eat his meals and pass his time in comfortable idleness,

provided he came punctually back at night and allowed himself to be again incarcerated. Nevertheless, the friendless and impecunious preferred to suffer a public flogging, inflicted on the culprit at all the street corners. Bribery and corruption, buying ease from dishonest gaolers, speedily disappeared under the British rule. An equable uniform system has been adopted for all prisoners, and the demeanour of even the worst is outwardly quiet. They are for the most part irreclaimable gaol-birds, with all the traits and characteristics of the congenital criminal.

The predatory instinct predominates in the character of the Burman. He is consumed with a desire to lay violent hands upon his neighbours' goods and possessions. He is a Dacoit, a thief and highwayman by inheritance. One who knew Burmah intimately was convinced that the evil propensity was inborn in every Burmese child, and was stimulated as he grew up by Dacoit stories. The example of others who had taken to the business and become famous for enterprising raids, was always before the youth of every generation. It was no disgrace to a young fellow to be concerned in a Dacoity attack upon a neighbouring village, but very much the reverse, and the most successful robbers were generally treated with much consideration and respect.

A Dacoit band for the most part numbered five or six; they were not all armed with firearms, but they fired a few shots on making a descent to give warning of their approach, and no resistance was offered as they swooped down with loud shouts and much waving of swords. Ransom was demanded of the village, if deserted, was looted, and the Dacoits fled before the outrage became known to the police. Then pursuit was organised, but was generally fruitless. The Dacoits were close at hand, in the very village, and might be easily seized, but no one would give information, as that would be deemed an unpardonable offence. To betray an offender into the hands of justice is a sin against religion much more than against morality. There is the utmost difficulty, therefore, in tracing crime in Burmah. British police officers were driven to death in ceaseless efforts to catch Dacoits, hunting them perpetually for months and months and seldom, if ever, laying hands on a single offender.

Summary vengeance was meted out to “informers.” On one occasion, a well-to-do villager in Lower Burmah had assisted in the capture of a notorious Dacoit. Some of the prisoner’s friends, without waiting for the issue of the trial, visited the traitor’s house and upbraided him with being the cause of the Dacoit’s apprehension. “We mean to punish you for this,” they said. “You shall be burned alive; which do you prefer, that the fire should be lighted here in your own house, or outside the village?” His wife offered a thousand rupees to buy him off, but it was sternly refused, and he was forthwith put to death. In another instance, a man who received a reward for securing the arrest of a band was obliged to surrender the money to other Dacoits, who called him to account, and to prevent his repeating the offence, his head was cut off and exhibited on a pole.

Dacoity, when the complete pacification of Burmah was so long delayed, became the last form of resistance of the people. The one time thieves were promoted into rebels and insurgents. The Burmese did not all accept British rule very willingly, and the government resolved to finally crush opposition by exterminating the dissidents under the name of Dacoity. Many serious encounters, costly in human life, were fought; many leaders of small bands long evaded pursuit and gave much trouble. But vigorous measures persistently carried out gradually put down all opposition, and the most active Dacoits ended on the gallows or found their way to prison or to the penal settlements. A good picture has been preserved of one prominent Dacoit who had long ravaged the country and been guilty of many crimes; and upon whom a sentence of penal servitude for life was at length passed. “A small, spare, thin-visaged man, whose features have nothing in them that would bear out his character of a cruel ruffian and leader of men ... yet such was the power of his name that a sum large enough to be a fortune to any three natives was offered to whoever should kill or capture him, before his career was checked.” Every gaol in Burmah has its complement of such life convicts, reckless desperadoes, a source of constant anxiety to those in charge of them.

To follow this man on his reception and through his treatment will give a good idea of prison life in Burmah. His clothing was first issued to him; a loin cloth of coarse brown stuff and a strip of sacking to serve as his bed. His hair was close cut and his head was as smooth as the palm of his hand,

save for one small tuft left on the crown; his name was registered in the great book, and he was led to the blacksmith's shop, where his leg irons were riveted on him, anklets in the form of a heavy ring to which a connecting ring with two straight iron bars was attached. At the same time a neck ring of iron as thick as a lead pencil was welded on, with a plate attached, nine inches by five, on which a paper recording the personal description of the individual was pasted. This was called the *thimbone*, and its adoption became necessary through the frauds practised by the convicts.

At one time every new arrival was given a tin medal stamped with his number, which was hung round his neck with a string. But it was found that these records were frequently exchanged among the prisoners. A prisoner sentenced to a long term often assumed the identity of a short term convict, who accepted the more irksome penalty for a money consideration. At the present time, with the irremovable *thimbone*, these exchanges are rendered impossible. It is strange that such a simple process of preserving identities is not enforced in Siberia, where Russian convicts have long made a practice of fraudulent exchanges.

“If there is a type of revolting human ugliness, it is the Burmese gaol-bird,” says the same authority, “with his shaven head and the unmistakable stamp of criminal on his vicious face. All convicts seem to acquire that look of low, half-defiant cunning from their associates, and a physiognomist would not hesitate to describe nine-tenths of the men before us as bad characters if he saw them in any society. Many of this gang are Dacoits, and their breasts, arms and necks are picture galleries of tattooed devices, fondly cherished by the owners as charms against death or capture. Some have rows of unsightly warts, like large peas, upon the breast and arms which mark the spots where the charms have been inserted,—scraps of metal and other substances inscribed with spells known only to the wise men who deal in such things. One or two natives of India are amongst the gang, and these are conspicuous by the absence of the tattooing universally found on the Burman's thighs. A powerfully built convict at the end of the rank, in addition to the usual irons, has his ankle rings connected by a single straight bar, so that he can only stand with his feet twelve inches apart. ‘Look at that fellow,’ says the superintendent; ‘he is in for five years, and his time would have been up in three months. A week ago he was down at the creek with

his gang working timber, and must needs try to escape. He was up to his waist in water and dived under a raft, coming to the surface a good fifty yards down the stream. The guard never missed him until a shout from another man drew their attention, when they saw him swimming as hard as he could go, irons and all, towards a patch of jungle on the opposite side.' Amongst a repulsive horde this man would take first place without competition. 'Reckless scoundrel,' is written on every line of his scowling face, and such he undoubtedly is. After the severe flogging his attempted escape earned for him, he assaulted and bit his guards and fellow prisoners, and the bar between his anklets was the immediate result.

"Conspiracies to break out are not uncommon, although they are seldom matured, owing to the system of never allowing one batch of men to remain together for more than a night or two in succession. A determined attempt to 'break gaol' took place in the great central prison at Rangoon a few years ago, resulting in a stand-up fight between warders and convicts. Some twenty 'lifers' confined in a large stone cell, whose gate opened upon their workyard, were the culprits. The hammers and road metal which provided their daily labour were kept in this yard, and the first aim of the convicts was to obtain access to the shed where these weapons lay. About midnight the attention of the sentry was called to the illness of one of the occupants of the cell by another man, who was apparently the only wakeful member of the gang besides the sham invalid. A Madrassee apothecary was called to the grated window of the den, and obtained sufficient information to enable him to prepare some remedy. On his return with the potion, seeing that all the convicts were sound asleep, he did not attempt to give the medicine to the sick man through the window, but against the rules caused the guard to open the gate intending to take it into the cell himself. The instant the gate was opened, the slumbering convicts sprang to their feet, rushed at the apothecary and knocked him down in such a position that his recumbent form effectually prevented the guard behind from closing it. They quickly made their way into the workshed, and arming themselves with hammers and stones, prepared to resist the warders who had been attracted by the noise and the shouts of a sentry on the wall. A furious conflict now ensued between the warders, big, muscular Punjabees armed with heavy cudgels, and the convicts with their extemporised weapons. The warders were reinforced until both parties were fairly matched, and the rough and tumble

fight in the dark progressed amid extraordinary confusion. The workyard was overlooked by two huge wings of the gaol in which a large number of prisoners were confined; these men, roused to a frantic pitch of excitement by the uproar below, dashed about their wards like caged animals with screams and yells of encouragement to their fellows; while the sentries in the watch towers on the main wall kept up a desultory fire in the air to prove to the convicts the impossibility of escaping, even if they should succeed in scaling the high spiked iron railing of their yard.

“The combatants fought hand-to-hand for some time, neither side gaining any advantage, whilst above the roar of human voices and the sickening crash of heavy clubs on the convicts’ shaven skulls the alarm bell clashed out warning that military assistance from the distant barracks was required. Warders had been summoned from all parts of the gaol, and a general outbreak seemed imminent when the appearance of the superintendent with a revolver suddenly decided matters. Panic seized the convicts; they dropped their weapons with one accord and crowded back into the cell, leaving two of their number dead in the yard. It would be impossible to conceive a more ghastly sight than that row of naked, trembling convicts as the warders now ranged them in the vault-like den to be counted. The dim light of oil-lanterns fell upon upturned faces, before repulsive enough, but now positively startling in their hideous disfigurement of dust and clotting blood. Every man was streaming with blood from wounds about the head, more or less severe, for the convicts had fought with the desperation of men to whom success meant liberty. They were doomed to drag out their lives in that earthly hell; a flogging was the worst that could happen to them if their attempt failed, possible freedom the reward if it succeeded. Who would not risk the first for the slenderest chance of the second? They took the risk and fate had gone against them. The excitement was over, and they huddled together against the wall of the cell in an agony of fear for the consequences their night’s work would bring upon them to-morrow, staring enviously at those whose wounds necessitated their removal to hospital. For them, at least, a few days’ reprieve was certain before they suffered lash and punishment drill.”

PRISONS OF CHINA

CHAPTER VIII

CRIME IN CHINA

Great cruelty in the administration of the law in China—Experience of Lord Loch—Iron collar, chains and creeping vermin—Earth maggot—The “Ling che,” a slow ignominious death—Internal arrangement of prisons—Whole families detained as hostages for fugitive offenders—Mortality large; dead-house always full—Military guard—Public flogging of thieves—The “Cangue” or heavy wooden collar—Six classes of punishment—Method of infliction—Chinese punishment in the seventeenth century—Some cruel practices of to-day.

According to Chinese law, theoretically, no prisoner is punished until he confesses his crime. He is therefore proved guilty and then by torture made to acknowledge the accuracy of the verdict. The cruelty shown to witnesses as well as culprits is a distinct blot on the administration of justice in China. The penal code is ferocious, the punishments inflicted are fiendishly cruel, and the prisons' pig-stys in which torture is hardly more deadly than the diseases engendered by the most abominable neglect. The commonest notions of justice and fair play are continually ignored. The story is told of a wretched old man who had been detained years in the filthy prison of Peking, dragging out a weary existence in the company of criminals of the worst description. According to his own account, he had been living on his land with his wife and family. One night he took out his gun to scare crows and trespassers off his ripening crops, in the execution of which innocent design he let off his weapon two or three times. On the following day a man was found murdered on the far confines of his land. Immediately he was apprehended, not as one might suppose, to give evidence or relate what he knew, but to be made to confess that he himself was the author of the crime. To extort this confession he was cruelly and repeatedly tortured. “Of course,” he said, “I shall never leave this prison alive, for they will keep me here until, reduced to the last extremity by torture, I confess myself guilty

of a crime of which I am entirely innocent, and when I do confess they will cut off my head on the strength of that confession.” This is founded on unimpeachable fact, and the case is constantly recurring under different forms. “In China it is not the prosecution who prove a prisoner guilty, but the prisoner who has to prove that he is not guilty.” In this same prison of Peking a visitor once was permitted to enter a chamber in which was a barred cage eight feet by eight, and in it twenty-six human beings were incarcerated, of whom six were dying of gaol fever. He asked that they might be taken out of the cage “in order that he might medically examine and if possible relieve them. The gaoler opened the door of the cage and seizing the six by their pig-tails, or by any other portion of their bodies that happened to present itself, dragged them out one by one over the pavement into the courtyard outside. No doubt several of these men were innocent of the crimes imputed to them and were waiting to be tortured into a confession of guilt.”

Few Europeans have experienced imprisonment in China. One Englishman, Lord Loch, has given an account of the sufferings he endured when treacherously captured during the war of 1860. “The discipline of the prison was not in itself very strict and had it not been for the starvation, the pain arising from the cramped position in which the chains and ropes retained the arms and legs, with the heavy drag of the iron collar on the bones of the spine, and the creeping vermin that infested every place, together with the occasional beatings and tortures which the prisoners were from time to time taken away for a few hours to endure, returning with bleeding legs and bodies and so weak as to be scarcely able to crawl, there was no very great hardship to be endured.... There was a small maggot which appears to infest all Chinese prisons: the earth at a depth of a few inches swarms with them; they are the scourge most dreaded by every poor prisoner. Few enter a Chinese prison who have not on their bodies or limbs some wounds, either inflicted by blows to which they have been subjected, or caused by the manner in which they have been bound; the instinct of the insect to which I allude appears to lead them direct to these wounds. Bound and helpless, the poor wretch cannot save himself from their approach, although he knows full well that if they once succeed in reaching his lacerated skin, there is the certainty of a fearful lingering and agonising death before him.”

Punishment varies in cruelty and intensity with the crime; for the murder of a father, mother, or several people of one family the sentence is "ignominious and slow death." This method is known as *ling che*, and the victim is attached to a post and cut to pieces by slow degrees, the pieces being thrown about among the crowd. This cruel death was more than once publicly inflicted in Peking during the year 1903. Some of the most horrible passages in the *Peking Gazette* are those which announce the infliction of this awful punishment on madmen and idiots who in sudden outbreaks of mania have committed parricide. For this offence no infirmity is accepted, even as a palliation. A culprit condemned to *ling che* is tied to a cross, and while he is yet alive gashes are made by the executioner on the fleshy parts of his body, varying in number according to the disposition of the judge. When this part of the sentence has been carried out, a merciful blow severs the head from the body. It is said that the executioner can be bribed to put sufficient opium into the victim's last meal to make him practically unconscious, or even to inflict the fatal stab in the heart at first, which should ordinarily be the last. Common cases of capital punishment are comparatively merciful, for the executioners are so skilful that they generally sever the head from the trunk with one swift blow. The Chinese prefer death by strangulation to any other form, because it enables the body to appear unmutilated in the next world. This feeling has such a hold on them that when four victims were decapitated in Peking, their relatives instantly claimed the bodies and sewed on the heads. The permission to do this was regarded by them as a great privilege and a mitigation of the sentence.

The prisons of China are made up of a certain number of wards according to their class. Thus, for example, the prisons of the respective counties of Nam-hoi and Pun-yu in the province of Kwang-tung, which are first-class county prisons, consist (besides chambers in which prisoners on remand are confined) of six large wards in each of which are four large cells, making in all twenty-four cells. The same arrangements may be said to prevail in all county prisons. The walls of the various wards abut one upon another and form a parallelogram. Round the outer wall a paved pathway runs upon which the gates of the various wards open. This pathway is flanked by a large wall which constitutes the boundary wall of the prison. The cells are of considerable size. The four cells in each ward are arranged two on a side

so as to form the two sides of a square, and they much resemble cattle sheds, the front of each being enclosed in a strong palisading of wood which extends from the ground to the roof. They are paved with granite, and each is furnished with a raised wooden platform on which the prisoners sit by day and sleep by night. They are polluted with vermin and filth of almost every kind, and the prisoners seldom or never have an opportunity afforded them of washing their bodies or even dressing their hair, as water in Chinese prisons is a scarce commodity and hair-combs are almost unknown. The approach to the prison is a narrow passage at the entrance of which there is an ordinary sized door. Above this entrance door is painted a tiger's head with large staring eyes and widely extended jaws. Upon entering, the visitor finds an altar on which stands the figure of a tiger hewn in granite. This image is regarded as the tutelary deity of the prison gates. The turnkeys worship it morning and evening, with the view of propitiating it and securing its watchfulness, gaolers in China being held responsible for the safe custody of the miserable beings who are entrusted to their care. At the base of the large wall which forms the prison boundary there are several hovels—for by no other name can they be designated—in some of which all the female felons are lodged and in others whole families who are held as witnesses by the mandarins.

There is a law which admits of the seizure and detention as hostages of entire families, any members of which have broken the laws of the empire and fled from justice. Such hostages are not liberated until the offending relatives have been secured, and consequently they are not unfrequently imprisoned during a period of five, ten or twenty years. Indeed, many of them pass the period of their natural lives in captivity. Thus the mother or aunt of Hung Sow-tsuen, the leader of the Taiping rebellion, died after an imprisonment of several years in the prison of the Nam-hoi magistrate at Canton. The unoffending old woman grievously felt this long detention for no crime or offence of her own. Should the crime of the fugitive be a very aggravated and serious one, such, for example, as an attempt upon the life of the sovereign of the empire, it is not unusual to put the immediate, although perfectly innocent, relations of the offender to death, while those who are not so nearly related to him are sent into exile. In 1803 an attempt was made to assassinate the emperor Ka-hing. The assassin was no sooner apprehended than he was sentenced to be put to death by torture; and his

sons who were young children were put to death by strangling. The mortality in Chinese prisons is very great. The bodies of all who die in prison are thrown into the dead-house and remain there until the necessary preliminaries, which are of a very simple kind, have been arranged for their interment. In the prisons of Canton these receptacles may be seen full of corpses and presenting the most revolting and disgusting appearance. Some of the unhappy victims have died from the effects of severe and often repeated floggings. Others have fallen victims to one or other of the various diseases which such dens are only too well fitted to create and foster. In the prison of Pun-yu there were on one occasion in the dead-house five bodies, all with the appearance of death from starvation—a form of capital punishment which in China is frequently inflicted upon kidnappers and other grave offenders. Directly in front of the door of the dead-house and at the base of the outer boundary wall of the prison there is a small door of sufficient size to admit of a corpse being passed through. The corpses of all who die in prison are carried through this aperture into the adjoining street for burial. It would be paying too much reverence to the deceased prisoner to allow the remains to be carried through the gates of the *yamun* to which the prison is attached.

In point of appearance the unfortunate inmates of Chinese prisons are perhaps of all men the most abject and miserable. Their death-like countenances, emaciated forms and long coarse black hair, which, according to prison rules, they are not allowed to shave, give them the appearance rather of demons than of men, and strike the mind of the beholder with impressions of gloom and sorrow that are not easily forgotten. Prisoners in every ward with one exception only wear fetters. The exception is the prisoner who is supposed to be more respectable and who conducts himself better than any of his fellows in crime. He is allowed the full freedom of his limbs and as a mark of confidence and trust the privilege is conferred upon him of acting as overseer and guardian of his comrades. The dress worn by Chinese prisoners consists of a coat and trousers of a coarse red fabric. On the back of the coat is printed in large indelible characters the name of the prison in which its wearer is confined so that should he escape from durance he would at once be recognised as a runaway or prison breaker, and his recapture facilitated. Each prison is presided over by a governor who has under him a considerable number of

turnkeys. Thus each large prison in Canton has a governor, twenty-four turnkeys, thirty-seven watchmen and fifteen spearmen. In a barrack beyond the doors or gates of each prison is a resident guard of soldiers. The turnkeys, watchmen, spearmen, and so forth, become the most casehardened and incorrigible of the criminals from the great amount of misery which they daily witness. The policemen who are attached to the *yamun* are also men of vile character, and it is unfortunately too common for them to share the booty with the thief and hoodwink or deceive the magistrate.

The governor of a Chinese prison purchases his appointment from the local government. He receives no salary from the state and is compelled, therefore, to recoup himself by exacting money from such relatives or friends of prisoners as are in good circumstances and naturally anxious that their unhappy friends should escape as far as possible the sad deprivations and cruelties for which Chinese prisons are so notorious. To each prison a granary is attached in which rice of the cheapest and coarsest kind is stored by the governor. This rice is one of his perquisites, and he retails it to the prisoners at a remunerative price. Vegetables and firewood for culinary purposes, both of which are daily offered for sale to the prisoners, are also supplied by him. As the government daily allowance to each prisoner does not exceed twenty-five *cash*, the prisoners who are without friends are not often able to buy even vegetables and firewood.

Besides the prison in which convicts are confined there is also within the precincts of the *yamun* a house of detention. This is neither so large nor so strongly enclosed as the common gaol. Generally, in such a house of detention there is a large chamber which is set apart for the reception of prisoners on remand, who have friends able and willing to satisfy the demands of the governor. By this arrangement such prisoners avoid the misery of being shut up in the same ward with men of the vilest character and often most loathsome condition, covered with filth or suffering from various kinds of cutaneous diseases. The arrangement is a great advantage to the governor of the gaol and to all prisoners who can afford to pay for it, but a great disadvantage to other inmates. The space required for the convenience of prisoners who have friends to look after their wants leaves very little room indeed for the reception of the great majority of the poorer

criminals, who are huddled together in a common ward sometimes too crowded to allow its occupants to lie down. In the city of Canton, on the streets adjoining the *yamuns*, there are other houses of detention, all densely crowded.

Imprisonment is not the only penalty inflicted; cases of petty larceny are generally dealt with by flogging. The culprit is handcuffed and with the identical article which he stole, or one similar, suspended from his neck, is marched through the streets of the neighbourhood in which the theft was committed. He is preceded by a man beating a gong, and at each beat of the gong an officer who walks behind gives him a severe blow with a double rattan across the shoulders, exclaiming, "This is the punishment due to a thief." As the culprit has to pass through three or four streets his punishment, although regarded by the Chinese as a minor one, is certainly not lacking in severity, and is often accompanied by a considerable flow of blood.

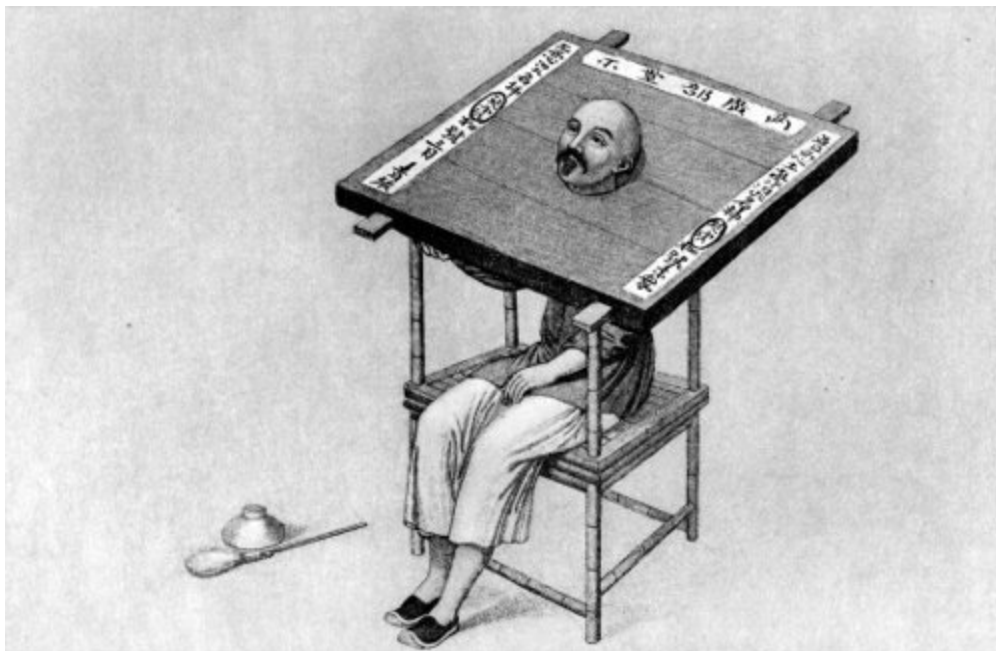
A thief who had stolen a watch from one of his countrymen was flogged through the Honam suburb of Canton, but the officer appointed to flog him was very corpulent, and from his great earnestness in the discharge of his duty became quite breathless before the various streets along which the culprit was sentenced to pass had been fully traversed. The person from whom the watch had been stolen, seeing that the thief might escape the full severity of his penalty, snatched the double rattan from the hand of the exhausted officer and applied it himself most unmercifully to the thief's back. Women who are convicted of thieving are in some instances punished in this way. Occasionally a long bamboo is used in cases of petty larceny. When this is the case, however, the culprit receives his flogging in court in front of the tribunal. He is at once denuded of his trousers and the number of blows varies according to the nature of the larceny, from ten to three hundred.

Mr. Henry Norman, who witnessed a most cruel flogging in court, which left the prisoner in a pitiable state, asserts that when a policeman was called to suffer the same punishment, it was seen that he had bound strips of wood on himself to catch the full force of the bamboo. The prescribed number of strokes were administered, but the fraud was plainly apparent to the

magistrate and all the spectators, and the policeman, who was none the worse for the flogging, went about his duties as usual when the ordeal was over. Spectacles of this kind, says the same authority, seem to be highly enjoyed by a Chinese audience.

Chinese Punishment

The *cangue*, or square and heavy wooden collar, is one of the modes by which petty offenders are punished in China. The weight varies with the offence, and they are worn from a fortnight to three months, during which time the *cangue* is not removed by day or night. This device inflicts severe punishment, preventing the culprit from assuming any position of rest. The name of the prisoner and the nature of his offence are written on the *cangue* in large letters, so that "he who runs may read," and he is often made to stand at one of the principal gates or in some other conspicuous place as an object of universal contempt.



The *cangue*, or square, heavy wooden collar, is another mode by which petty offenders in China are punished. *Cangues* vary in weight, some being considerably larger and heavier than others. The period for which an

offender is sentenced to wear this collar varies from a fortnight to three months. During the whole of this time the *cangue* is not removed from the neck of the prisoner either by day or by night. Its form prevents the wearer from stretching himself on the ground at full length, and to judge from the attenuated appearance of prisoners who have undergone it, the punishment must be terribly severe. The name of the lawbreaker and the nature of his offence are written on the *cangue* in large letters, "so that all the world may read." The authorities often make the victim stand from sunrise to sunset at one of the principal gates or in front of one of the chief temples or public halls of the city, where he is regarded as an object of universal scorn and contempt.

Another mode of punishing a criminal is that of confining him in a cage. The cages are of different forms, the worst being too short to allow the occupants to place themselves in a recumbent position and too low to admit of their standing. To the top of one kind is attached a wooden collar or *cangue* by which the neck of the criminal, which it is made to fit, is firmly held. Another cage resembles the former in all respects but one. The difference consists in its being higher than its occupant, so that while his neck is held fast by the wooden collar attached to the top of the cage, the tips of his toes barely touch the floor. Indeed, the floor, which is only a few inches from the ground, is sometimes removed so that the prisoner may be suspended by the neck. This punishment almost invariably proves fatal. The victims are as a rule thieves and robbers. They are often punished by being bound to stones by means of long chains passed round their necks. The stones are not large, but sufficiently heavy to inconvenience them as they walk to and from the prison to the entrance gates of the *yamun*, in front of which they are daily exposed. These stones are their inseparable companions by night and by day throughout the whole period of their incarceration. In some instances they are bound to long bars of iron and are daily exposed to the scorn of all passers by.

For capital and other offences of a serious nature there are six classes of punishment. The first, called *ling che*, has already been mentioned. It is inflicted upon traitors, parricides, matricides, fratricides and murderers of husbands, uncles and tutors. The criminal is cut into either one hundred and twenty, seventy-two, thirty-six or twenty-four pieces. Should there be

extenuating circumstances, his body, as a mark of imperial clemency, is divided into eight portions only. The punishment of twenty-four cuts is inflicted as follows: the first and second cuts remove the eyebrows; the third and fourth the shoulders; the fifth and sixth the breasts; the seventh and eighth the parts between each hand and elbow; the ninth and tenth the parts between each elbow and shoulder; the eleventh and twelfth the flesh of each thigh; the thirteenth and fourteenth the calf of each leg; the fifteenth pierces the heart; the sixteenth severs the head from the body; the seventeenth and eighteenth cut off the hands; the nineteenth and twentieth the arms; the twenty-first and twenty-second the feet; the twenty-third and twenty-fourth the legs. That of eight cuts is inflicted as follows; the first and second cuts remove the eyebrows; the third and fourth the shoulders; the fifth and sixth the breasts; the seventh pierces the heart; the eighth severs the head from the body. A great many political offenders underwent executions of the first class at Canton during the vice-royalty of His Excellency, Yeh. On the fourteenth day of December, 1864, the famous Hakka rebel leader, Tai Chee-kwei by name, was put to death at Canton in the same manner.

The second class of capital punishment, which is called *chan* or decapitation, is the penalty due to murderers, rebels, pirates, burglars, etc. Prisoners who are sentenced to decapitation are kept in ignorance of the hour fixed for their execution until the preceding day. Occasionally they have only a few hours' and in some instances only a few minutes' warning. When the time has arrived for making the condemned man ready for execution, an officer in full costume, carrying in his hand a board on which is pasted a list of the names of the prisoners who are that day to atone for their crimes, enters the prison, and in the hearing of all the prisoners assembled in the ward, reads aloud the list of the condemned. Each prisoner whose name is called at once answers to it, and he is then made to sit in a basket to be carried once more into the presence of a judge. As he is taken through the outer gate, he is interrogated through an interpreter by an official who acts on the occasion as the viceroy's representative.

Mr. Henry Norman described in 1895 an execution of fifteen offenders of this class which he had witnessed. The condemned were carried into the place of execution in flat baskets suspended from bamboo poles, and

literally dumped out, bound hand and foot. A slip of paper was stuck in the queue of each condemned man, which described the nature of the crime. These were taken out and stacked up by one of the executioners, and then the work of severing the heads began, one of the executioners holding the victim's shoulders while the other used the knife. All of those about to be beheaded witnessed the decapitation of their comrades, and the spectators yelled with delight and frenzy. When the last head had been severed, the place was ankle-deep in blood and the executioner, who used the knife, was covered with it. The bodies were thrown into a pond and the heads were put in earthenware jars and stacked up with others surrounding this potter's field.

A third punishment is called *nam-kow*, or death by strangulation. This is inflicted on kidnappers and all thieves who with violence steal articles the value of which amounts to five hundred dollars and upward. The manner in which this form of capital punishment is inflicted is as follows:—A cross is erected in the centre of the execution ground, at the foot of which a stone is placed, and upon this the prisoner stands. His body is made fast to the perpendicular beam of the cross by a band passing round the waist, while his arms are bound to the transverse beam. The executioner then places round the neck of the prisoner a thin but strong piece of twine, which he tightens to the utmost and then ties in a firm knot round the upper part of the perpendicular beam. Death by this cruel process is very slow and is apparently attended with extreme agony. The body remains on the cross during a period of twenty-four hours, the sheriff before leaving the execution ground taking care to attach his seal to the knot of the twine which passes round the neck of the malefactor.

The fourth class of punishment is called *man-kwan*, or transportation for life. The criminals who are thus punished are embezzlers, forgers, etc. The places of banishment in the north of China and Tartary are named respectively Hack-loong-kong, Elee Ning-koo-tap and Oloo-muk-tsze. All convicts from the midland and southern provinces are sent to one or the other of these places, where the unhappy men are employed in a great measure according to their former circumstances of life. Those who are of a robust nature and who have been accustomed to agricultural pursuits are daily occupied in reclaiming and cultivating waste lands. Others, more

especially those who have been sent from the southern provinces, where the heat in summer is almost tropical, are, in consequence of the severity of the cold which prevails in northern latitudes, made to work in government iron foundries. The aged and those who have not been accustomed to manual labour are daily employed in sweeping the state temples and other public buildings.

The fifth class of punishment is termed *man-low*, or transportation for ten or fifteen years. The criminals of this class are petty burglars and persons who harbour those who have broken the laws. Such offenders are generally sent to the midland provinces of the empire, where the arrangements for convict labour are similar to those of the penal settlements of the north. Convicts of this class who are natives of the midland provinces are sent either to the eastern, western or southern provinces of the empire. The barbarous practice of tattooing the cheeks is also resorted to with these prisoners. The sixth class is called *man-tow*, or transportation for three years. A punishment of this nature is the portion of gamblers, salt smugglers, etc. A convict of this class is transported to one of the provinces immediately bordering upon that of which he is a native or in which his crime was committed.

Oppression by the ruling class was always rife in China, and instances might be multiplied recording the cruel misuse of inferiors by the mandarins. One case in which ample vengeance was exacted by the aggrieved victim may be quoted here. The story is told by Lady Susan Townley in her "Chinese Note Book."

"A well-to-do farmer called Chiang-lo lived happily on his estate with a pretty wife whom he loved, until one day, as ill luck would have it, a rich Mandarin passed that way, who, seeing the fair dame, straightway desired her. Anxious to get rid of the husband by fair means or foul, he trumped up a charge against him, and the farmer was condemned 'to be a slave to a soldier,' which meant that he would be marched in heavy chains from Peking to the northern frontier of China, cruelly beaten at every station (they occur about every eighteen miles), and ill-treated at will by the soldier in charge of him. This sentence is usually equivalent to death, for few can survive the hardships of such a journey, the fatigue, heat, cold, hunger and

torture. But our friend with hatred in his heart resolved to live in order to be revenged upon his enemy. So he bore all his sufferings with superhuman courage, and finally arrived at his destination on the frontier, where he was put to work in a mine.” After he had been there about three years His Majesty Kwang Hsu assumed the reins of government, and accorded a general pardon to all criminals. Thus in a night Chiang-lo recovered his freedom, and without a moment’s hesitation set off to trudge back to Peking. “This time there was hope in his heart for he meant to kill his enemy and the wife who had betrayed him. When he saw her again, however, all his old love for her returned and though she refused to go with him, and though he knew that if he killed them both, Chinese law would account him guiltless, whereas if he killed her lover and spared her, he would be considered guilty of murder, and would have to bear the penalty, he did not hesitate one moment, but left her and went to find her seducer.

“For days he tracked him about the town, waiting for a favourable opportunity. At last it came, as his rival passed him in the deep embrasure of the Chien-men gate. Springing from his place of concealment he challenged him to fight, but the coward refused. Then Chiang-lo ... drew his knife and repeatedly stabbed him in the heart. When he saw his enemy lying dead at his feet, the apathy of despair fell upon him. Wiping his knife on his sleeve he bowed his head, and turning his steps to the nearest police station calmly gave himself up. A few weeks later he was beheaded.”

It is interesting to read that the prevailing method of punishment in China in the seventeenth century differed little from that in force at a very recent date. In the memoirs of the Jesuit Louis le Comte, published in 1698, he says: “They have several ways of inflicting death. Mean and ignoble persons have their heads cut off, for in China the separation of the head from the body is disgraceful. On the contrary, persons of quality are strangled, which among them is a death of more credit.... Rebels and traitors are punished with the utmost severity; that is, to speak as they do, they cut them into ten thousand pieces. For after that the executioner hath tied them to a post, he cuts off the skin all round their forehead which he tears by force till it hangs over their eyes, that they may not see the torments they are to endure. Afterwards he cuts their bodies in what places he thinks fit,

and when he is tired of this barbarous employment, he leaves them to the tyranny of their enemies and the insults of the mob.”

Cruelty, which is one of the strongest characteristics of the Chinese nature, manifests itself not only in the application of criminal law, but with a peculiar callousness they delight to torture dumb animals and enjoy witnessing the sufferings of children and adults of their own race. A common practice of the professional kidnapper is to blind a child after stealing it, and then carry it away to another town and sell it for a professional beggar. Infant life is still being destroyed by parents in some districts of China, and the abominable custom is difficult to eradicate, as the children are simply abandoned and left to starve, and if the crime is discovered it is difficult to prove deliberate murder.

Cases have been known of Chinese boatmen refusing to rescue persons who had thrown themselves overboard from a sinking craft and were drowning, unless they agreed to pay an exorbitant sum asked as the price of rescue. They have even been known to look on passively while their fellow-countrymen were struggling for life in the water, without raising a hand to help them.

It is but natural to expect that in a country where such occurrences are common, the punishments inflicted on the really guilty should exceed anything known in the practices of the enlightened nations of to-day.

PRISONS OF JAPAN

CHAPTER IX

ENLIGHTENED METHODS OF JAPAN

Enlightened Japan has striven to establish a perfect prison system—New prisons—Deportation to the island of Yezo—Agricultural labour and work in coal mines—Two fine prisons in Tokio—Description by Mr. Norman—The gallows—Training school for prison officials—Disciplinary punishments and rewards.

Japan as an enlightened and progressive country has made strenuous efforts to establish “as perfect a prison system as possible; one which is in harmony with the advancement of science and the results of experience.” These reforms were commenced in 1871 and were continued in various new prisons at Tokio, Kobold, Kiogo and upon the island of Yezo, all admirably organised and maintained. This movement was hurried on by the great overcrowding of the small provincial prisons on account of the accumulation of long-term prisoners. No proper discipline could be applied and there was absolutely no room for short-term offenders. Most of those sentenced to hard labour and deportation are now sent to the penal settlement on the island of Yezo, where they are employed both within the prisons and at agriculture in the open air. Every advantage is taken of the natural aptitudes of the Japanese, and the inmates of gaols prove the most expert and artistic workmen. The very worst criminals are sent to the prison of Sorachi in the remote island of Yezo, beyond Poronaibuto—a bleak, desolate spot surrounded by the usual bamboo fence—which holds about sixteen hundred convicts. They are to be seen squatted on mats at work, each in front of his own sleeping place, and on a shelf above are his wadded bed-quilt, with a mosquito curtain on top of each. The place is so isolated and surrounded by such an impenetrable jungle that escapes are out of the question. A little further on is the prison of Poronai, in a delightful spot, where the most extensive coal fields of Japan are located. A small building houses some six hundred convicts who work in the coal seams on the side

of the hill. "Hard labour indeed," says Mr. Wingfield. "Heavily chained, by light of a safety lamp the wretched convicts were crouching in holes where there was no room to raise the head or stretch the limbs, and here they had to remain for eighteen hours at a time." Their sentences were for twelve years, although remission might by good conduct be secured after seven. Yet these luckless Japanese bore their irksome lot with a light heart. "As we were leaving Poronai at 5 A. M.," says the same observer, "we met a batch of miners marching to face their ordeal and many after the eighteen hours are completed have to be removed to hospital. They were clanking their chains right merrily, talking and laughing loudly, bandying quips and jokes."

Japan is a land of rapid transition and nothing has changed more completely in recent years than Japanese prisons. Still there was some system, even in ancient days. The sexes were kept apart, the penalty of the log worn round the neck and fastened to the ankle was not imposed upon the aged or juvenile offender, nor upon dwarfs, invalids or pregnant women. In the sixteenth century a prison reformer arose who organised five new prisons in Yeddo for five different classes of prisoners, comprising females and persons of different conditions of life. Proper prison officers were appointed, and security was obtained without despising sanitary needs. Still there must have been much mutual contamination, owing to the indiscriminate herding together, and the maintenance of internal order was left to the prisoners who chose among themselves a *nanoushi*, or head, with eleven assistants to control the whole body. Flogging was inflicted and handcuffs were universally worn. In 1790 a house of correction was established on the island of Yshikavoy in the Bay of Yeddo, to which were committed all vagabonds or incorrigible prisoners whom it was thought unsafe to set free lest they should relapse into crime. The work on this island was chiefly the manufacture of oil. In cases of escape and recapture the fugitives were branded with a certain tattoo mark on the left arm.

Even in the middle of the nineteenth century the same brutal methods of torture prevailed as in China (from where their bloody codes were mostly borrowed), and there are preserved collections of instruments of torture as diabolical as any known to history. Crime, too, was not lacking in those "isles of the blest," and every species of moral filth and corruption abounded, which was shown in its true colours when the liberty of the press

was granted, in 1872-1874. The number of executions and deaths in the native prisons at that time was said to average three thousand per annum.

The chief prison of the empire, in Tokio, as described by Mr. William M. Griffis, who visited it in 1875, was very different in its sanitary appointments and general condition from the prisons of Tokio to-day. A curious feature was a small roofed in structure in the prison yard, with open sides, where condemned men of rank were allowed to expiate their crimes by plunging the dirk into their own bodies, after which the executioner cut off their heads. The head, laid on a tray, was then inspected by an officer of justice. There were very few of such executions after 1871. The ordinary criminal was beheaded in the blood-pit, so-called, which was a pit surrounded with a much stained and slashed wooden curb, and kept covered by a sort of trap-door. In the pit were mats, one above the other, which had been soaked with the blood of many criminals. "The faint odour that ascended," says Mr. Griffis, "was more horrible in the awful cloud of associations which it called up than the mere stench." It was then April and twenty-five heads had fallen there since the year began. The criminal was led to the pit blindfolded and was beheaded with an ordinary sword, sharp as a razor. Death followed frequently on the day of sentence and never later than the day after.

Tokio has now two prisons; the first and chief is situated upon the island of Oshikawa at the south of the city, and the second, the convict and female prison of Ichigawa, is in the centre of the city. The former is completely isolated, all communication with the mainland being by police ferry, and can accommodate two thousand men and boys, who are serving terms of ten years or less. The prison of Ichigawa usually contains fifteen hundred men and about one hundred women, among whom are many serving life sentences. Attached to the prison is a convict farm, and it is here that capital punishment is carried out. Otherwise the two prisons resemble each other closely and a description of one will answer for both, says Mr. Norman, who described them in 1892, and gives the following account:

"The entrance is through a massive wooden gateway, into a guard-room adjoining which are the offices of the director and officials. The prison itself consists of a score or more of detached one-story buildings, all of wood and

some of them merely substantial sheds, under which the rougher labour, like stone-breaking, is performed. The dormitories are enormous wooden cages, the front and part of the back formed of bars as thick as one's arm, before which again is a narrow covered passage, where the warder on guard walks at night. There is not a particle of furniture or a single article of any kind upon the floor, which is polished till it reflects your body like a mirror. No boot, of course, ever touches it. The thick quilts, or *futon*, which constitute everywhere the Japanese bed, are all rolled up and stacked on a broad shelf running round the room overhead. Each dormitory holds ninety-six prisoners, and there is a long row of them. The sanitary arrangements are situated in a little addition at the back, and I was assured that these had not been made pleasant for my inspection. If not, I can only say that in this most important respect a Japanese prison could not well be improved. In fact, the whole dormitory, with its perfect ventilation, its construction of solid, highly-polished wood, in which there is no chance for vermin to harbour, and its combined simplicity and security, is an almost ideal prison structure. Of course the fact that every Japanese, from the emperor to the coolie, sleeps upon quilts spread out on the floor, greatly simplifies the task of the prison architect in Japan.

“On leaving the dormitories we passed a small, isolated square erection, peaked and gabled like a little temple. The door was solemnly unlocked and flung back, and I was motioned to enter. It was the punishment cell, another spotless wooden box, well ventilated, but perfectly dark, and with walls so thick as to render it practically silent. ‘How many prisoners have been in it during the last month?’ I asked. The director summoned the chief warder, and repeated my question to him. ‘None whatever,’ was the reply. ‘What other punishments have you?’ ‘None whatever.’ ‘No flogging?’ When this question was translated the director and the little group of officials all laughed together at the bare idea. I could not help wondering whether there was another prison in the world with no method of punishment for two thousand criminals except one dark cell, and that not used for a month. And the recollection of the filthy and suffocating sty used as a punishment cell in the city prison of San Francisco came upon me like a nausea.”

In Japan a prison consists of two parts—dormitories and workshops. There is nothing whatever of cells or regulation prison buildings properly

speaking. It is a place of detention, of reformation, and of profitable work. The visitors found in the first workshop, to their great surprise, a couple of hundred prisoners making machinery and steam boilers. One warder, carrying only a sword, was in charge of every fifteen men. The prisoners were working on contract orders for private firms, under the supervision of one skilled master and one representative of the firm giving the contract. They work nine hours a day, and are dressed in cotton suits of a peculiar terra-cotta colour. When the foreigners entered, the warder on guard came to attention and cried, "Pay attention!" Every one ceased work and bowed with his forehead to the floor, remaining in that attitude until a second order bade them rise. They were making large brass and iron steam pumps, and the workshop, with its buzz of machinery and its intelligent labour, was much like a part of an arsenal here or in Europe.

Another shop contained the wood-carvers, where more than a hundred men, with blocks of wood between their knees, were carving with keen interest upon all sorts of things, from simple trays and bowls to fragile and delicate long-legged storks. "I bought," says our author, "an admirably-carved tobacco box, representing the God of Laughter being dragged along by his cloak by six naked boys, and afterward I asked some Japanese friends who supposed I had picked it up at a curio-dealer's, how much it was worth. They guessed ten *yen*—thirty shillings. I paid sixty-eight *sen* for it—less than two shillings. It is a piece of work that would be admired anywhere, and yet it was the work of a common burglar who had made the acquaintance of a carving tool and a prison at the same time."

There were also paper-makers, weavers (who were making the fabric for the prison clothing), fan-makers, lantern-makers and workers in baskets, mats, and nets. A printing shop, too, there was, where the proof-reader was a criminal of more than ordinary interest. He had been secretary of legation in France and had absconded with a large sum, leaving his shoes on the river bank to lead the authorities to believe he had committed suicide, but he had been arrested eventually in Germany with his mistress.

In one of the shops *jinrikishas* were being made, in another umbrellas were being carved elaborately and in another every kind of pottery was being turned out. To the amazement of the visitors, they found sixty men,

common thieves and burglars, making the exquisite cloisonné ware —“cutting by eye-measurement only the tiny strips of copper to make the outline of a bird’s beak or the shading of his wing or the articulations of his toe, sticking these upon the rounded surface of the copper vase, filling up the interstices with pigment, coat upon coat, and firing and filing and polishing it.” The finished work was true and beautiful and it was difficult to believe that these men knew nothing at all about it before they were sentenced. It would be hard to imagine teaching such a thing to the convicts at Dartmoor or at Sing Sing. In the prison at Tokio the convict is taught to do whatever is the limit of his natural ability. If he cannot make cloisonné, he is assigned to the wood-carving department, or perhaps to make pottery. If he cannot do these, he can possibly make fans or basket-work, or set type or cast brass. And for those who cannot reach so high a limit as these occupations there is left the rice mill or stone-breaking, but of two thousand men only thirty were unable to do any other work but that of breaking stones.

Prisoners receive one-tenth of the sum their handiwork earns. A curious custom is that every adult prisoner is kept for an additional six months after his sentence expires unless he is claimed by friends in the meantime, and if he has not reached adult age he is detained until that is attained. During the added six months these prisoners wear blue instead of the universal reddish garb.

“The women’s quarter at Ichigawa,” continues Norman, “is separated from the men’s by a high wooden fence and gateway guarded by a sentinel, and consists of two or three dormitories and one large comfortable workshop, where all are employed together at labour let out by contract. When I was there they were all hemming silk handkerchiefs, each seated upon the matted floor before a little table, and very neat they all looked, and very pretty some of them, with their loose red gowns and simply twisted hair. ‘Those are forgers,’ said the officer, pointing to three of them; ‘I do not like them to be so pretty.’ One of the women had a young baby playing beside her, and another of them as she glanced up at us showed a face entirely different from the rest, pale, sad and refined, and I saw that her hands were small and very white. It was Hanai Ume, the once famous geisha of Tokio, famous for her beauty, her *samisen*-playing, her dancing, her pride, and

most famous of all for her *affaire d'amour*. Two years ago a man-servant managed to make trouble between herself and her lover, whom she expected to buy her out of the life of a professional musician at anybody's call, and then offered to make peace again between them on his own terms. So one night she called him out of the house and stabbed him to death with a kitchen knife. Now music is mute for her and song is silent and love is left behind.

“To the gallows is an easy transition, as it is a natural conclusion. In a secluded part of the grounds at Ichigawa, there is a forbidding object like a great black box, raised six feet from the earth at the foot of a long incline cut in the grass. A sloping walk of black boards leads into the box on the left-hand side. The condemned criminal is led up this and finds himself inside upon the drop. The rope is adjusted and the cap fitted, and then at a signal the bottom of the box falls back. Thus the Japanese method is exactly the opposite of our own, the official spectators, including a couple of privileged reporters, being spared the ghastly details of the toilette on the scaffold, and seeing nothing until an unrecognisable corpse is suddenly flung out and dangles before them.”

The state of Japanese advancement in matters of penology is shown by the fact that in Tokio a school is maintained for the training of prison officials in theory and practice, with an annual attendance of from eighty to one hundred students. They are instructed in the laws relating to prisons and prisoners, in the general outline of the penal code, the sanitary care of prisons, the treatment of criminal patients, and kindred subjects.

The number of felons and misdemeanants is decreasing annually, while there has been a slight increase, on the other hand, in the number of contraveners. There are three disciplinary punishments in the prisons: first, solitary confinement in a windowed cell; second, reduction of food supply; third, solitary confinement in a dark room.

Medals are granted by the prison governors as rewards to any prisoners who have worked diligently and conducted themselves properly in prison, but no medal can be awarded more than three times to any one individual. Medallists enjoy certain privileges and leniency of treatment, and pardons are based on the medal system.

PRISONS OF EGYPT

CHAPTER X

THE LAW IN EGYPT

Penal code in Egypt of Mohammedan origin and derived from the Koran—
The law of talion—Price of blood—Blood feuds and blood revenge—
The courbash freely used to raise taxes—Old police in Cairo—
Extensive reforms—Oppressive governors—Tyrannical rule of Ismail
Pasha—Protection and security guaranteed to the fellaheen by British
occupation—Prison reform—Tourah near Cairo—Labour at the
quarries—Profitable workshops—Assiut prison—Life at Tourah—
Attempts to escape—Convicts employed on the communication line in
the Sudan campaign—Excellent sanitation and good hospital
arrangements.

The land of the Pharaohs has ever been governed by the practices and influenced by the traditions of the East. From the time of the Arab conquest, Mohammedan law has generally prevailed, and the old penal code was derived directly from the Koran. Its provisions were most severe, but followed the dictates of common sense and were never outrageously cruel. The law of talion was generally enforced, a life for a life, an eye for an eye, a tooth for a tooth. Murder entailed the punishment of death, but a fine might be paid to the family of the deceased if they would accept it; this was only permitted when the homicide was attended by palliating circumstances. The price of blood varied. It might be the value of a hundred camels; or if the culprit was the possessor of gold, a sum equal to £500 was demanded, but if he possessed silver only, the price asked was a sum equal to £300. The accomplices and accessories were also liable to death. Compensation in the form of a fine is not now permitted. A man who killed another in self-defence or to defend his property from a depredator was exempt from punishment. Unintentional homicide might be expiated by a fine. The price of blood was incumbent upon the whole tribe or family to

which the murderer belonged. A woman convicted of a capital crime was generally drowned in the Nile.

Blood-revenge was a common practice among the Egyptian people. The victim's relations claimed the right to kill the perpetrator, and relationship was widely extended, for the blood guiltiness included the homicide, his father, grandfather, great-grandfather and great-great-grandfather, and all these were liable to retaliation from any of the relatives of the deceased, who in times past, killed with their own hands rather than appeal to the government, and often did so with disgusting cruelty, even mangling and insulting the corpse. Animosity frequently survived even after retaliation had been accomplished, and blood-revenge sometimes subsisted between neighbouring villages for several years and through many generations. Revengeful mutilation was allowed by the law in varying degrees. Cutting off the nose was equivalent to the whole price of blood, or of any two members,—two arms, two hands, or two legs; the removal of one was valued at half the price of blood. The fine of a man for maiming or wounding a woman was just half of that inflicted for injuring a man, if free; if a slave the fine was fixed according to the commercial value of the slave. The whole price of blood was demanded if the victim had been deprived of any of his five senses or when he had been grievously wounded or disfigured for life.

The Koran prescribed that for a first offence of theft the thief's right hand should be cut off, and for a second, his left foot; for a third, the left hand; and for a fourth, the right foot. Further offences of this kind were punished by flogging, or beating with the courbash—a whip of hippopotamus hide hammered into a cylindrical form—or a stick upon the soles of the feet. The bastinado, in fact, was the familiar punishment of the East. Religious offences, such as apostacy and blasphemy, were very rigorously punished. In Cairo a person accused of thefts, assaults and so forth used to be carried by a soldier before the kadi, or chief magistrate of the metropolitan police, and sent on trial before a court of judicature, or if he denied his offence, or the evidence seemed insufficient for conviction, although good grounds for suspicion existed, he was bastinadoed to extort confession. He generally admitted his guilt with the common formula in the case of theft, "the devil seduced me and I took it." The penalties inflicted less than death included

hard labour on the public works, digging canals and the removal of rubbish or compulsory military service.

The modern traveller in Egypt will bear witness to the admirable police system introduced under British rule, and to the security afforded to life and property in town and country by a well organised, well conducted force. In former days, under the Pashas, the whole administration of justice was corrupt from the judge in his court to the police armed with arbitrary powers of oppression. The chief of police in Cairo was charged with the apprehension of thieves and criminals and with his myrmidons made constant rounds nightly through the city. He was accompanied by the public executioner and a torch-bearer who carried a curious light that burned without flame unless waved through the air, when it burst suddenly forth; the burning end was sometimes hidden in a small pot or jar and when exposed served the purpose of a dark lantern. The smell of the burning torch often gave timely warning to thieves to make off. The chief of the police arrogated to himself arbitrary powers, and often put a criminal to death when caught, even for offences not deserving capital punishment. A curious custom obtained in old Cairo; it was the rule for the community of thieves to be controlled by and to obey one of their number, who was constituted their sheik and who was required by the authorities to hunt up offenders and surrender them to justice.

In old times the administration of the country districts was in the hands of governors appointed by the Pasha and charged by him with the collection of taxes and the regulation of the corvee, or system of enforced or unremunerated labour, at one time the universal rule in Egypt. The prompt and excessive use of the stick or courbash was the stimulus by which the contributions demanded were extorted, and the sheik, or headman of a village, might be severely bastinadoed when the sum demanded ran short. Everything was taxed, particularly the land and its products, wholly or in part, or they were sometimes seized outright and sold at a fixed price, but impounded to make good the debts of the cultivators to the government. Taxes were also levied in kind,—butter, honey, wax, wood, baskets of palm leaves and grain. The government granaries were kept full by the last named exaction and in this regard an amazing story is told.

The governor of the district and town of Tanta, when visiting the granary, saw two fellaheen resting who had just deposited their tale of corn. One had brought in 130 ardebbs (equivalent to five English bushels) from a village at a distance, the other only 60 ardebbs from some land adjoining the town. The governor at once fell foul of the defaulter, and utterly ignoring the townsman's protest that his was a daily and the countryman's a weekly contribution, ordered the man of Tanta to be forthwith hanged. The next day the governor paid a second visit to the granary and saw a peasant delivering a large quantity of corn. Being much pleased, he inquired who the man was and heard that it was he who had been summarily executed the day before and who now produced 160 ardebbs of grain. "What, has he risen from the dead?" cried the governor, astounded. "No, Sir; I hanged him so that his toes touched the ground; and when you were gone, I untied the rope; you did not order me to kill him," replied his subordinate. "Aha," answered the governor, "hanging and killing are different things. Next time I will say kill."

"To relate all the oppressions which the peasantry of Egypt endure," says Mr. E. W. Lane, the authority for the foregoing, "from the dishonesty of the officials would require too much space in the present work. It would be scarcely possible for them to suffer more and live." Yet a worse time was approaching, when the notorious Ismail Pasha became practically supreme ruler and used his unchecked power for the complete enslavement of Egypt. His methods of misgovernment, his robbery, spoliation and cruel oppression are now matters of history. This modern Sardanapalus, as he has been aptly styled, lavishly wasted the wealth he wrung out of his helpless subjects by the intolerable rapacity of his ferocious tax gatherers. The fellaheen were stripped to the skin to fill his coffers and feed the boundless extravagance of a vain and licentious prince. His private property was enormous; his estates and factories were valued at sixty millions sterling; he owned forty-three palaces and was building more when, in a few short years, he had brought Egypt to the brink of ruin, and the people starved at his door.

The people of Egypt not only paid taxes, but their possessions were seized ruthlessly, their lands misappropriated, their cattle and goods confiscated; they were mere slaves whose right to work on their own account was forfeited; and the whole population was driven forth from their villages

with whips, hundreds of thousands of men, women and children, under the iniquitous system of enforced labour, to make roads through the Khedive's estates, till the cotton fields and build embankments to control the distribution of the life-giving Nile. No escape from these hardships was possible, no relief from this most grievous Egyptian bondage. The arbitrary despot backed his demands by a savage system of punishments, and when the courbash was ineffectual, he banished malcontents to the remote provinces of central Africa, where, after a terrible journey, they expiated their offences at Fazoglo or Fashoda. Sometimes the highest officials were arrested and despatched in chains, without any form of trial, and were detained for years in this tropical Siberia. To speak of the Nemesis that eventually overtook Ismail and deprived him with ignominy of a power he so shamefully misused is beyond the scope of this work. But reference must be made in some detail to the many merciful changes introduced into the administration of justice under the British protectorate that has succeeded to Egyptian rule.

In Egypt, at the present time, every son of the soil is safe from arbitrary and illegal arrest; the imposition of taxes is regulated strictly according to law; there is no enforced labour,—the corvee has been absolutely swept out of existence. Every peaceably disposed citizen may live sheltered and protected from outrage and in the undisturbed enjoyment of his possessions, waxing rich by his own exertion, safe from the attack or interference of evil-doers. It was not always so, and the great boons of personal security and humane, equitable treatment now guaranteed to every soul in the land have been only slowly acquired. Until 1844 the Egyptian police was ineffective, the law was often a dead letter, and the prisons were a disgrace to humanity and civilisation. Before that date the country was covered with zaptiehs, or small district prisons, in which illegal punishment and every form of cruelty were constantly practised. It was quite easy for anyone in authority to consign a fellah to custody. One of the first of the many salutary reforms introduced by the new prison department established under British predominance was an exact registration of every individual received at the prison gate, and the enforcement of the strict rule that no one should be admitted without an order of committal duly signed by some recognised judicial authority. To-day, of course, any such outrage as illegal imprisonment is out of the question. Another form of oppression in the old

days was the unconscionable delay in bringing the accused to trial. Hundreds were thus detained awaiting gaol delivery for six or nine months, sometimes for one or two years. At that time, too, there was no separation of classes; the innocent were herded with the guilty, children with grown men; only the females, as might be expected in a Mohammedan country, were kept apart, but their number then and since has always been exceedingly few.

The first step taken by the new régime was to concentrate prisoners in a certain number of selected prisons, such as they were, but the best that could be found. In these, twenty-one in number, strenuous efforts were made to introduce order; cleanliness was insisted upon and disinfectants were largely used, while medical men were appointed at each place, who attended daily to give medicine and move the sick into hospital. The health of the prisoners was so much improved that they constituted one per cent. of the daily average of prisoners, and this ratio has been maintained, so that in the cholera epidemic in 1896 only a few convicts died.

A good prison system could only be introduced in improved prisons, and the first created was the great convict establishment at Tourah, a village about eight miles above Cairo on the banks of the Nile and at the foot of the great limestone quarries that have supplied the city with its building material from the earliest days. In 1885 the old military hospital at Tourah was handed over to be converted into a public works prison; a few of the wards were converted into cells, and a draft of 250 convicts was brought from the arsenal at Alexandria to occupy them. These proved skilful workmen, as the fellaheen, whether captive or free, invariably are, and with the help of a few paid stone-masons they restored the half-ruined upper story of the ancient building and converted it into a satisfactory prison to hold one hundred and fifty more inmates. The four hundred steadfastly continued their labours and to such good purpose, demolishing, removing, cleaning, and constructing new roads and approaches, that in May, 1886, an entirely new prison for five hundred convicts was completed and occupied. Many forms of industry were carried on with excellent financial results, as will be seen from the following details.

All the lime for buildings was burned in two lime kilns constructed for the purpose; all the furniture and woodwork, the tables, beds and doors were made by convict carpenters; all the ironwork, the bolts and bars for safe custody, the very leg-irons, their own inalienable livery under the old Egyptian prison code, were turned out by convict blacksmiths; and hundreds of baskets for carrying earth and stone have been manufactured. The industrial labour at Tourah is now of many useful kinds. New prison clothing, new boots (although these usually indispensable articles are only issued to a favoured few prisoners in Egypt), the baking of bread and biscuit for home consumption, or to be sent to out-stations, plate laying and engine fitting, stone dressing for prison buildings, both at Tourah and elsewhere,—all these are constantly in progress at the Tourah prison. The money made in the prison provides funds for many things necessary for further development, such as tram lines, locomotives, improved tools and machinery of all kinds.

A visit to Tourah is both interesting and instructive. The chief employment of the convicts is in the quarries, a couple of miles from the prison, to which the gangs proceed every morning at daylight and where they remain every day of the week but Friday, which is their Sabbath, until four o'clock in the afternoon. There is no time wasted in marching to and fro. The dinner, or midday meal, is carried out to the quarries by the cooks, and after it is eaten the convicts are allowed an hour's rest in such shade as can be found in the nearly blinding heat of the dazzling white quarries. As this midday siesta is the common hour for trains to pass on to the neighbouring health resort of Helouan, casual observers might think that rest and refreshment formed a great part of the Egyptian convict's daily life. But that would be a grievous mistake. During the hours of labour, ceaseless activity is the rule; all around the picks resound upon the unyielding stone; some are busy with the levers raising huge blocks, stimulated by the sing-song, monotonous chant, without which Arabs, like sailors, cannot work with any effect. The burden of the song varies, but it is generally an appeal for divine or heavenly assistance, "Allahiteek!" "May God give it," the phrase used by the initiated to silence the otherwise too importunate beggar, or "Halimenu," "Hali Elisa," ending in an abrupt "Hah!" or "Hop!" at the moment of supreme effort.

A visitor of kindly disposition is not debarred from encouraging effort by the gift of a few cigarettes to the convicts. Tobacco is not forbidden in the prisons of Egypt. It is issued to convicts in the works prisons in small rations as a reward, according to the governor's judgment. The unconvicted and civil prisoners undergoing merely detention are at liberty to purchase it. I was the witness, the cause indeed, of a curious and unwonted scene in the small prison at Assiut when I inspected it in 1898. The sale of tobacco was in progress in the prison yard, where all of the prisoners, a hundred and more, were at exercise. An official stood behind a small table on which lay the little screws of tobacco for disposal, each for a few *milliems*, the smallest of Egyptian coins, the fractional part of a farthing. The eagerness with which the poor prisoners eyed the precious weed excited my generosity, and I bought up the whole table load, then and there, for a couple of shillings. The prisoners crowding around saw the deal and understood it. Hardly had I put down the ten piastres when the whole body "rushed" the table, overset it, threw the screws of tobacco upon the ground, and all hands pounced down on the scattered weed in one great struggling, scrambling, combatant medley. The tobacco was quite wasted, of course, and I have no idea who got the money. The *mêlée* was so unmanageable that it was necessary to call out the guard to drive the prisoners back to their wards. I was aghast at my indiscretion and ready to admit that I should have known better.

The daily unremitting toil of Tourah must be preferable to all but the incurably idle. Yet the terror of "Tourah" is now universal up and down Egypt. It is the great "bogey" of the daily life among the lower classes, the threat held over the fractious child or the misconducted donkey boy who claims an exorbitant "bakshish." To accuse any decent fellah of having been in Tourah is the worst sort of insult and at once indignantly denied. When my own connection with the English prisons became known, I was generally called the pasha of the English Tourah, and my official position gained me very marked respect among classes spoiled by many thousands of annual tourists,—the greedy guides and donkey boys, the shameless vendors of sham curiosities, the importunate beggars that infest hotel entrances, swarm in the villages and make hideous the landing stages up the Nile. An old hand will best silence a persistent cry for alms or the wail of *miski* (poverty stricken), of "Halas! finish father, finish mother" (the ornate

expression for an orphan), by talking of the *caracol*, “police station,” and a promise of “Tourah” to follow.

Life in Tourah must be hard. The monotonous routine from daylight to sundown, the long nights of thirteen or fourteen hours, from early evening to morning, caged up with forty or fifty others tainted with every vice and crime, must be a heavy burden upon all but the absolutely debased. The evils of association, of herding criminals together, left to their own wicked devices, without supervision, were present in the highest degree in Egyptian prisons. At last, however, a move was made to provide separate cells for a certain number, and a new prison of 1,200 cells was built by convict labour at Tourah immediately opposite the new hospitals and at some distance from the old prison. Much mischievous conspiracy of the worst kind is prevented by keeping individuals apart during the idle hours of the night, for it was then that those concerted escapes of large numbers were planned, which have occurred more than once at Tourah, but have been generally abortive, ending only in bloodshed; for the black Sudanese, who form the convict guards, are expert marksmen and surely account for a large part of the fugitives.

There must be something very tempting to the untutored mind—and many of these Tourah convicts are half-wild creatures, Bedouins of the desert or the lowest scum of the cities—in the seeming freedom of their condition during so many hours of the day. Liberty seems within easy reach. Not a mile from the quarries are great overhanging cliffs, honey-combed with caves, deep, cavernous recesses affording secure hiding places, and it is for these that the rush is made. In August of 1896 there was a serious attempt of this kind, and success was achieved by some of the runaways. The hour chosen was that of the break-off from labour, when the gangs, surrounded by their guards, converge on a central point, very much as may be seen on any working-day at Portland or Dartmoor, and thence march home in one compact body to the distant prison. It is a curiously picturesque scene. The convicts, mostly fine, stalwart men, their ragged, dirty white robes flying in the wind and their chains rattling, swing past, two by two, in an almost endless procession. Below, the mighty river, flowing between its belt of palm and narrow fringe of green, shines like burnished silver under the declining sun; beyond stretches the wide desert to the foot of the Pyramids,

those of Sakhara at one end of the landscape, those of Cheops at the other, —colossal monuments of enforced labour very similar to that now surviving at Tourah.

Such was the moment chosen for a general stampede. About sixty or seventy convicts agreed to cut and run simultaneously, all toward the shelter of the hills. A few were told off to try conclusions with the armed guards, to wrest away the rifles and thus secure both immunity from fire and the power to use the weapon in self-defence. The attempt appears to have been fairly successful at first. A few rifles were seized, and the fugitives, turning on their pursuers, made some pretty practice, during which a few of the more fortunate got away. But authority finally asserted itself. Many were shot down; the rest were overtaken and immediately surrendered. The absence of “grit,” so characteristic of the race, showed itself at once, and these poor wretches, who had been bold enough to make the first rush under a hail of bullets, now squatted down and with uplifted hands implored for mercy or declared it was all a mistake. “Malesh, it does not matter,” was their cry then. But they no doubt found that it mattered a great deal when a few days later Nemesis overtook them in the shape of corporal punishment; for the lash, a cat of six tails, is used in the Egyptian prisons as a last resort in the maintenance of discipline and good order. It is only inflicted, however, under proper safeguards and by direct sentence of a high official. There is no courbash now in the prisons, and no warder or guard is permitted to raise his hand against a prisoner. Tyranny and ill-usage are strictly forbidden.

Escapes have happened at other places. When military operations were in progress on the frontier leading to the revindication of the Sudan, an immense amount of good work was done by large detachments of convicts at stations high up the river. There were rough and ready “Tourahs” at Assuan, Wady Halfa, Korosko, Suakin, El Teb, points of considerable importance in the service of the campaign, where supplies were constantly being landed, stored or sent forward to the front. The Egyptian prison authorities very wisely and intelligently utilised the labour at their disposal to assist in unloading boats and in reshipping stores and railway plant. Numbers of convicts were employed to construct the railway ahead in the direction of Abu Hamed by which the advance was presently made. The

Nile above Merawi flows through the most difficult country in its whole course, the very “worst water,” and no navigation in that length was possible by steamers, little or none by small boats except at high Nile and then only by haulage. It was necessary, therefore, to complete the railway to Abu Hamed, so that gunboats might be sent up in sections over the line, to be put together above the cataracts and then utilised in the final advance, for the river is more or less open to Berber and on to Khartum, and the success of the campaign was greatly facilitated thereby.

Egyptian convicts did much good work of a superior kind. Now and again a trained handicraftsman was found who was willing to put forward his best skill and there was always a smart man ready to act as leader and foreman of the rest, as is very much the case, indeed, with convicts all over the world. One man in particular at Wady Halfa was well known as a most industrious and intelligent worker. He so gained the good-will of the British officers that, not knowing his antecedents, many of them strongly recommended him for release as a reward for his usefulness. But the prison authorities were unable to accede to this seemingly very justifiable request. This best of prisoners (again following experience elsewhere) was the worst of criminals. He had committed no fewer than eight murders, possibly not with malicious motives, or he would hardly have escaped the gallows. The death penalty is not, however, inflicted very frequently in Egypt. In one case worth mentioning as illustrating the almost comical side of Egyptian justice, a man sentenced to death was held to serve a short term of imprisonment for some minor offence before he was considered ripe for execution. When the short sentence was completed, he was incontinently hanged.

At Assuan during war time hundreds of convicts were engaged all day long under the windows of the hotel. Their rattling chains were heard soon after dawn mixed with their unmelodious sing-song as described above. They could be seen constantly and freely approached, as they clustered around the great crane that raised the heaviest weights, locomotives, tender, and boilers, from the boats moored below, or as they passed along in single file backward and forward between the beach and the railway station or storehouses near-by. All were in picturesque rags, except the military prisoners, dressed in a startling uniform of bright orange; all wore the

inevitable leg-irons riveted on their spare, shrunken brown ankles. It was the custom once, as in the old French *bagnes*, to chain the Egyptian convicts in couples, a long-term man newly arrived being chained with one whose sentence had nearly expired.

This practice has now been discontinued, and each unfortunate bears his burden alone. Much ingenuity is exercised to prevent the basils or anklets from chafing the skin. The most effective method, employed no doubt by the most affluent, was a leather pad inserted within the iron ring; others without resources, owning not a single *milliem* in the world, used any filthy rags or scraps of sacking they could beg or steal. Pads of this kind have been worn from time immemorial by all prisoners and captives; no doubt the galley slaves chained to the oar in classical days invented them, and they were known until quite lately in the French *bagnes* of Rochefort and Toulon by the name of *patarasses*, which the old hands manufactured and sold to the newcomers. Another old-fashioned device among the Egyptian convicts is the short hook hanging from a waistband, which catches up one link of the irons, a simple necessity where the chain is of such length that it drags inconveniently along the ground.

The general use of fetters is not now approved by civilised nations. But in Egypt they appear to be nearly indispensable for safe custody. The removal of the leg-irons from convicts has often encouraged them to effect escape. Once sixteen of them at Assuan were astute enough to sham illness. It was during the cholera epidemic, and they knew enough of the symptoms to counterfeit some of them cleverly. The medical officer in charge was compassionate and thought it cruel that his patients should die in their chains, so he had them struck off. Within a few hours the unshackled convicts gave their guardians leg-bail, and escaped from the hospital into the desert, and so down the river. These very men afterward formed the nucleus of the band of *harami*, the robbers and brigands who terrorised the lower province for some months and were only disposed of at last by summary action. The story of the subsequent burning of the brigands at Belianah became public property and was made the occasion of one of those virulent attacks upon British rule that often found voice under the unrestrained license of the Egyptian press. These out-laws were pursued and overtaken at last by the police in a house where they had barricaded

themselves. It was impossible to break in, and the assailants therefore set fire to the thatched roof. The robbers used this as their private arsenal, and the fire soon ignited their cartridges with a terrific explosion in which most of the defenders lost their lives. This practice of concealing explosives in the roof was not uncommon during the days of conflict with the Mahdi. When the sheik of Derowi was arrested on a charge of conveying contraband ammunition into the Sudan, he contrived to send back a message to his wife to make away with all damaging evidence. She thought the safest way to dispose of the gunpowder stored in the house was by fire and at the same time she also disposed, very effectually, of herself.

A striking feature at Tourah was the admirable prison hospital, which would compare favourably with the best in the world. It is a two-storied building with lofty, well-ventilated wards, beds and bedding, all in the most approved style; a well-stocked dispensary and a fully qualified medical man in daily attendance. The patients, unless too ill to rise, sit up on their beds rather like poultry roosting, and suffer from most of the ills to which humanity is heir. The complaints most prevalent are eczema, tuberculosis (the great scourge of the black prisoners from the south), ophthalmia, and dysentery. "Stone" is a malady very prevalent and showing itself in the most aggravated form, due no doubt to the constant drinking of lime-affected water. I saw calculi of almost colossal size, the result of some recent operations, extracted by the prison surgeons, whose skill is evidently remarkable.

Too much praise can hardly be accorded the Egyptian prison administration for its prompt and effective treatment of the cholera epidemic when it appeared in Egypt in 1896. Although the mortality was serious in the general population, the percentage of deaths was relatively small in the prisons. Out of a total of 7,954 prison inmates (this number did not include the convicts at the seat of war or on the Red Sea) there were only one hundred and sixteen cases and seventy deaths. In six of the prisons the disease did not appear; in others, although situated in the heart of infected towns, and prisoners were being constantly received from infected districts, the cases were few. In Tourah, with a total population of thirteen hundred and fifty, there were but twenty-two; at Assiut, a new building with good sanitation, only two; the average was largest at Keneh, Mansourah and

Assuan. Not a single female prisoner was attacked; an immunity attributed to the fact that the females in custody receive regular prison diet, while the males, except at Tourah and Ghizeh, are fed, often indifferently, by their friends outside. These excellent results were undoubtedly due to the strict isolation of the inmates of any prison in which the cholera had appeared. Whenever a case showed, the introduction of food or clothing from outside was strictly forbidden, and friends were not admitted when cholera existed in the neighbourhood. Much credit was due also to the unselfish devotion of the Egyptian medical staff, who were unremitting in their care and of whom two died of the disease at their posts.

It was officially stated in 1903 that such crimes as robbery with violence, petty thefts and brigandage had increased materially since 1899. The reason given for this was the failure of the police machinery to bring out the truth and the practice of bribes which was everywhere prevalent. The corruption of magistrates and the terrorism held over witnesses make it exceedingly difficult to bring a man to justice or obtain satisfactory convictions. But we may well conclude that the prison system as established in Egypt to-day is of the most modern and satisfactory character.

PRISONS OF TURKEY

CHAPTER XI

TURKISH PRISONS

Old castles used as prisons—The Castle of Europe—The Seven Towers and the “Well of Blood”—The Seraglio and the Bagnio—The Zaptie—Lack of prison discipline—Midhat Pasha and the Constitution—His disgrace and death—The Young Turk movement—Horrible massacres at Adana—The provincial prisons all bad—Fetters and other modes of torture—Little improvement under new sultan.

There are few notable buildings in Turkey constructed primarily as prisons. In fact there are few buildings of any sort constructed for that purpose. But every palace had, and one may almost say, still has its prison chambers; and every fortress has its dungeons, the tragedies of which are chiefly a matter of conjecture. Few were present at the tortures, and in a country where babbling is not always safe, witnesses were likely to be discreet.

In and around Constantinople, if walls had only tongues, strange and gruesome stories might be told. On the Asiatic side of the Bosphorus still stand the ruins of a castle built by Bayezid I, known as “the Thunderbolt” when the Ottoman princes were the dread of Europe. Sigismund, King of Hungary, had been defeated, and Constantinople was the next object of attack, though not to fall for a half century. This castle was named “the Beautiful,” but so many prisoners died there of torture and ill-treatment that the name “Black Tower” took its place in common speech.

Directly opposite, on the European side of the Bosphorus, is *Rumili Hissar*, or the Castle of Europe, which Muhammad II, “the Conqueror,” built in 1452 when he finally reached out to transform the headquarters of Eastern Christendom into the centre of Islam. The castle was built upon the site of the state prison of the Byzantine emperors, which was destroyed to make room for it. The three towers of the castle, and the walls thirty feet thick, still stand. In the Tower of Oblivion which now has as an incongruous

neighbour, the Protestant institution, Robert College, is a fiendish reminder of days hardly yet gone. A smooth walled stone chute reaches from the interior of the tower down into the Bosphorus. Into the mouth of this the hapless victim, bound and gagged perhaps, with weights attached to his feet, was placed. Down he shot and bubbles marked for a few seconds the grave beneath the waters.

The Conqueror built also the *Yedi Kuleh*, or the “Seven Towers,” at the edge of the old city. This imperial castle, like the Bastile or the Tower of London, was also a state prison, though its glory and its shame have both departed. The Janissaries who guarded this castle used to bring thither the sultans whom they had dethroned either to allow them to linger impotently or to cause them to lose their heads. A cavern where torture was inflicted and the rusty machines which tore muscles and cracked joints, may still be seen. The dungeons in which the prisoners lay are also shown. A small open court was the place of execution and to this day it is called the “place of heads” while a deep chasm into which the heads were thrown is the “well of blood.”

Several sultans, (the exact number is uncertain) and innumerable officers of high degree have suffered the extreme penalty here. It was here too that foreign ambassadors were always imprisoned in former days, when Turkey declared war against the states they represented. The last confined here was the French representative in 1798.

Another interesting survival of early days is the Seraglio, the old palace of the sultans, and its subsidiary buildings, scattered over a considerable area. In the court of the treasury is the *Kafess*, or cage, in which the imperial children were confined from the time of Muhammad III, lest they should aspire to the throne. Sometimes however the brothers and sons of the reigning sultan were confined, each in a separate pavilion on the grounds. A retinue of women, pages and eunuchs was assigned to each but the soldiers who guarded them were warned to be strict. The present sultan was confined by his brother Abdul Hamid within the grounds of the Yildiz Kiosk, where he had many liberties but was a prisoner nevertheless. Absolutism breeds distrust of all, no matter how closely connected by ties of blood.

An interesting prison was the old Bagnio, once the principal prison of Constantinople. The English economist, N. W. Senior, describes it as it was sixty years ago, in his "Journal." It was simply an open court at one end of which was a two-story building. Each story was composed of one long room divided into stalls by wooden partitions, the whole, dark, unventilated and dirty beyond description. Some turbulent prisoners were chained in their stalls which they were not permitted to leave.

The chief interest lay in the court-yard, however, which was the common meeting place. No rules as to cleanliness or regularity of hours existed. No one was compelled to work and the great majority preferred to lounge in the sun. In the court were coffee and tobacco shops, while sellers of sweetmeats made their way through the crowds. Though capital punishment was nominally inflicted, it was never imposed unless there were eye witnesses of the crime, and seldom then. So of the eight hundred inmates of the Bagnio, six hundred were murderers, some of them professionals. Nearly all wore chains, some of which were heavy, and as several prisoners were attached to one chain occasionally conflicts arose as different members of the group exhibited divergent desires.

Another visitor about the same time saw the picturesque side. He mentions the robbers, chiefs from Smyrna, stalking about the enclosure, the voluble Greeks and Armenians, the secretive Jews, and an Irishman or two, mingling with the stolid Turks. Inmates were sipping coffee, smoking, playing cards, disputing, fighting, while a furtive pickpocket made his rounds. In a corner a fever patient was stretched out oblivious to his surroundings, though the clamour sometimes was deafening. He goes on to say:

"Yet physically the wretches were not ill-treated; they need not ever work unless they like. The court is small and so is the two-storied stable where they sleep upon the earth; but then these are men who perhaps never got between sheets nor lay on a bed in their lives. They may talk what they like, and when they like. They have a Mosque, a Greek chapel and a Roman Catholic chapel. They can have coffee and tobacco, and if they work they are supposed to be paid for it. There is no treadmill, no crank, there are no solitary cells."

The same observer describes the Zaptie or House of Detention as it then existed, and though the building as it exists to-day is improved, conditions are not essentially different. Then there were two communicating courts, where pickpockets, ordinary thieves, participants in affrays, and even murderers were confined. At night they were locked in rooms. One of these sleeping rooms, eleven by seventeen feet, was occupied at night by twelve men. In such places prisoners were kept an indefinite time awaiting trial, and perhaps then discharged without trial and without explanation.

A large number of Turkish prisoners have been confined either for conspiracy against the government, or for daring to exhibit a certain amount of independence. An officer apparently high in favour to-day might be degraded on the next without warning. An interesting case of this kind is the case of Midhat Pasha, one of the best known men in Turkey thirty or forty years ago.

He was one of the little group of Turks who adopted European ideas after the Crimean war. He was a friend of England as opposed to Russia and the influence of the latter state was thrown against him. He was one of the ministers by whom the sultan, Abdul Aziz, was dethroned. This prince soon afterward died, possibly by suicide, though ugly rumours were heard. When Murad, the incompetent, was also deposed Midhat had a hand in the affair. On the accession of Abdul Hamid he was again made Grand Vizier, and secured the promulgation of the famous Turkish constitution of 1876, against the will of the sultan.

When Abdul Hamid felt himself firm in his seat in 1877, he banished Midhat, but recalled him the next year, and made him governor-general, first of Syria and then of Smyrna. The constitution was practically abrogated by this time. Then without warning he was arrested in May, 1881, charged with being concerned in the murder of Abdul Aziz. He with others was quickly tried by a special court, was found guilty and condemned to death.

The sentence was changed to imprisonment for life, and the place of confinement was fixed at Taïf, in Arabia, a small place south of Mecca. There he and his companions who had received similar sentence, including a former Sheikh-ul-Islam, Hassan Hairoullah, were at first allowed the

freedom of the castle. Their servants bought and cooked their food, and though the rude accommodations were somewhat trying to the old men, conditions were endurable.

A change in treatment was foreshadowed by a change in gaolers. The privilege of buying food was taken away, and they were expected to eat the coarse fare of the common soldier. They were forbidden to communicate with one another. For a time the faithful servant was refused access to Midhat's person, though this order was afterward revoked. Poison was discovered in the milk, and in a pot of food. The servant was offered large sums to poison him, but the faithful attendant only redoubled his vigilance. Finally when hardship, separation from family and friends, and dread of the future, seemed unable to destroy his life more primitive measures were taken. After enduring two years of such treatment he was strangled one morning while still in bed, together with two of his friends. Such was the dread inspired by the sultan, that no one dared to inquire or to make public his fate. A letter from his friend, the Sheikh-ul-Islam, to the family of Midhat was, however, published a few years ago and then the whole truth became known.

The case of Midhat was not exceptional, except for his prominence in European circles. The same fate has overtaken many others. Fishermen in the Bosphorus, every now and then, pulled up a sack in which a body was sewn, and those who reasoned might remember that it had been announced that a one time favourite at the Court had set out on a journey to London or Paris, though somehow he had mysteriously failed to arrive.

But though Midhat Pasha and others who struggled to introduce Western institutions into the borders of the East died their work lived. One by one, those suspected of having advanced ideas were degraded. A man might be Grand Vizier for a month or a week, or even for a day, and then without warning, be dismissed in disgrace. The suspicious sultan trusted no one. He set brother to watch brother, father to spy upon son, and then believed none of them, though he always guarded himself lest they might be telling the truth.

Paris received the larger number of those who fled from the clutches of Abdul the Damned. In the life of the French capital, some gave themselves

up to the manifold dissipations which that city offers for her visitors. Others loosely organised, worked and watched for that better day, when the Turk should no longer be a byword among civilised peoples. A newspaper edited by Ahmed Riza was published and thousands of copies were smuggled into the dominions. Hundreds of thousands of pamphlets somehow passed the Turkish frontiers and found readers, though their possession if discovered meant imprisonment and degradation, but the “Young Turks” were undismayed.

Into the harems the new ideas crept. One read to the others during the long days, and the forbidden books passed from hand to hand, and from house to house. Women high in rank, the daughters of court officials, carried messages. Where a man seemed approachable on that side, some member of his harem was converted, or else some woman was placed in his way, even sold to him, perhaps. Dozens of women sold into the harems of prominent men went as apostles of the new faith. Women deliberately sacrificed their reputations, since free association with men, unless supposedly lovers, would have aroused suspicion.

The army became infected, the officers first. During 1907, the third army corps in Macedonia became thoroughly permeated. Of course the cruel autocrat knew something of all this, for his spies were everywhere, but he misjudged the extent. He had seen dissatisfaction and unrest before, and he had crushed them by sudden blows. Perhaps he was tired, and less acute than he had been twenty years before. At any rate he waited too long before taking vigorous action.

Early in 1908 he ordered the higher officers of the army to quiet the unrest. A beloved officer raised the standard of revolt in Macedonia, and the soldiers refused to fire upon the rebels. The Committee of Union and Progress, as the “Young Turk” movement was called, assumed charge of the revolt and demanded the restoration of the constitution, which the sultan refused. Agents were sent to enforce his commands, but they were forced to flee for their lives, and officers not in sympathy with the movement were threatened. Thoroughly alarmed by the defection of the army, the cowardly sultan pretended to yield and on July 24, 1908, the constitution was restored.

Too much perhaps was expected of the Parliament. The fanatical Moslem leaders spread rumours of every sort, and the sultan's agents were everywhere active, distilling doubt and suspicion into the soldiers and populace. In April, 1909, the garrison at Constantinople rose, dispersed the Parliament, and the wily sultan seemed again in control. The army in Macedonia was still loyal to the new ideas, and was promptly mobilised. Within ten days Constantinople was again in control of the Young Turks.

Abdul Hamid was evidently not to be trusted. The die was cast. His deposition was voted by the reassembled Parliament, and his brother who had long been a prisoner was placed on the throne, though the Young Turks, warned by their mishap, kept an effective veto on reaction in the form of the army.

But the wily Abdul not only plotted to gain back his authority in Europe, but his agents fanned the flames of religious and racial hatred in Asia Minor. The Armenians were once a great nation, and though they have long been ground beneath the heel of the oppressor, they still cherish the idea that another great Christian nation will arise in Asia. They saw hope in the new régime and began to speak more freely, to exhibit pictures of their old kings, and to buy arms.

The fierce Turks, Kurds, Arabs and Circassians looked upon the presumption of the "Christian dogs" with rage. Meanwhile agents of the Mohammedan League were everywhere stirring passion to fever heat, and on Tuesday, April 13, 1909, the conflict began in Adana, though not until the next day was the fighting general. For three days the contest raged, when soldiers appeared and a semblance of order was restored. Similar scenes had taken place in Osmanieh, Hamedieh, while at Tarsus the Armenians stood like sheep to be slain.

On Sunday, April 25th, the slaughter again broke out at Adana. This time it was a massacre pure and simple, for the few Armenians who owned weapons had either fled, or else were almost without ammunition. Men, women, children were indiscriminately killed, houses were robbed and burned, until hardly a Christian home was left standing. Over the whole country fire and sword made a waste of what had been the home of a

prosperous population. How many were killed can only be estimated. Some say thirty thousand. No estimate is less than half that number.

An investigation was set on foot by Parliament after the instigator of the massacre had been sent with eight of his wives to live a prisoner at Salonica. The commission reported that it had hanged fifteen persons—fifteen persons for slaying fifteen thousand.

Though much reduced during later years, the Turkish empire still stretches over three continents and the islands of the sea. Though penal conditions around Constantinople are bad, where diverse races and religions, far away from central control, must live together, trouble constantly exists. The Turk has always been weak in administration, and it is in these provincial prisons that the chief horrors are seen.

For administrative purposes Turkey is divided into *vilayets*, which are subdivided into *sanjaks* or *livas*, and these into *kazas*. Each division has its prison. That of the last named corresponds roughly to the county gaol of the United States. In it accused persons awaiting trial and prisoners sentenced to short terms are confined. Graver crimes are punished by confinement in the prison of the *sanjak* or the *vilayet*. For special crimes and for certain kinds of political offences prisoners may be sent to Rhodes, Sinope, Tripoli and other similar points where old castles are usually the prisons.

There is no common form of prison. Generally they are old ugly buildings, though in a few larger towns new and elegant structures have taken their place. In only one particular are they alike—they are all dirty, and are generally damp and unhealthful, because of slovenly attention and overcrowding. The prisons are usually in charge of the *zaptiehs*, though special officers, chosen for the purpose control others. Where these *gardiens* have charge, matters are usually less bad than in the general run.

Prisoners are expected to feed themselves. With the exception of alcoholic beverages, friends or relatives may send any articles of food, or the prisoner may buy them from his own means. Even alcohol is smuggled in by the connivance of the guards who are always willing to accept a bribe. Tobacco of course is considered a necessity. To the very poor coarse bread is usually furnished, but the allowance for this purpose is often embezzled by the

officials, and then the poor must live upon the charity of their fellow prisoners.

The indiscriminate congregate system is still in vogue as in the days of the Bagnio. A dozen, a score, or more, are assigned to one room where they live and sleep. Sanitary arrangements are usually primitive, if not outrageously bad, and the atmosphere is trying to a sensitive nose. There is no prison costume. A prisoner wears what he likes, eats what he likes, and spends his time as he likes, within the limits of the prison. There is no pretence of reform. The prisoners live idle, useless lives. Though, according to law, a prisoner may work if he desires, in fact, work is not encouraged because of the disputes likely to arise over the sale of his product, and hardly one per cent. is occupied.

Yet strange as it may appear at first glance, a great number are perfectly content. Leisure, food, tobacco are theirs and they wish little more. When two-thirds of the sentence has been served, it is the custom to release the tractable prisoners. Many Turks however prefer life in prison to life outside, and refuse to leave. It is a home where they are free from care, exempt from taxes, and from military service. They avoid thus all duties of citizenship and live like parasites upon their relatives or upon any property to which they have a claim.

Theoretically all forms of physical punishment are forbidden, though in every ancient prison the old fetters are preserved, rusted and stiff to be sure, but still painful. Where differences of race and religion between prisoner and keeper appear they are undoubtedly often used to make harder the lot of the "infidel" or of the suspected conspirator. While all charges of ill usage and torture made by Armenian, Jew, or Greek can not be sustained, there is a foundation of truth.

Some of the handcuffs are of iron, while others are simply heavy blocks of wood with two grooves for the wrists. When the heavy blocks are nailed together, the arms are held in a most uncomfortable position, and the obstructed circulation may cause intense pain. The Reverend G. Thoumaian, an Armenian clergyman, tells of wearing these handcuffs for fifteen hours on the journey from Marsovan to Chorum, and for five days thereafter.

He and his companion also wore iron collars, connected by chains, for twenty-five days while in prison at Chorum. Fetters are also worn, connected by chains, and where the guards are especially brutal or the prisoners are hated for any reason the latter may be chained to the wall by neck and feet, sometimes so closely that the irons cut into the flesh.

As is the case in Spain the convict warder flourishes in Turkey. To him is sometimes confided the other forms of torture. A prisoner from whom a confession is desired may be taken to a lonely cell where the lash is plied until blood collects in a huge blister under the skin. This is punctured and intense pain results as the raw surface comes in contact with the air. Worse tales than this are told—of prisoners hanged by the feet from a beam during the beating, of naked prisoners thrust into cold cells and drenched with icy water, and even of the application of hot irons.

Finally Mr. Thoumaian declares that to his own personal knowledge a severe torture was applied to an acquaintance of his, a young graduate of Anatolia College. The young man's head was shaved, and on the bare skin in a sensitive spot was placed a nutshell filled with vermin. As they began to struggle and tore deeper and deeper into the sensitive nerves, the torture was exquisite. Sometimes prisoners to whom this test is applied lose all control of themselves and confess to participation in any plot no matter how incredible, caring only for the removal of the horrible pain.

These accounts all deal with the last years of Abdul Hamid's reign, when the demand for "free Armenia" was strong, when Macedonia was restless, and when the loyalty of large part of the army was suspected. Prisoners charged with ordinary crimes lived much the same lives as the inmates of the Bagnio sixty years before, except perhaps that they were better fed in the later years. Since the accession of the new sultan, vigilance has been relaxed so far as politics are concerned. Whether the leopard has really changed his spots, and the Turk has become humane is a question that only the future can settle.

Transcriber's Note:

Inconsistent spelling and hyphenation are as in the original.

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